MOST IMPORTANT TOPICS IN CRIMINAL LITIGATION

DRAFTS: This constitutes at least 40-45% of your success.

1. **Charges**
2. **Trial: this topic will include:**
    a. **Attendance of Parties and Arraignment.**
    b. **Examination of Witnesses**
    c. **Opening of case for the defence**
3. **Search and Arrest**
4. **Pre-Trial Investigation and Police Interview.**
5. **Institution of Criminal Proceedings**
6. **Constitutional Safeguards for Fair Trial**
7. **Bail Pending Trial**
8. **Judgment and Sentencing**.

NOTE: THIS IS NOT TO SAY THAT EVERY OTHER TOPIC IS NOT IMPORTANT ESPECIALLY FOR STUDENTS WHO DESIRE TO BE THE BEST. IT IS ADVISABLE THAT AFTER COVERING THE ABOVE HIGHLIGHTED TOPICS, YOU SHOULD LOOK UP THE OTHER ONES.

CHAPTER ONE

COURTS OF CRIMINAL JURISDICTION

For the purpose of your bar exams, our interest here is to look at special jurisdictions of some courts like the State High Court, Federal High Court, Juvenile Court, Court Martial and International Criminal Court.

Generally, the state high court has unlimited jurisdiction in terms of criminal matters. This means that it can try all criminal offences EXCEPT for those offences which the Act of the National Assembly or the constitution expressly conferred exclusive jurisdiction on other courts.

For Magistrate courts it is enough if one can know the offences beyond the jurisdiction of the Magistrate like capital offences e.g. armed robbery, murder, treason, unlawful possession of firearms etc.

N.B

The issue of jurisdiction is fundamental and can be raised at any time and at any stage of the trial, and even on appeal. **State v Onagoruwa. (August 2011)**

1. **FEDERAL HIGH COURT (FHC)**

The FHC has a limited jurisdiction in criminal cases.

Sometimes in the exam, the defendants may be arraigned before the FHC or Magistrate Court for an offence which the state High court has exclusive jurisdiction and the students will be asked to comment on the Jurisdiction of that court to try the offence (**see August 2019 Q 6 and January 2020 Q 2a).**

In other to be able to answer the above question, it is important to know the few criminal cases which the FHC has jurisdiction**. These offences include:**

a. Human/Child Trafficking

b. Drug related offences

c. Money laundering
d. Illegal dealing on petroleum products
e. Treason and Treasonable felony
f. Terrorism
g. Dealing/producing of arms and ammunitions etc.

N.B

The offences of conspiracy, forgery and altering of register are all within the jurisdiction of the State High Court and not matters on which jurisdiction is conferred on the Federal High Court by **Section 251 CFRN**

TERRITORIAL JURISDICTION OF FEDERAL HIGH COURT AND STATE HIGH COURTS (August 2019 Q 1b & Q 6a)

This relates to the particular area where the offence was committed. The position of the law is as follows:

a) **Federal High Court**: There is only one FHC in Nigeria; others are the administrative Judicial Divisions. It has a national jurisdiction. See ***Abiola v. FRN*, S. 19(1) of the FHC Act.**

   Therefore, any offence which the Federal High Court has jurisdiction, may be instituted in any of the Federal High Courts in the states of the federation. However, it is advisable to institute such action in the FHC of the area where the alleged offence was committed. See **Ibori v FRN** (Forum shopping occurs when a party attempts to have his action tried in a particular Court or jurisdiction where he feels he will receive the most favourable Judgment of verdict)

   NOTE:

That a party may apply to the Chief Judge of FHC to transfer a matter from one division to another for convenience purpose. **S 19(2) FHCA.**

b) State High Court:

i. Offences committed and completed in one State can only be tried in that State alone. ***Ibori v. FRN (May 2011)***

ii. If the offence began in one State and was completed in another State, both States High Courts may assume jurisdiction over the offence. See ***Njovens v. State*** **(check bar final August 2019 Q 1b)**

iii. **Section 96 ACJA also provides that:**

Where an offence is committed in a state and completed in another state; or Is completed in Abuja being commenced in another state, the suspect may be dealt with, tried and punished as if the offence had been actually or wholly committed in any of the states, or the FCT.

NOTE

The cases for which the FHC has Jurisdiction and the ones within the exclusive jurisdiction of the FHC

The fact that an accused person is a foreigner does not deprive a High Court of jurisdiction to try him for an offence allegedly committed by him. (2010 exam)

c. NATIONAL INDUSTRIAL COURT

The National Industrial court is provided for under **section 254A (1)** of the **CFRN. S. 254C (2)** gives the court jurisdiction and powers to deal with any matter connected with or pertaining to the enforcement of Chapter IV fundamental

Human Rights, Child Labour, Sexual Harassment in work places as well as matters relating to or connected to the application of International Labour Standards.

Appeals from National Industrial Court lies to the Court of Appeal directly as seen in Section **254C (6).**

Practice and Procedure: **S. 254F (2)** provides that the provisions of the criminal code, penal code, or the Evidence Acts apply. The ACJA now applies to National Industrial Court by virtue of the provisions of **S. 2** of the ACJA

2. JUVENILE COURTS (mostly for MCQ)

Juvenile Courts are established pursuant to the Children and Young Persons Laws of the various States of the Federation. Young persons are persons who are less than 18 years of age when they committed the alleged offence. Juvenile courts have jurisdiction over all cases involving children or young persons.

In terms of criminal responsibility, NOTE the following:

1. Children **below the age of 7 years** are not criminally responsible for their act or omissions, which constitute the crime.
2. Children between the **ages of 7 and 12 (i.e 8-11)** will only be held criminally responsible if it is established that they know that their act or omissions are wrong in law; ***State v Nwabueze***
3. Children between the age of 12 and 17 are criminally responsible for their act or omissions. **S. 2 CYPL**
    - Children fall between 1 to 14 years.
    - Young person's fall between 14 to 17 years

Exception to Trial by Juvenile Court (Focus)

The Juvenile court will **not** have jurisdiction to try a minor in the following circumstances:

a) Where a juvenile is jointly charged with an adult, the trial shall be by a regular court; **Section 6(2) of the CYPL**
b) Where a child or young person is charged with an offence, which is punishable by death penalty (i.e. capital offences), his trial shall be by a regular court; **Section 8(2) of the CYPL**

NOTE: In any of the above exceptions, the rules applicable to a juvenile offender will be observed in respect of the minor.

DETERMINATION OF AGE

Section 6(3) CYPL provides that the court should adjourn in order to determine the question age of the child or young person

In order to determine the age of an accused person, the court may:

a) Accept direct evidence of the age of an accused person such as birth certificate signed by a government medical officer
b) Accept oral evidence as to the age of the accused person by the parents or relations.
c) Order medical examination by a Medical Practitioner in a Government medical institution; ***R. v. Oladimeji*.**

NOTE: where there is clear evidence before the court as to the age of the accused person, the need to determine the age of the accused person no longer arises; See ***Guobadia v. State*.**

NOTE THE FOLLOWING EXAM POINTS:

1) terms such as "SENTENCED", "GUILTY", "CONVICTED", "and ACCUSED" *etc.* are prohibited. The word 'OFFENDER' is used instead **S. 17 CYPL**

2) Any person who had not attained the age of 17 years at the time an offence was allegedly committed cannot be sentenced to death; ***Modupe v. State*;**

3) Court is not open to the public **Section 17 CYPL**

4) Any juvenile who is found to have committed a capital offence shall be held in lawful custody at the pleasure of the Governor. See ***Guobadia v. State***

5) Proceedings are not opened to the public **S. 6(5) CYPL. S.36 (4) CFRN.**

6) The identity of the child or young persons shall not be published except where the law permits **S. 66 CYPL**

7) No child shall be ordered to be imprisoned. **S.12(1) CYPL**

8) No young person shall also be imprisoned except there is no other way to deal with him **Section 12 (2).**

9) Where the young person is imprisoned, he shall not be allowed to mix with adult prisoners. Section 12(3) CYPL., ***Guobadia v. State***

10) A juvenile offender shall not be sentenced to death and death sentence cannot be pronounced. The offender shall be detained at the pleasure of the Governor. However, under the ACJA, the offender shall be sentenced to life imprisonment if found guilty of capital offence. Section 405 ACJA.

11) The relevant age is the age at the commission of the offence and not age at conviction.**, Modupe v. State.**

3. COURT MARTIAL (Exam August 2017 Q6 & 2018 Q5, April 2018 Q5 MARCH)

The Court Martial is a special military court which tries only members of the Armed Forces i.e. Nigerian Army, the Nigerian Navy and the Nigerian Air Force. **Section 129 of the Armed Forces Act,** creates two types of courts martial. They are:

a. The General Courts Martial and
b. The Special Courts Martial

GENERAL COURTS MARTIAL

Section 129, paragraph A of the Armed Forces Act (AFA). This court martial shall consist of:

a. The President;
b. Not less than 4 members;
c. A waiting member;
d. A Liaison Officer and
e. A Judge Advocate

SPECIAL COURTS MARTIAL

See Section 129; paragraph B of the Armed Forces Act. This Court shall be constituted by the following members:

a. The President
b. Not less than 2 members.
c. A waiting member
d. A Liaison Officer, and
e. A Judge Advocate

NOTE THE FOLLOWING: (August 2017 Q6, April 2018 Q5, MARCH 2021)

1. The President of a Court Martial shall not be under the rank of a Major or a similar rank in any of the other services. Where it is not possible to have a Major as a President of a Court Martial, a Captain or the corresponding rank in any of the services may be appointed.

2. An officer of any of the services cannot be tried by a Court Martial whose membership includes an officer of a rank lower than his; ***Okoro v. Nigerian Army Council*; Section 133 of the Armed Forces Act**.
   The members of the court martial must be above the rank of the officer to be tried

3. The liaison officer, the waiting member and judge advocate are not counted in determining the quorum or constitution of the court martial. They are regarded as adjuncts to the court; thus the court martial can sit without them. **Obosi v Chief of Naval Staff**

4. A judge Advocate must be: **Section133(6) AFA**

a. commissioned officer, (subject to service law)

b. a legal practitioner with at least 3 years post call experience.

NOTE: That the judge advocate is member of the Court for the purposes of quorum, composition or voting. **Nigerian Army v. Dodo** note as it was held that the judge advocate is not a member of the Courts Martial.

5. The decision of a court martial cannot be enforced until it is confirmed by the convening authority. (March)

6. The Waiting Member: he is on standby in case of any absent member. He is not a member of the court and does not have a voting right.

7. The Liaison Officer: He serves as a link between the Court and the outside world. He is not a member and does not have a voting right.

8. The AGF/AGS cannot exercise their powers (nolle prosequi / discontinuance /take-over) in the court martial. **Section 174 and 211 CFRN**

9. An officer tried by the court martial has a right to legal representation by a legal practitioner of his choice. **S. 36 (6)(e) CFRN, Uzodinma v COP**

PERSONS THAT CAN CONVENE A COURT MARTIAL

Every court martial must be convened by a convening order in **WRITING** and duly signed by an appropriate authority. Therefore where there is no convening order the court martial will lack jurisdiction. (March 2021)

Section 131 of the Armed Forces Act provides that only an appropriate superior authority can convene a Court Martial. For the General Court Martial, any of the following are appropriate superior authorities:

1. The President
2. Chief of Defence Staff
3. The Service Chiefs
4. A General Officer Commanding or a corresponding command
5. A Brigade Commander or corresponding Command (Any of these persons can also convene a special court martial).

JURISDICTION OVER PERSONS – March 2021

Section 130 of the Armed Forces Act gives the Court Martial jurisdiction over persons who are subject to Service Law, **Olatunji v State** i.e, Members of the Army, Navy and the Air Force. It does not include officers of the Police Force, NDLEA, Customs and Immigration and NAFDAC.

The offences include: March 2021

Misconduct in Action, Insubordination, Absence from Duty and Drunkenness, etc. See section 45 – 103 AFA

A court martial is bound by rules of evidence and manifestation of fair trials; **Nigeria Army v. Mohammed**

NOTE

a General Court Martial cannot impose a sentence of death unless it consists of at least 7 members.

A Special Court Martial has the same powers as a General Court Martial but where it is constituted by **only two members**; it cannot impose a sentence of death or a sentence of imprisonment which exceeds one year.

NOTE

the Civil offences triable by a Court Martial are the regular criminal offences in the civil society such as assault, manslaughter, robbery, extortion etc. If a serving officer is tried by a Court Martial for a civil offence, the officer can still be tried for the same offence by the regular courts. However, in imposing sentence, the regular court shall take into consideration the sentence already passed by the Court Martial.

On the contrary, if a regular court tries a person who is subject to service law for a civil offence, the Court Martial can no longer try the officer for the same offence. (**April 2018 Q 5a & b)**

The decision of courts martial is by **majority of votes of members.** Where there is equality of votes **on findings**, the accused shall be acquitted. **Section 140(2) AFA.** Where there is equality of votes **on the sentence**, the president shall have a second or casting vote. **Section 140(5) AFA**.

The decision of a Court Martial shall be signed and dated by the President of the Court martial and the Judge Advocate at the time of delivery. Failure to do so will render the decision void**. Army Rules of Procedure, Rule 76 of 1972. Yakubu v. Chief of Naval Staff - March 2021**

APPEALS FROM THE DECISIONS OF COURT MARTIAL

It is the requirement of **sections 183 and 184(1)** of the Armed Forces Decree No. 105 of 1993 as amended that leave of the Court of Appeal must be sought and obtained before an appeal can lie from a decision of the General Court Martial to

the Court of Appeal. Leave is, however, not necessary if the decision of the Court Martial involves a sentence of death.

Section 184(1) AFA gives the time within which an appeal should be lodged. It is 40 days from the date the General Court Martial promulgates its findings. an appeal lodged after forty days of the promulgation of the findings will be incompetent.

Appeal against sentence of death must be filed within 10 days. Either party can appeal.

Time Limit for Trial under the Armed Forces Act

Section 169(2) of the Armed Forces Act provides that if a **Retired Officer** of any of the Armed Forces is **not tried within 3 months after his retirement**, the Court Martial can no longer try him: ***Nigerian Air Force v. James.*** That means the offences would be statute barred.

However, if the officer committed a civil offence outside Nigeria, he can, with the consent of the Attorney General, be tried for the offence even after 3 months of his retirement.

4. INTERNATIONAL CRIMINAL COURT

The ICC was established by the ROME STATUTE (International Criminal Court Statute) adopted in a UN Diplomatic conference in 1ST July 2002. Nigeria ratified the statute on the **20th April 2002.**

The court **has no jurisdiction to try states but only natural persons**

NOTE: ICC crimes are not subject to statute of limitations or any form of diplomatic immunity or legal restrictions. Therefore, the AGF cannot enter ***nolle prosequi*** before the ICC

The ICC can issue warrant of arrest against such persons to be executed by Interpol and the person will be brought before the court for prosecution.

The International Criminal Court is not bound by immunity clauses of member states and may arrest anyone defendant of crime within its jurisdiction.

JURISDICTION OF ICC (December 2020 Re-sit Q6 a-f)

1. The ICC will only intervene if the relevant state is unwilling to investigate and prosecute offenders.
2. ICC only tries individuals who committed or is committing serious crimes of international concern, they cannot try a state.
3. ICC does not exercise jurisdiction over minors below the age of 18 years.

OFFENCES TRIED BY ICC

Article 5 of the Rome Statute Confers jurisdiction on the ICC to try the following offences:

1. Crime of Genocide – Article 6
2. Crimes against humanity – Article 7
3. War Crimes – Article 8
4. The Crime of Aggression – Article 5(2)

The ICC does not have jurisdiction over Minors and Juveniles

JURISDICTION OF ICC IMPOSE PUNISHMENT

Article 77 prescribe the following punishments:

1. Imprisonment for a specified number of years which may not exceed 30 years;
2. Life imprisonment when it is justified by the gravity of the offence;
3. ICC cannot impose death penalty.
4. It can order forfeiture or an order of restitution as the case may be.

PERSONS THAT CAN LAY A COMPLAINT BEFORE THE ICC

1. By reference to a prosecutor by a State Party
2. By reference to the prosecutor by the security council e.g. Individuals intergovernmental or non-governmental organizations can give reliable information or make communications to the office of the prosecutor of ICC.
3. By the prosecutor after initiating investigation under Article 15

COMPOSITION OF ICC

1. Presidency
2. Chambers
3. Office of the Prosecutor **(OOTP)**
4. Registry

VENUE: The seat of the ICC in The Hague in the Netherlands. However, the court may sit elsewhere whenever the judge considers it desirable.

APPEALS: Appeals from the decisions of the ICC lie to the Appeal Chambers and not to the Supreme Court.

SITTINGS AND SETTINGS OF THE COURTS

The Courts sits only on juridical days that is; from Monday to Saturday **EXCEPT** public holidays. Generally, proceedings conducted on non-juridical days as indicated above are null and void. **HOWEVER**, such proceedings may still be valid if the **parties consented** or **request** for a sitting outside the juridical days. See ***Ososanmi v. COP*** **(see April 2017 Q 2a, August 2018 Q 4e)**

NOTE: In the BAR EXAM, if you are asked to comment on the propriety/validity of the court sitting or arraigning an accused/defendant on a Sunday or public holiday, the above principle will be your answer.

LIMITATION OF ACTION IN CRIMINAL TRIALS

The general rule is that there is no limitation of action or time limit within which to institute criminal actions against offenders.

Exceptions where time is of the essence otherwise the action will become statute bar are in the following:

1. Treason and treasonable felony, to be prosecuted **within 2 years**
2. Sedition, within 6 months. See **S. 52 (1) (c) of the Criminal Code**
3. Custom offences, within 7 years. **See Section 176 (3) of the Customs and Excise Management Act.**
4. Carnal knowledge of a girl under 16, within 2 months
5. Military offences to be tried within 3 months if the offender is out of service; See ***Olatunji v. State, 169 AFA***
6. Private complaint made by under S 92 ACJA must be made **within 6 years**

NOTE: Section 2 of the Public Officers Protection Act only protects public officers in civil matters and does not apply to criminal trials. See ***Yabugbe v. COP***

CHAPTER TWO
SUMMONS, ARREST AND SEARCHES

This is one of the most frequent bar final Topic; especially as it relates to search and arrest**.** Summons and Arrest are the two means of ensuring or securing the attendance of an accused in order to answer to the alleged offence.

SUMMONS

A summons is a document issued by the court directing the person named therein to appear in court at a stipulated date and time to answer to the charge or allegation or complaint against him.

Who Can Issue Summons? Only 3 persons can issue summons and they are:
It is issued by:

1. Judge or
2. Magistrate. – **S79 ACJL , S113 ACJA, 130 ACJLK**

It is within the discretion of the Court to elect whether to issue summons or warrant. **See S.114 ACJA; S.80 ACJL, S. 130 ACJLK**

NOTE: Summons is mostly used in Magistrate Courts and usually issued for minor offences especially where the person is not likely to refuse to attend the court or police station.

Days and Time for Service of Summons-

ACJA (ABUJA) & ACJLK (KANO): By section 116 ACJA, A summons may be issued or served on any day, including a Sunday or public holiday.

ACJL (**LAGOS**): **By section 81(a),** a summons may be issued or served on any day from **Monday to Saturday** between the hours of **8:00 am to 6:00 pm**. **However**, by section 81(b) ACJL, a summons issued or served on a Sunday or a public holiday shall not be invalid but shall take effect from the next working day

SERVICE OF SUMMONS

May be done personally by: See **S.86 ACJL; S. 122 ACJA, S. 136 ACJLK**

1. Police officer, or May be done by an officer of the court or other public officer,
2. through a courier service company duly registered with the Chief Judge as a process service agent of the court under this Act[1].,
3. By Email (Only in Kano)

Substituted service may be ordered where personal service is impracticable. With leave of court by Affixing one of the duplicate in a conspicuous part of the premises in which the accused ordinarily resides. S.88 ACJL; S. 124 ACJA, S 138 ACJLK

LIFE SPAN OF A SUMMONS

Once a summons is issued, it remains valid and subsisting until it is **cancelled** or **executed**; **S.139 ACJA; S.100 ACIL.**

[1] Courier not available under ACJL(LAGOS), ACJLK adds email to it

CONSEQUENCES OF DISOBEYING SUMMONS

Where a person is served with summons and he refuses or fails to honour same, the magistrate or judge may issue a warrant of arrest to compel the individual to appear and answer to the alleged offence: **S. 94 ACJL; S. 131 ACJA**

ARREST OF A SUSPECT

A person may be arrested with or without a warrant of arrest. Most criminal investigations usually starts with arrest of the person alleged to have committed an offence.

The most important things to take note of here are:

a. Who can issue a warrant of arrest:
b. How to execute a warrant of arrest.
c. Places where warrant of arrest cannot be executed.
d. Effect of an unlawful or irregular arrest.

Arrest With Warrant

Arrest can be with warrant in the following circumstances:

a. Where the Law creating the offence states that an offender cannot be arrested without warrant.
b. Where a summons is disobeyed.
c. Where a serious offence is alleged against the offender; ***Ikomi v COP***;

Persons that Issue a Warrant of Arrest (Important Exam area)

It is only the following persons that can issue a warrant of arrest:

1. A Judge
2. A Magistrate

See S. 36 (1) (C) ACJA; S.22 ACJL, S. 55 ACJLK,

NOTE THE FOLLOWING POINTS: (August 2014 Q 1b and 2019 Q 3a)

- **POLICE OFFICERS** no matter the rank cannot issue a warrant of arrest.
- A Magistrate can **lawfully** issue a warrant of arrest irrespective of the fact that he lacks jurisdiction to try the alleged offender for the offence; (**bar final August 2018 Q 4a)**
- National Assembly can issue warrant of Arrest **See Sect. 89 (1) (d) CFRN**.
- Area Court judge **who is a legal practitioner** can issue a warrant of arrest **See S.494 (1) ACJA**
- ACJA is silent on whether a Justice of the Peace can issue warrant of arrest: **See s.36 (1)(C)**
- A person shall not be arrested for a civil wrong or breach of contract. S. 8 (2) ACJA, S.31(2) ACJLK; This provisions is absent in ACJL**.**

NOTE: In the EXAM, the scenario may stipulate that the warrant of arrest was issued by a Police officer and you will be asked to comment on its validity:

YOUR answer is that the warrant of arrest can only be issued by a Judge, a Magistrate; therefore, a warrant of arrest issued by a police officer is invalid.

ISSUANCE OF A WARRANT OF ARREST

It may be issued on any day including a Sunday or public holiday. **S. 38 ACJA; S, 24 ACJL, S.57 ACJLK;**

LIFE SPAN

A Warrant of arrest remains valid until: its is executed, or Cancelled by the authority that issued it. See **S. 39 (2) ACJA; S.56 (2) S.25 (2) ACJL, S.58 ACJLK**

Death, cessation of office does not affect the validity of the warrant. **S.139 ACJA; S.100 ACJL; S. 149 ACJLK**

EXECUTION

Executed on any day including a Sunday or public holiday. **See S.43 (1) ACJA, See S.27 (1)(2) ACJL, S.61 ACJLK**

NOTE:

Warrant of arrest may be executed even though it is not in the possession of the officer at the material time, On demand of the person arrested, it must be shown within a reasonable time or as soon as practicable. The ACJL provides for 24 hour's time frame.. **See S.44 ACJA, S.28 ACJL, S. 62 ACJLK**

Places Where Warrant of Arrest Cannot Be Executed

a. A warrant of arrest cannot be executed in a court room **while the court is sitting –; Section. 27 (2) ACJL; S. 43 ACJA, 61 ACJLK**

b. In a legislative house or within its precincts/premises without the permission of the senate president -***Tony Momoh v. Senate, National Assembly*** **(does not apply to staff only applies to MEMBERS) (check Bar final April 2018 No 5d, August 2019 Q 5)**

NOTE: A warrant of arrest must be directed to a named police officer or to all police officers. It can only be directed to other persons in exceptional circumstance **S. 39(1) ACJA**

NOTE- However, once a warrant of arrest has been executed, the warrant expires thus, can no longer be used to make another arrest, not even the same person earlier arrested- ***R. v. Akinyanju*.**

CONTENTS OF WARRANT OF ARREST – 36 ACJA; S 22 ACJL, S.55 ACJLK (exam focus)

1. Name of the offender;
2. An order to the Police officer to arrest.
3. Brief Statement of alleged offence
4. Date of Issue of the Warrant;
5. Signature of the issuing authority.

ISSUANCE OF WARRANT OUTSIDE JURISDICTION (same state)

Proceed to effect the arrest without recourse to any Judge/Magistrate in that area; After arrest, take the suspect to the Judge/Magistrate in that area who may direct the removal of the suspect unless bail is endorsed**. S. 46 (1) ACJA; 30 (1) ACJL, S.64 ACJLK**

EXECUTION OF A WARRANT OF ARREST OUTSIDE JURISDICTION (Another state) Mattaradona v Aliu, ; *COP v. Apampa,* S.64 ACJLK, S. 365 & 367 . (exam focus)

1) The warrant will be taken to the appropriate magistrate in the state where the defendant resides, who will satisfy himself that the warrant is issued by the magistrate or judge whose name appears on the process.

2) The magistrate then endorses the warrant authorizing that it is to be executed in that state.
3) The magistrate of the state, before whom the person' is brought shall:
    a) by warrant under his hand order the person arrested to be returned to the state that issued the warrant and for this purpose be delivered to the officer who brought the warrant
    b) where the offence for which the person is arrested is bailable, admit such person to bail upon conditions as it deems fit.

HOW TO MAKE ARREST

An arrest can be made by touching or confining the body of the person to be arrested: **S. 4 ACJA; 1 ACJL; S. 27 ACJLK**, ***Sadiq v. State***

Inform the suspect in writing of the reason for his arrest immediately upon his arrest or within a reasonable time thereafter; **section 35(3) CFRN**

NOTE

CIRCUMSTANCES WHERE FORCE CAN BE USED S. 28 ACJLK, S. 5 ACJA, S. 2 ACJL

a. If there is an attempt to escape;

b. Where there is suspicion that suspect may become violent;
c. By order of court
d. Where restraint necessary for the safety of the arrested person (ACJL).

NOTE No person shall be arrested in lieu of any other person., **Section 7 ACJA, S.4 ACJL S. 30 ACJLK (bar final August 2018 Q 4b)**

A warrant of arrest issued by a FHC sitting in anywhere in Nigeria may be executed in any part of Nigeria, See **Abiola v FRN**; **S.19 FHC Act. See s.47 (1) ACJA**

ARREST WITHOUT WARRANT - ONTTIRI v OJOMO

If a person is suspected to have committed an offence, he may be arrested without warrant by:

1. Police: **S.38 Police Act; S .18 ACJA; S.10 ACJL; S. 41 ACJLK**
2. JUDGE/MAGISTRATE[2]: **S.24 ACJA**; **S.15 ACJL, S. 45 ACJLK**
3. **Private persons: S.12 ACJL; S.20 ACJA.; S. 43 ACJLK**

POLICE

a police officer who on reasonable grounds effects an arrest is not liable for false imprisonment See **Dallison v Caffrey**

POST REQUIREMENT

If a police officer arrests a person without a warrant, he shall take such person with all reasonable dispatch to a police station or other place(s) for the reception of arrested persons. Such a person must be given reasonable facilities to obtain legal advice, taking steps to furnish bail. **S.14 ACJL, S. 14 ACJA, S. 37 ACJLK**

[2] (Justice of Peace are not included. See above sections. **S.24 ACJA, S.26 ACJA.**

PRIVATE PERSONS

S.12 ACJL; S.20 ACJA.; S. 43 ACJLK; provides that a private person may arrest without warrant:

a. Any person who commits an indictable offence in his presence or

b. Any person whom he reasonably suspects of having committed a felony ***Nweke v. State***

c. if he reasonably suspects a person to have committed a misdemeanour by night

Post Arrest Requirement by a Private Person (Exam focus)

Any private person who arrests a suspect must do the following:

a. Proceed without unnecessary delay, to hand over the arrested person to a police officer or take the arrested person to the nearest police station.

b. The Police Officer to whom the person is handed over must thereupon re-arrest the arrested person except there is no cause to believe that he committed the offence

Where a private person arrests an offender without warrant and fails to hand over the arrested person to the police timely, he may be liable for damages for false imprisonment if unreasonable delay is established: ***John Lewis v TIMS*.**

NOTE:

- The person arrested shall not be subjected to unnecessary restraints such as handcuff, leg chain, beating or maltreating the person arrested unless the person wants to escape arrest, is violent or for his safety: **S. 34 & 35 CFRN**
- Reasonable force may be used where necessary to overcome any attempt at resistance by the suspect**.**

- Excessive use of force may attract criminal liability- ***R. v Ogunbodede*** (manslaughter).

Effect of on Irregularity in the Process of Arrest on the Trial of the Defendant

The manner with which a person was arrested will not affect the jurisdiction of a court to try accused neither will it vitiate the trial. (**August 2018**)

Although the irregularity will render the arrest unlawful however, the trial will be valid notwithstanding irregularity in issuance and conduct of arrest-***Okotie v COP, State v. Osler.***

SEARCHES

Search may be carried out on persons, premises and things. This may be done with or without a warrant. The essence of search is usually to discover exhibits which substantiate the commission of an alleged offence.

The most important things to take note of here are:

a. Who can issue a search warrant
b. How to execute a search warrant
c. Search of persons.
d. Admissibility of exhibits recovered from an unlawful search.
e. Time for execution of search warrant.

SEARCH OF PERSONS (August 2018 Q 4b)

The body of a person arrested in connection with an offence, may be searched. See **S.9 (1) ACJA; 5(1) ACJL, S.32(1) ACJLK**

Such persons may also be exposed to medical examination. **S.11 ACJA, S.5(6) ACJL, S.34 ACJLK, FRN v Babatunde Omidina**

Recovered items to be kept in safe custody. **See s.9 (1) (b) ACJA , 5(1) ACJL, S.32(1) ACJLK** Such items are referred to as exhibits.

Inventory of recovered items from the suspects shall be made. **See S.10(1) ACJA; 6(a) ACJL, S.33(1) ACJLK**

The inventory to be signed by the Officer and the arrested person failure to sign the inventory does not invalidate it. **See S.10(2)ACIA, S.33(1) ACJLK,**

Copy of the inventory to be given to the arrested person/lawyer. **See S.10 (3) ACJA, .33(3) ACJLK, 6(a) ACJL**

Searched should be conducted by person of the same sex with strict regard to decency. **See S.9(3) & 149 (3)[3] ACJA, S.5(2) ACJL, S.32(3) ACJLK** (Exam focus)

Where it is impracticable, the opposite sex can search in case of[4]

I. Urgency of the situation or
II. administration of justice

The search of a woman is only limited to her person and does not apply to the things she is carrying e.g. handbag and co can be searched etc., **S. 9(4) ACJA, S.5(3) ACJL S. 32(4) ACJLK. (Exam focus)**

[3] 149 makes its female should search female
[4] The exception seen in ACJA only

SEARCH OF PREMISES

GENERAL RULE Search warrant is a condition precedent. **See S. 143 ACJA; S.104 ACJL, S.153 ACJLK,**. This accords with **S. 37 CFRN. But see s.45 (1)**

EXCEPTION (where you do not need a search warrant)

I. An officer with arrest warrant may search premises without search warrant, **S. 7(1) ACJL, S. 12(1) &149(1) ACJA.**

II. A custom officer may enter or break into a place where he reasonably believes that illegally imported goods are kept. **S. 150 Customs & Excise Management Act**

III. An officer of the NDLEA or police officer, in order to recover drugs kept in premises may enter and search such premises- **Section 32 NDLEA Act**

IV. A Magistrate or Justice of Peace can direct a search to be conducted in his presence in a place where he can issue a warrant. **S.152 ACJA, 162 ACJLK**

V. Officers of NSCDC may enter premises and seize items suspected to be used for vandalization, premises of an illegal dealer in petroleum product etc. see S**. 3 NSCDC (Amendment) Act**; Commandant General NSCDC V Ukpeye

NOTE: (Exam focus)

A Police officer executing a search warrant has the right to demand free access into the premises and where this is refused, he can lawfully break in and break out of the premises. **Section.12 (2) ACJA, S.7(2) ACIL, S.35(2) ACJLK,**

WOMAN IN PURDAH – exam focus

Where the premises to be searched is occupied by a woman not being the person to be searched and who does not appear in public, such person should be allowed to

withdraw before the execution of the search warrant- **S. 7(3) ACJL, 12(3) ACJA, S.35 (3) ACJLK**

PROCEDURE

a. To be notified of the impending search for her withdrawal.
b. Reasonable time to be given to withdraw.

NOTE: Notice is not necessary where the person to be arrested is the lady

Persons that Can Issue a Search Warrant-(Exam Question)

1. A Judge or Magistrate; - **Sect.146(1) ACJA; 106(1) ACJL, 156(1) ACJLK**
2. A Justice of the Peace (Only Acja)
3. A Superior Police Officer (above the rank of cadet Assistant Superintendent under certain circumstances) **Section 2 & 48 (1) Police Act 2020** ;

Circumstances a Police officer may issue search warrant – **Sect. 48 (3) Police Act.**

The premises to be searched is or **within the preceding 12 months),** has been in the occupation of any person **who has been convicted** of:

a. Receiving stolen property
b. Harbouring thieves

Any offence relating to fraud or dishonesty and punishable by imprisonment

See ***Reynolds v COP for Metropolis***

NOTE:

For police offices where the above-mentioned conditions do not exist they cannot issue a search warrant

LIFE SPAN OF SEARCH WARRANT - S.146 (2) ACJA, 106(2) ACJL, 156(2) ACJLK

A search warrant remains in force when issued until:

1. It is executed or
2. Cancelled by the issuing authority.

TIME OF ISSUANCE - See **S.148 ACJA &, 108 (1) ACJL, 158 ACJLK**

It may be issued and executed any day of the week This includes Public holiday - S.148 ACJA

In **Lagos** it is executed between the hours of **5:00am and 8.00pm, EXCEPT** if there is authorization at any other time and **such must be endorsed on the warrant. S. 108(2) ACJL**

NOTE: ALWAYS look at the time ,any search conducted at midnight is not valid in **Lagos** but valid in **Abuja** and **Kano** ***see August 2018 Q 4a***

EXECUTION OF SEARCH WARRANT

The mode of execution of a search warrant is as follows:

a. The officer will show the warrant to the person, or occupier or person in control of the premises to be searched.

b. The body of the person who intends to conduct the search will then be searched by the person named in the warrant or occupier of premises.

c. Where the premises or thing to be searched is locked, the occupier shall on demand allow the Police Officer free entry– **S.109 ACJL.** If free entry is denied, the Police Officer or other person executing the search warrant is authorised to use reasonable force to break in- **S. 8 ACJL**. He is also authorised to break out if he is denied exit: **s. 13 ACJA**

d. In the course of the search, if the object is found, it is liable to seizure by the Police Officer executing the search warrant-

Admissibility of Evidence Obtained In The Course of Unlawful Search (August 2014 Q 1B, August 2019 Q 3c).

The mere fact that a search was not properly conducted will not affect the evidence recovered from such search. Therefore, illegally obtained evidence is admissible if it is **relevant** to the trial of the defendant. **HOWEVER**, the court has discretion to admit or reject such evidence based on its desirability; **section 14 Evidence Act, *Musa Sadau v. State.***

SEIZING GOODS NOT SPECIFIED IN THE SEARCH WARRANT

Generally, only items mentioned in the search warrant should be seized. However, where the person executing the search warrant comes across items which he reasonably believes to have been stolen or are relevant in respect of other offences, he can lawfully seize such items- **Reynolds v The Commissioner of Police for the Metropolis**

LIABILITY FOR WRONGFUL PROCURATION OF A SEARCH WARRANT.

NO LIABILITY if the complaint was made in good faith. **EXCEPT** Where the complaint was made recklessly or without reasonable cause, then the complainant may be liable in damages for malicious procurement of a search warrant, **FOWLER V. DOHERTY J.I.C.**

A complainant who maliciously set the law in motion against a person alleged to have committed an offence, may render himself liable in damages for malicious prosecution. - BALOGUN V. AMUBIKAHU

KEEPING OF EXHIBITS RECOVERED FROM SEARCH

All exhibits recovered from a search are to be recorded in an exhibit register and kept in a place called the exhibit room. The person in charge of keeping proper record and care of such exhibits is known as the exhibit keeper.

NOTE: **A police officer cannot take suspects or exhibits to his personal house other than the police station (April 2019 Q 6(4))**

CONSTITUTIONAL SAFEGUARDS RELATING TO SEARCHES, ARRESTS AND SUMMONS; (Exam Focus)

1. **Right To Life S. 33 CFRN: Exception- S. 33 (2)(b)**–killing of a suspect may be justified; In order to effect a lawful arrest; Pursuit of **suspect** immediately after committing the offence and to prevent the escape of a person lawfully detained.

2. **Right To Dignity of Human Person; (**he should not be tortured or otherwise maltreated) **S. 34 CFRN**

3. **Right To Personal Liberty;** a person arrested shall be entitled to bail within a reasonable time**. Section 35 CFRN**

4. **Right To Remain Silent** or avoid answering any question until after consultation with a Lawyer or person of his choice. . **S. 35(2) CFRN**

5. **Right to be informed** in writing within 24 hours and in the language he understands of the facts and grounds for his arrest and detention. **S. 35(3)**

6. **Right to Be Charged to Court within a Reasonable Time**. **S. 35 (4 & 5) CFRN** Reasonable time means a period of 24 hours where a court is within 40km or a period of 48 hours where necessary in any other case.

7. **Right to bail Section. 35(4) CFRN**
8. **Right to an interpreter – Ajayi v Zaria Native authority**

In the Exam, in any given scenario if you are asked to identify the rights of the accused/defendant that was breached by the police, you should state at least 5 rights directly related to the scenario from the above list. (See April 2019 Q 3b)

CHAPTER THREE

PRE-TRIAL INVESTIGATION AND POLICE INTERVIEWS

It is the duty of the police to investigate complaints or any report of the commission of a crime. ***Onyekwere v State***

NOTE: the powers of the Police does not extend to enforcement of civil contracts and collection of debts: see ***McLaren v Jennings***

The Important Things to Take Note of Under this Topic are:

a. Defense of Alibi
b. Confession
c. Identification Parade
d. Judges Rule

JUDGES RULES

The Judge's Rule provides for a suspect should be duly cautioned or warned before taking the statement or confession and ensuring that it was obtained without coercion or force.

Essentially the Judge's Rule are administrative directions and do not have the force of law. For this reason, failure to caution a suspect in the taking his statement will not necessarily render the statement inadmissible in evidence provided he made it voluntarily; R ***v. Voisin, Nwaebonyi v. State; Ejinma v. State***.

NOTE that Section 9(3) ACJL: provides that a confessional statement must either be recorded on video, or where facilities are unavailable, it must be made and recorded in the presence of a counsel.

Under **S. 15(4)ACJA** provides that statement shall be in writing and may be recorded electronically on a retrievable video compact disc or such other audio visual means

ALIBI (August 2019 Q 3b, April 2019 Q 6(2))

Meaning, significance and where necessary to be raised 2009 No 4 (1); May 2011 No 1B (d)

The significance of a statement made to the Police by a suspect that he was not at the scene of the crime and at the time of the commission of the offence is to raise the defense of Alibi. It is raised when defendant was not present at the scene and time of the crime and hence it could not have been humanly possible for him to have committed the offence. ***Ayan v State*.**

How to properly raise the defence 2009 No 4 (9), 2010 No 6 (a); May 2012 4A

For the defence of alibi to succeed, it must be promptly and properly raised. In other words, the suspect or his counsel must not just allege that the accused was not at the scene of the crime and hence could not have not committed the offence, they must also furnish the Police with particulars of his whereabouts to guide the Police in the conduct of an investigation into the alibi. **Yanor v State**

Duty of the Police/Prosecution where raised 2009 No 4 (1), 2010 No 5 (b) 2010 No 6(b) May 2011 No 1B (e)

The duty of the Police/Prosecution where the defence of alibi has been properly raised is to investigate and disprove the alibi. Failure to do this will cast doubts on the Prosecution's case. ***Azeez v State*.**

What is the effect of the Police not investigating alibi May 2012 4A (ii)

Failure to investigate an alibi properly raised by an accused person is detrimental to the case of the Prosecution as this will cast doubts on the Prosecution's case. **Onafowokan v The State**

MAIN NOTE (kinda like repetition but the more you see it, it sticks)

Alibi is a plea that the suspect could not possibly have committed the offence in question because he was somewhere else at the relevant time: ***Ayan v State*.**

TIME TO RAISE ALIBI (Dec 2020 Re-sit Q 3a)

The suspect is under a duty to raise alibi at the earliest opportunity i.e. immediately he is informed that he is suspected to have committed the crime or at the police station–***Agu v State; Ozaki v State***

Particulars of Alibi:

He must not only raise the defence, but also provide particulars of the place he was, what he was doing and the person(s) he was with at the relevant time–***State v. Azeez* .**

If he fails to raise the particulars furnish the above particulars, the defence is not properly raised

Duty On the Prosecution To Investigate The Alibi:

The police are obliged to investigate alibi that is properly raised; ***Azeez v. State***.

Where the defence is properly raised, the burden is on the prosecution to disprove it- **Atta v The State**

FAILURE TO INVESTIGATE THE ALIBI WILL BE RESOLVED IN FAVOUR OF THE ACCUSED.

Where a defendant discloses an alibi **before his trial** and the prosecution fails to take any step to verify or disprove it, the court may hold that the prosecution has failed to prove its case beyond reasonable doubt.

This is because the failure by the Police to investigate an alibi properly and timeously put up by a defendant would raise doubt in the mind of the court and must in appropriate cases lead to the quashing of a conviction imposed in disregard of this requirement – **Onafowokan v The State**

Where a defendant raises the defence in his evidence **at the trial**, the prosecution would not have the opportunity to investigate and would therefore be entitled to rely on the evidence of its witnesses to disprove the alibi.

if the alibi was raised first during the trial, it will be incompetent and will be disregarded by the court

Where the prosecution adduces sufficient, accepted and credible evidence to fix the defendant at the scene of the crime at the material time, the defence would logically be demolished- **Onyegbu v The State**

Effect of Alibi if Properly Raised:

Alibi when properly raised is a complete defence and the accused will be entitled to a discharge and acquittal; ***Yanor v State***

CONFESSION

Confession is the statement of an accused/defendant admitting the commission of an alleged offence; **section 28 Evidence Act.**

It may be oral or written**. Arogundade v The State**

PROCEUDRES UNDER THE VARIOUS LAWS

Procedure for obtaining at Police Station (2010 No 3(ii))

The procedure for obtaining a confessional statement from a suspect is to allow him do so voluntarily. Any confessional statement made by the defendant in circumstances that shows that it was obtained by oppression, will render such confession inadmissible. **Section 29 Evidence Act 2011**.

NOTE THE FOLLOWING EXAM POINTS ON CONFESSION

1) A reliable confession is the strongest piece of evidence even stronger than eye witness testimony. Best evidence to secure conviction provided it is obtained voluntarily. **S. 29(1) Evidence Act**

2) An accused may be convicted upon his confession alone without any corroboration evidence once the court is satisfied that it is direct positive and unequivocal and point irresistibly to the accused as the one who committed the crime; ***Olabode v State, Gabriel v state Salawu v State***

3) Confessional statement is admissible against the maker but not against another defendant- **Otufale v The State**

4) The confessional statement is binding on the maker alone and cannot be relied upon to convict a co-accused **UNLESS** he admits it

a) expressly or

b) by conduct;

***section 29(4) E.A, Ozaki v State, Prof. Grange* v FRN (April 2018 Q 3f, August 2018 Q 2d, 2019 Q2c, Jan 2020 Q3b, Dec 2020 Q 4g)**

A confession made by defendant is admissible against him only. Where more persons than one are charged jointly with an offence and one of them makes a confession, such confession shall not be admissible against the other co-accused person(s) even if made in his presence **except** he adopted the said confessional statement by words or conduct. **Section 29(4) Evidence Act; Mbang v The State;**

5) Where the accused gave his confession in a language other than English language, both versions of the statement must be tendered and the interpreter called as a witness before the confession will be admissible. **Eze v FRN, Olanipekun v State**

6) The proper time to object to the voluntariness of a confessional statement is at the point its being tendered **Mbang v State (2010)**

7) Where a confessional statement is obtained by way of threat inducement and promise of an advantage by a person in authority, it is regarded as involuntary and admissible. **S 29(2) Evidence Act**

What objection to make where confession was obtained by promise May 2011

A confession to be admissible, must be voluntary. In any proceeding where the prosecution proposes to give in evidence a confession made by the defendant, and it is represented to the Court that the confession was obtained by oppression, or other circumstances such as inducement, threat or promise such confession will be inadmissible. **Section 29 Evidence Act 2011**.

Admissibility of Confessional Statement (Exam Focus)

The basis of admissibility of any confessional statement is **voluntariness**. Once a confessional statement is made voluntarily, it is admissible and the court can rely on it alone to convict; **PROVIDED** the confession is direct, cogent and supports the facts before the court; ***Adamu v State*, section 29(1) Evidence Act (March 2021 Q6D)**

Time to challenge admissibility of a confessional statement 2010 No 6 (g)

The proper time to challenge the admissibility of a confession is to do so when the evidence is sought to be tendered

CHALLENGE OF CONFESSIONAL STATEMENT

A confessional statement may be challenged on the ground of **INVOLUNTARINESS** or **RETRACTION**.

1. **INVOLUNTARINESS**

A confessional is said to be involuntarily made where the accused was tortured, threatened, induced, forced or coerced into making the statement. This may also include where a person close to the accused was threatened.

The position of the law is that, once a confessional statement is challenged on the ground of involuntariness, the **court must conduct a TRIAL WITHIN TRIAL** to test whether the confession was made voluntarily. ***See Mohammed v State*, *Olayinka v State* (August 2019 Q 2e, Dec 2020 Q 4e) (**duty of the court when challenged on grounds of voluntariness**)**

TRIAL WITHIN TRIAL:

Trial within trial is used to determine whether the confession is voluntary; ***Olabode v State***. The prosecution has the burden of proving that the statement was taken voluntarily. ***Babalola v FRN, S.29(3) E.A*.**

If at the conclusion of the trial within trial, it was observed that the statement was made voluntarily, it will be admitted otherwise, it will be inadmissible; **Section 29(2) Evidence Act.**

NOTE: A mere promise of secrecy or acts of deceit played on the accused will not qualify as involuntariness. Therefore, any confession made by him as a result of such promise or deceit is admissible; **section 31 Evidence Act**

2. **RETRACTION (Denial) of a Confessional Statement**

A retraction of a statement is a denial of the statement by the accused. This may arise where the accused out rightly denies making any statement or where he denies the signature attached to the confession.

Effect of Retraction: unlike involuntariness, retraction has no effect to the admissibility of a confessional statement.

This is because, where an accused retracts/denies his confessional statement; **the Court will still admit the statement and determine the weight to attach to it depending on circumstances of the case**. *See* ***Aremu v State*; *Adamu v State*; (see August 2018, Q 2c, August 2019 Q 2d, Dec 2020 Q 4e)**

Duty of Court when challenged on grounds of retraction May 2011 No 1B (c)

Mere denial of a confessional statement does not affect the admissibility of a confessional statement. Where the admissibility of a confession is challenged on the ground that it was not made, that amounts to a retraction. The duty of the Court is to nevertheless admit the confessional statement and decide on what weight to attach to it at the end of the trial. **Salawu v State; Onyejekwe v State**.

Note:

Retraction of confessional statement does not affect its admissibility and it arises in any of these circumstances:

a. where the defendant denies signing the statement or the statement was not signed at all
b. he denies making an oral confession or that the statement was not properly recorded
c. that his written statement was altered or where an involuntary statement was not challenged when it was tendered.

IDENTIFICATION PARADE

Comment generally on identification parade 2009 No 3 (a); May 2011 No 5 (a)(i)

In an identification parade, the suspect and other innocent persons of about the same height, age, complexion, facial expression, physical appearance and disposition with the suspect (at least 8 in number or 12 when there are 2 suspects) and dressed in the same manner, with nothing to distinguish the suspect from the other persons; are paraded together. The witnesses are then

allowed; unfettered and unaided to identify the suspect he had earlier described to the Police. – **Ani v State**

ID is the process of associating a person with the commission of a crime.

A witness who claims to have known an accused person before the crime must link him to the crime at the earliest opportunity and not wait for identification parade. ***Bozin v State***

Where necessary, an Identification parade shall be conducted promptly at the police station: ***Adamu v State; Uzoma v State*. 2010 No 6 (c)**

There must be real doubt as to who was seen in connection with the offence to require an identification parade **– Nwaturuocha v The State**

HOW MANY PERSONS SHOULD BE IN A PARADE 2010 No 6 (d); May 2011 No 5 (a)(i)

An identification parade shall consist of **8 persons** in addition to the suspect who shall so far as possible be of about the same height, age, complexion, facial expression, physical appearance and disposition with the suspect.

Note: only one suspect should be in a parade but where there are two suspects who are of roughly similar physical appearance, then they may be paraded together with at least **twelve other persons**, provided always that in circumstance shall more than two persons be in the same identification parade

PROCEDURE: **(Dec 2020 Q 3c)**

1) The procedure is to arrange persons with similar characteristics/features for the victim to pick out the perpetrator from among several persons. If it's **1**

suspect, put **8** other persons but if they are **2 or more** suspects then put **12** additional persons including the suspects.

2) The victim should not be assisted in any way in identifying the suspect.

3) The suspect must be given the choice as to where they can stand in line without the witness knowing this.

4) The Identification parade should be supervised by a superior police officer who himself would not participate in the actual exercise.

5) It should ordinarily be held at the Police station.

NOTE: May 2011

It is not correct to contend that identification parade is necessary in all cases

Identification Parade Is Only Necessary In the Following Circumstance: Ikemson v State

1. Where the identity of the accused is in issue/doubt
2. where the victim did not know the suspect but encountered the suspect for the first time and a brief period during the commission of the offence.

NOTE:

If an identification parade was not properly conducted, it will vitiate the trial and conviction of the defendant; ***Bozin v State***

Identification parade is not necessary if the defendant:

1) confessed;
2) was caught at the scene or was pursued and apprehended;
3) was well known to the witness before the incident

4) there was clear and un-contradicting eye witness account.

POLICE BAIL

As earlier noted, a person arrested must be taken to Court **within 24 hours** if there is a Court within 40km radius. Where there is no court within such distance the person shall be taken to court **within 48 hours** of arrest or such longer period as in the circumstances may be considered by the court to be reasonable: **Section 35(1)(3)(4)(5)&(7) CFRN- Section 30(1) ACJA, Section 17 (1)(2) ACJL, *S.49 (1) ACJLK.***

Detaining a suspect without arraignment beyond the time stipulated by the constitution has been held to be **unconstitutional**. **Danfulani v. EFCC**

A suspect at the police station is entitled to police bail pending investigation. If the crime is not a capital, the officer in charge of the police station or place of detention may admit the accused to bail on such terms and conditions as may be appropriate, pending investigation.

Failure to do so will amount to a breach of the suspect's fundamental human rights; (**Bar Final January 2020 Q 3a)**

The essence of police bail is to ensure that the accused enjoys liberty while ensuring that he is available. Where there is a significant risk of absconding, the police are less inclined to grant bail.

NOTE

that where there is more than one suspect detained at the Police Station and they are represented by the same counsel a single application by their counsel listing their names and names of their sureties suffices

Police bail is free; therefore, it is wrong for any officer to request money before release of a person from custody – EXAM 2009

However, the police may request for a surety or bond before releasing the suspect on bail

Qualification As A Surety

a) Person of known address;
b) Person of good character;
c) Person acceptable to court.
d) (Person of reasonable means of income).

Eligibility Of A Woman To Stand As Surety - focus

Denial amounts to discrimination under **Section 42 (1)(a) CFRN. S.167 (3) ACJA**; *S.177 (3) ACJLK*, **s.118 (3) ACJL**. (March 2021)

What Happens To A Surety Who Fails To Produce A Defendant? Christopher Ekwuazi v DPP , See **Section 36 (8) CFRN**.

A charge against a surety for refusing to produce an accused person is not known to law. consequently, the prosecution of a surety is unconstitutional and therefore null and void.

Remedy To the State Where Surety Fails To Produce A Defendant?

1. Forfeiture of bond;
2. Imprisonment for failure to pay

Procedure For Police Bail – 2009 EXAM

Application for bail at the Police is usually **BY A LETTER** addressed to the Divisional Police Officer or Commissioner of Police or other officer in charge of the police.

Remedies Available To a Detainee upon Refusal of Police Bail

1. Application to the SHC/FHC for enforcement of his fundamental rights
2. Another option is to apply to a Court to grant him bail.
3. Application to the High court for a Writ of habeas corpus ***Alhaji Manfred v. IGP, C.O.P v Agbaje***
4. apply to a magistrate Court for an order for his production in Court **(S. 18 ACJL).**

CONSTITUTIONAL SAFEGUARDS OF PERSONS ARRESTED (POLICE STATION)

1. Right to dignity of human person; **Section 34 (1)a**
2. Right to personal Liberty; **Section 35 (1)a**
3. Right to remain silent; **Section 35 (2)**
4. Right to be informed of reasons for arrest; **Section 35 (3)**
5. Right to be arraigned before a court of law within a reasonable time. **S 35 (4)**
6. Right to counsel: **Section 36 (6) (c), Uzodinma v COP**
7. A person shall not be arrested in place of another (suspect). **Section 7 ACJA, Section 4 ACJL**
8. Right to Legal Aid Act. **(section 8 (2), section 6 (1) and (2) Legal aid act**
9. The detainee may apply to the High Court for the issuance of writ of habeas corpus,

CHAPTER FOUR

INSTITUTIONS OF CRIMINAL PROCEEDINGS

The important thing under this topic is to identify the persons with the competence to commence criminal proceedings in Nigeria.

It was held in **The State v. Squadron Leader S.I Olatunji** that where there is no competence to institute criminal proceedings, any trial in such proceedings is a nullity.

The following persons can institute criminal proceedings in Nigeria:

a. The Attorney General (either State or Federation)

b. Police Prosecutors.

c. Special Prosecutors

d. Private Prosecutors

A. ATTORNEY GENERAL

The powers of the Attorney General of either the State or of the Federation in relation to criminal proceedings is contained under **section 174 (for AGF) and 211 (for AGS) CFRN**

The Attorneys General powers in relation to criminal proceedings are as follows

a) Power to institute and undertake criminal proceedings.
b) Power to take over criminal proceedings at any stage before judgment and
c) Power to discontinue criminal proceedings at any stage before Judgment **EXCEPT** a court martial. **Section 107 ACJA (AGF)**

NOTE out of the three powers above the most important one for the purpose of your exam is the power to discontinue which is known as ***nolle prosequi***.

DELEGATION OF POWERS OF THE ATTORNEY GENERAL

Section 174(2) and 211(2) CFRN both to the effect that the foregoing powers of the AG can be exercised by his officers in his department.

The AG may also delegate his power to the Police Customs, EFCC and other agencies with prosecutorial powers**. Saraki v. FRN.**

The power of delegation must be made expressly **AG Kaduna State v. Hassan**,

NOTE THE FOLLOWING ABOUT THE POWERS OF THE A.G:

i. The powers of the Attorney General is absolute, thus the A.G need not give reason(s) for exercising it in any way. *See* ***Ilori v. State;*** **(Jan 2020 Q 6a, April 2019 Q 5(2) March 2021)**

ii. The A.G of State cannot prosecute an offence created by an Act of the National Assembly without:

a. the fiat or consent of the AGF or

b. the said Act was meant to operate as a state law and vice versa see ***Emelogu v. State;*** **Anyebe v. The State (Jan. 2020 Q 2c)**

The authority of the Attorney General of the Federation or State to institute criminal proceedings is **limited** to Federal and State offences respectively. The Attorney General of the Federation cannot institute criminal proceedings over state offences **EXCEPT** with the fiat of the Attorney General of the State and vice versa. Section 171 CFRN; Section 211 CFRN. **Anyebe v State**.

iii. Any officer of the A.G's office can exercise the powers of the A.G stated above. The power to institute, undertake and takeover criminal proceedings can be exercised even without a sitting A.G, **S. 71-72 ACJL, Saraki v. FRN.**

iv. The AG can take over and continue criminal proceedings instituted by any other authority or person, including the Police, EFCC, ICPC, Customs, NDLEA, and private prosecutors. **Amaefule v. The State, Nyame v FRN**

NB

In exercising his (Attorney General) powers under s.174(3) and 211(3) CFRN, the Attorney General is required to have regard to

a. Public interest,
b. the interest of justice, and
c. The needs to prevent the abuse of legal process.

The above provision was tested in **State v Ilori**, Court held that the provision imports a discretion but certainly did not create a condition.

Can the Attorney General decide who to prosecute and who not to prosecute? **August 2011 No 5 (1)**

The constitutional powers of the Attorney General to institute proceedings is absolute, and so he has the absolute discretion to decide who to prosecute and what offences to prosecute. **Section 174(1) CFRN (AGF); Section 211 CFRN (AGS)**.

POWER OF THE A.G TO DISCONTINUE CRIMINAL PROCEEDINGS (NOLLE PROSEQUI) (this is mostly the exam focus area). - **Section 174 (1)(c), 211(1) (c) CFRN**

THUS NOTE The Following Points About *Nolle Prosequi*: (April 2017 Q 3a, August 2019 Q 2f, Jan 2020 Q 3e)

1. It can be entered:
   a. orally by the AGS/AGF in person or
   b. in writing through any of the officers in his department. (e.g. Solicitor-General or DPP) **S.124(1) ACJLK and S 107 ACJA**

   Therefore**,** an officer of the office of the A.G can only enter ***nolle prosequi*** with the written authority under the hands of the A.G himself.

   Thus, apart from the Attorney General, no other person or authority can enter an oral nolle prosequi**. State v Chukwura.**

2. The A.G need not give reason(s) for entering the ***nolle prosequi***; ***Ilori v State***

3. Once properly entered the court is bound to stop the trial and **discharge** the accused without asking for explanations or reasons ***; Ilori v State***

4. Where there is no incumbent or sitting A.G the power of ***nolle*** cannot be exercised see ***A.G Kaduna State v. Hassan***

5. ***Nolle* prosequi** if properly entered is a mere discharge and not an acquittal. Therefore the defendant can be arrested and tried again for the same offence:

Clarke v AG Lagos State; Ilori v State. Therefore a nolle prosequi does not ground a plea of autre fois acquit.

6. The A.G cannot enter *Nolle Prosequi* before the Court Martial and the International Criminal Court, S.174(1) (**August 2017 Q 6f, Dec 2020 Q 6c**)

7. *Nolle* cannot be entered on appeal. Once judgement has been delivered, the power of nolle has been extinguished **UNLESS** the appellate court orders a retrial (**March 2021 Q1d**)

REMEDIES AVAILABLE TO A PERSON AGGREIVED BY AG ENTERING NOLLE AND HOW EFFECTIVE ARE THE REMEDIES

1. bring a civil action by originating summons for a declaration that the AG acted in bad faith, **AG Kaduna v Hassan**;
2. May petition the appointer of the A.G

The remedies are not so effective because they cannot reverse the action of the A.G in the matter. **State v Ilori**

The power to enter a *nolle* should be distinguished from the power of a prosecutor to discontinue criminal proceedings under **Sections 73 and 125(1) & (2) ACJLK**, **108 ACJA**.

NOTE THE FOLLOWING ABOUT WITHDRAWAL:

i. The prosecutor must furnish sufficient reasons for the withdrawal

ii. If the withdrawal was made before the defendant was called to enter his defence, the court will DISCHARGE him.

iii. If the withdrawal was made after the defendant has entered his defence the court will ACQUIT him of the offence; section 108(2) ACJA

iv. Where a private prosecutor withdraws the charge, the court may order him to pay cost.

The Major differences between nolle and withdrawal as follows:

a. The effect of a *nolle* is a **discharge** while the effect of a discontinuance is a **discharge or an acquittal** depending on the stage of the trial.

b. Entering a *nolle* is at the **discretion of the AG** while discontinuing proceedings is **subject to the consent of the court**.

c. The court may **award costs against a prosecutor** who discontinues proceedings but **lacks such power in respect of a *nolle***.

d. *Nolle prosequi* is **only exercisable if there is a sitting AG** while withdrawal **can be done with or without an AG.**

e. The Attorney General **need not give reasons for *nolle* *prosequi***, the prosecution must give reasons for withdrawing the charge.

f. The court can refuse an application for withdrawal but the court cannot refuse a *nolle prosequi* properly entered by the Attorney General.

THE POLICE: **s. 66(1) Police Act**:

The Police have the power to institute and prosecute criminal proceedings before any court in Nigeria. However only Police Officers who are legal practitioners that can competently sign the charge or FIR or prosecute.

The ACJLK - **S.129(6) (f)** & **S.78 of the ACJL** provided for the power of the police to prosecute matters in Magistrates Courts.[5] (no mention of prosecuting in HC)

The only important fact to note here is that the police can prosecute criminal cases in any Court in Nigeria (except Court martial). They do not require the consent of the Attorney General to do so; ***Olusemo v COP***, ***Osahon v FRN.***

SPECIAL PROSECUTORS; These are persons who are empowered to prosecute certain species of offences. The Acts setting them up empower them to institute criminal proceedings but subject to the powers of the AG. EFCC and ICPCL's power is exercised under the powers of the AG. ***Akingbola v FRN; Ehindero v FRN*** **(see Dec 2020 Q 4a)**

1. **The EFCC (Establishment) Act** – **Ibrahim Shehu v. FRN** .
2. **Customs and Excise Management Act (CEMA)** – **See Customs & Excise v. Barau**.
3. **The special prosecutor need not to be a lawyer**. E.g. **Section 66 of the Factories Act** vests the power of criminal proceedings in respect of factory offences on the Inspector of Factories.

[5] However as stated the two cases of **Olusemo v. COP** – **Osahon v. FRN** have laid to rest the controversy whether or not the police can prosecute beyond the magistrate's court.

PRIVATE PERSONS: – S.131 (1) ACJLK, S. 77 (1) (b) (ii) and 254 ACJL, S. 381(d) ACJA.

Private persons may bring compliant to Court against an offender where police or AG are not willing to bring a case but still subject to the powers of the AG;

The only limitation to the right of a private person to initiate criminal proceedings is where the law or enactment specifically provides for the class of persons that can initiate such action.

Before an information signed by a private person is received by the Registrar of a court, certain **conditions** must be fulfilled:

1. There must be an endorsement by the AG stating that he has seen the information and declines to prosecute at the public instance, the offences contained in the information.
2. The private person shall enter into a recognisance in the sum prescribed by the Statute, together with a surety in the like sum.

OTHER STATUTORY LIMITATIONS TO THE RIGHT OF A PRIVATE PERSON TO PROSECUTE

Proceedings for an offence of official corruption against a judicial officer- the information must be signed by the AG.

▪ For the offence of sedition, the private person must seek the consent of the AG.

▪ Adultery and related offences under sections 387, 388 & 389 of the penal code only the persons specified therein can institute the action.

A private person can withdraw a case but costs will be awarded against him.

Private Legal Practitioners

S.**381(C) of the ACJA**, an information may be filed by a private legal practitioner authorized by the AGF. Where a legal practitioner is so engaged, he is said to enjoy the fiat of the AG. **See FRN v. Adewunmi – George v. FRN**. The AG can brief a private legal practitioner to act on his behalf, (requires a fiat from the AG) ***Nafiu Rabiu v State***

WITHDRAWAL OF CHARGES BY THE PROSECUTION

Under the various procedural rules, the prosecution has the power to withdraw any criminal charge against an accused person at any time before judgement; **section 108 ACJA.**

NOTE THE FOLLOWING ABOUT WITHDRAWAL:

1) The prosecutor must furnish sufficient reasons for the withdrawal
2) If the withdrawal was made **before** the defendant was called to enter his defence, the court will **DISCHARGE** him.
3) If the withdrawal was made **after** the defendant has entered his defence the court will **ACQUIT** him of the offence; **section 108(2) ACJA**
4) Where a private prosecutor withdraws the charge, the court may order him to pay cost.

CHAPTER FIVE

MODES OF INSTITUTING CRIMINAL PROCEEDINGS

The mode of instituting criminal action depends on the court and the venue where the offence is to be tried. In this topic, only the most used mode will be discussed.

MAGISTRATE COURT KANO (NORTH) – FIR AND COMPLAINT

1. By a **complaint** whether or not on oath **Section 126 (a) ACJLK**
2. By bringing a suspect arrested without a warrant before the court on a complaint. **Section 127 (1) (1) ACJLK**.
3. Upon receiving **First information Report** – **Section 126 (a) Kano** and **127 (b) (a) Kano** and **Section 127 (b)**.

NOTE: after going through the FIR the judge will then prepare the charge against the accused if he is satisfied that there is a prima facie case against him

MAGISTRATES COURT ABUJA

1. By bringing a person arrested upon **a charge contained in a charge sheet** – **Section 110(1)(a) ACJA**.
2. By laying a **First Information Report** before a Magistrate – **Section 110 (1) (b) ACJA**.
3. By laying a **complaint** before a Magistrate – **Section 110(1)(c) ACJA**.

MAGISTRATES COURT LAGOS - CHARGE

1. By bringing a person arrested **with or without a warrant** before the Magistrates court upon a **charge sheet** – **Section 78 ACJL**.

HIGH COURTS UNDER THE ACJL KANO (CHARGE)

1. **Charge** of the Attorney-General of the State filed by a law officer or a private prosecutor. **Section 126 (b) ACJLK**.
2. **Charge** filed in the court after the accused person has been summarily committed for perjury – **Section 126 (c) ACJLK**
3. By a **charge** filed in the court by any other prosecuting authority. **Section 126 (d) ACJL Kano**.
4. By a charge filed by a private prosecutor – **Section 126 (e) ACJL Kano**.

High Courts Under the ACJA – ABUJA (INFORMATION/CHARGE)

1. by **information** of the Attorney-General of the Federation – **Section 109(b) ACJA**.
2. By information or charge filed in the court after the defendant has been summarily committed for perjury – **Section 109 (c) ACJA**.
3. By information or charge filed in the court by any other prosecuting authority – **Section 109 (d) ACJA**.
4. By information or charge filed by a private prosecutor – **Section 109(e) ACJA**.

HIGH COURTS UNDER THE ACJL[6] – LAGOS (INFORMATION)

1. By **information** of the Attorney-General of the State – **Section 77(1)(b)(i) ACJL**
2. By **information**, filed by a private prosecutor. **Section 77(1)(b)(ii) ACJL**.

[6] In the High Court south (except Lagos), criminal trials can also be instituted by laying a complaint before a judge for non-indictable offences only: **section 77(b) CPL *DPP v Aluko***

3. By **information** filed in the court after the accused person has been summarily committed for perjury – **Section 77(1)(b)(iii) ACJ**L
4. Summarily in respect of contempt – **Section 77(1)(b)(iv) ACJL**.

Federal High Court (CHARGE)

By way of a charge; This is in spite of the provision of **Section 109 of ACJA** which has a general provision – See **Section 33 of the Federal High Court Act**, which has a specific provision on commencement of action at Federal High Court.

EXAM: DRAFT A CHARGE FOR FHC !!!!

In either case, No consent or leave is required.

National Industrial Court

Section 109 of the ACJA is applicable.

1. by **information** where the AG is initiating the proceedings.
2. Where any other person or authority is prosecuting, a **charge or information** would be filed.

Application to File An Information/ To Prefer A Charge

In the High Court of Kano, Consent of the court or leave of the Court respectively are no longer required to be sought before criminal proceedings are instituted therein,

NOTE, the state that still maintain the CPCL the application for consent or leave is a prerequisite to ignite the jurisdiction of the court by adhering thus;'

By application which must be in writing (**MEP**) and may be made through a letter. **Abacha v. The State**

The Application must include:

1. A copy of the proposed charge/information
2. Proof of evidence of witnesses.
3. That there have been no committal proceedings
4. Unedited statement of the defendant(s) made during investigation.
5. Where the application is brough by a person other than the AG, an affidavit stating that the statement contained in the charge/information are true to the best of his knowledge.
6. Whether there has been any previous application as well as the result of such application
7. That there have been no criminal proceedings

In considering whether to grant consent/leave, the court must be satisfied what a prima facie case has been made out against the accused person. **Ikomi v. The State**

NOTE: Failure to attach any of the above documents to the application, or where the proof of evidence discloses no reasonable case against the defendant, the court will refuse to grant consent; **Ikomi v State, Abacha v State (August 2018 Q 3)**

Where a trial judge refuses the application for leave/ consent, an application can be made to another judge, **Gaji v. The state.** An applicant may also appeal against the refusal **Akwuobi v. The State**.

On the other hand, where an accused person is aggrieved by the grant of consent/leave, he may apply to the court for the information/charge to be quashed - **Abacha v. The State**.

Failure to seek leave to prefer a charge in the north will vitiate/nullify the proceedings; ***Bature v. State***

Complaint **does not require consent or leave of courts. {Bar final August 2018 Q 3(1 & 2)}**

NOTE the following:

- A judge will satisfy himself that a prima facie case is disclosed before granting consent or leave. ***See Abacha v State; Ikomi v. State***.

- Where consent is required before filing information in the south failure to obtain it will nullify the proceeding thereto: ***AG v Clement Isong***. Also failure to seek leave to prefer a charge in the north will vitiate/nullify the proceedings; ***see Bature v. State;*** **(August 2016 Q 1b, 2018 Q 1b)**

- Where an **application for Leave or consent is not granted,** a **similar application** can be made to another Judge of coordinate jurisdiction until it is exhausted**. See *Gali v. State;* (August 2018 Q 3a)**

POSSIBLE QUESTION 1B IN THE EXAM

1. **Assuming the defence counsel raised objection on the ground that leave or consent was not obtained before filing the information or charge, as the prosecution, how will you respond to the objection?**

Answer: My response will be that leave or consent is required to file information or prefer a charge and failure to do so will nullify the trial; therefore if the leave of court was not obtained I will concede to the objection.

2. **List the documents that will accompany your application for leave or consent.**

The above two questions are mostly asked as Question 1B in Bar Exams

CHAPTER SIX

CHARGES

This is one of the most important topics in Criminal litigation for the purpose of your exam.

Form and Content

1. **Heading**

   Every charge or information must be headed in the name of the court where the charge or information is to be preferred, e.g.

2. **Reference Number**: It is "**CHARGE NO**…"
3. Parties: (Complainant and Defendant)

   The prosecutorial authority in State offences in the High Court is "The State" **EXCEPT** Lagos State where the prosecutorial authority is "**The State of Lagos**". See s. 249 ACJL.

- The prosecutorial authority in **Abuja** is the **Federal Republic of Nigeria**
- The prosecutorial authority in the **Magistrates' Courts** is **"Commissioner of Police"**
- The Prosecutorial authority for Federal offences will depend on who is instituting the proceedings:

  If on behalf of the AGF it shall be in the name of "**The Federal Republic of Nigeria**". S. 268 (3) ACJA

  If it is instituted upon delegation by AGF either by a private practitioner or a Commission or Agency it shall be in the name of "**The Federal Republic of Nigeria**". S. 268 (3) ACJA

Where it is instituted by a police officer it shall be in the name of **"Inspector General of Police" or "Commissioner of Police"** as the case may be. S. 268 (2) ACJA.

4. **Preamble:**
   only required when drafting an information to be preferred in the High Court

DRAFT:

At the session of the High Court of Lagos State holden at Lagos on the 2nd day of May, 2022 the Court is informed by the Attorney-General on behalf of the State that:

John (m) is charged with the following offences:

5. Main Body: (Allegation of the offence where you can have more than one charge).
   This is where the offence alleged is set out. Comes after the preamble in information and after parties in a charge

   Each count in an information has two paragraphs i.e. "Statement of Offence" and "Particulars of Offence".

   Each of the Charge shall contain the **name(s)** of the accused, **the date of offence**, **venue or address of offence, judicial division** of the court **description** of the offence, **the victim** and **the punishment** section of the law breached

6. Date:

comes immediately after the last offence has been drafted.

Note that the ACJA allows the date to be placed before the preamble. See Section 377 ACJA & Form 11 of the 1ST Schedule to ACJA.

7. Subscription/Signature:

DRAFT:

…….

Timi Fineface Esq.

Senior State Counsel

For: Attorney- General

Bayelsa State

Ministry of Justice

POINTS TO NOTE

- General rule is to use the section that describes the punishment and not definition section.
- Per Section 194(3) ACJA – Says that the law (definition section) and the punishment section must be stated in the charge. E.g. (Contrary to section… and punishable under section…)
- Where same section contains definition and punishment, that section is used.

- Where a section defines the offence but punishment for that offence is stated in a separate section, both the definition section and penalty section must be used.

- Every head of offence is referred to as "Count" on a charge or information to be used in the Magistrate or Federal Courts and High Court in the South e.g. "Count 1" or "Count One" or "First Count" while it is referred to as "Charge" in the North e.g. "Charge 1" or "Charge One" or First Charge.

THE RULES OF DRAFTING CHARGES - MCQ

The rules governing the drafting of charges are:

1. The rule against ambiguity.
2. The rule against duplicity.
3. The rule against misjoinder of offences.
4. The rule against misjoinder of offenders.

A. RULE AGAINST AMBIGUITY

This rule states that a charge must be clear so as to give an accused person adequate knowledge of the offence for which he is charged**.** In order for a charge not to be ambiguous it must conform to the forms and contents of a charge.

Therefore, every charge or count must be certain and should contain the following:

a. The name of the accused or defendant.

b. The date of the alleged offence.

c. Place of commission of the offence

d. Description of the offence for which the accused person is charged by law

e. The punishment section of the law which provides for the offence;

S. 201 and 203(1) ACJLK; Sections 147 and 148 ACJL, Lagos; Sections 194 and 378 ACJA, Garba v. State

NOTE: The Rule against ambiguity has no exception.

The objection to raise where a charge fails to specify the date, time or place where the alleged offence was committed is to raise the objection that the charge is in breach of the rule against ambiguity. (2009)

B. THE RULE AGAINST DUPLICITY S. 152 ACJL; S. 209 ACJA, S.216 ACJLK.

This rule addresses the counts in the charge sheet. It provides that every count in a charge sheet should contain only one offence.

Therefore, the essence of the rule is that if a person commits more offences than one, for instance 'assault and robbery', there will be two separate counts in the same charge sheet.

N.B – 2009 EXAM

The possible objection to raise where two offences are contained in one count is to challenge the charge as being in breach of the rule against duplicity.

NOTE the following points:

i. In the case of murder, if the person killed different persons, you must draft separate count for each of the persons killed; see ***Okeke v Police; Awobotu v. State; Adebayo v. State***.

ii. In the case of robbery or armed robbery, there should be different counts for each of the items taken in the course of the operation.

Exceptions to the Rule Against Duplicity:

a. **Use of Statutory Forms:**

Some of the Forms allow for the joining of two offences together i.e. offence of housebreaking, burglary can be joined with that of stealing where a person entered into a dwelling house unlawfully and stole there ***Willie John v. State*** **(August 2018 Q 3)**

Example: If "A" is accused of burglary and stealing in Lagos State, the two offences may be contained in a single count and the charge will not be bad for duplicity,

b. **Offence of General Deficiency of Money** –This exception is provided for under**, S. 197 ACJA, 148(2) ACJL.**

What this Section implies is that where a person is alleged with offences involving fraudulent or dishonest dealing with money committed over a period of time, the monies so misappropriated may be summed up and the person charged with stealing that gross sum instead of charging him distinctly for each offence of stealing. ***R. v Nwankwo***

NOTE:

1. the money must be in the same currency and must belong to the same person.

2. The charge must state the date of commencement of the offence and the date when it ended.

This exception applies to only misappropriation of money. It does not apply to other kinds of misappropriation such as goods. **R v. Aniemeke**.

c. **Identical Offences Committed in a Single Transaction–**Where an accused person is alleged to have committed offences of the same kind in a single transaction, he may be charged with the commission of all offences in one count; ***C.O.P v. Oyewusi***. For example rape and sexual assault.

d. **Overt Acts in an offence of treason or treasonable felony:** Overt acts in an offence of treason or treasonable felony may be charged together in a single count. See R. v. Omisade. Overt act means outward act, however innocent in itself, done in furtherance of a conspiracy, treason, or criminal attempt. An overt act is usually a required element of these crimes – R. v. Omisade.

N.B

A charge that is bad for duplicity does not necessarily invalidate the charge or the trial except it has occasioned a miscarriage of justice. See **Awobotu v. The State**

C. RULE AGAINST MISJOINDER OF OFFENCES

This rule relates to the entire charge sheet. As a general rule, it provides that every offence committed by an accused or defendant must be charged on a separate charge sheet. Section **152 ACJL – 209 ACJA – 216 ACJL Kano**. For example, if

a person is accused of committing the offence of manslaughter and rape, he must be charged in three charges sheets for each of these offences.

Exceptions to the Rule Against Misjoinder of Offences:

1. **Offences Committed Within 12 Months–Section 153(i) ACJL – 209(a) ACJA – 216(a) ACJLK** provides that any person accused of more than one offence, committed **within 12 months**, may be charged with **one or not more than three** of such offences in the same charge sheet. It is not necessary that the three offences were committed against the same person or in respect of neither the same thing nor that the three offences must be of the same kind. See ***Dau v. Kano Native Authority*.**

2. **Different offences committed in the course of the same transaction (it is an important exception for drafting of charges).**

   All offences committed by a person in the course of the same transaction may be charged together in one charge sheet but in different counts;**;** See **Section 153(iii) ACJL; Section 209 (c) ACJA – 216 (C) ACJL Kano.**

   This exception is the reason why for example during an armed robbery if any of the robbers killed, raped, and also stole money, all the offences will be charged in the same charge sheet but in the different counts for each since it was committed in the same transaction.

To come within this exception, the offences must be so connected as to form part of the same transaction. See ***Haruna & Ors v. State*. Thus the test requires a consideration of three factors namely**:

a. Proximity of time and place; or

b. Continuity of action; or

c. Community of purpose or design.

Therefore, there must not be a break in the chain of transaction; ***State v. Adamu***

Example: 'A' entered 'B's apartment in his absence, raped his daughter, Lynda and stole his car. He used the car to rob 'C' and while trying to escape, knocked down 'D' who died instantly. 'A' may be charged and tried on a single charge sheet in different counts for the offences of house breaking, rape, trespass to property, robbery and manslaughter

3. **Where a person is alleged to have committed different offences with same elements but constituted under different laws**, the person may be charged and tried for all the offences on the same charge sheet under different law. **S 212 ACJA S219 -222 ACJLK**; No corresponding provision in the ACJL.

Example: 'A', a taxi driver drove dangerously on the Lagos-Ibadan Expressway and had an accident whereupon one of the passengers died. 'A' may be charged for the offence of causing death by dangerous driving under the Federal Highway Act and manslaughter under the Criminal Code on the same charge sheet.

4. Where there is doubt as to which of the several offences created by law may be established by the existence of a single act or series of acts or omissions of which a person has been alleged, the person may be charged and tried on a single charge sheet for all or any one or more of such offences or any such offences in the alternative. See **Section 214 ACJA; 221 ACJL Kano – Azie v. The State [1973]**. (No similar provision in Lagos Law).

Example: 'Y' is accused of series of acts which may amount to sexual harassment, indecent assault and rape. If the prosecutor is in doubt as to which of the three

offences the series of acts could establish, 'Y' may be charged and tried on a single charge sheet for all the offences in the alternative.

D. RULE AGAINST MISJOINDER OF OFFENDERS

This rule relates to the individuals who committed the offence. As a general rule, every person who is accused of an offence must be charged and tried separately for the offence alleged against him; **Sections 208 ACJA and 151 ACJL**.

EXCEPTIONS

Just like misjoinder of offences, the exceptions to the rule against misjoinder of offenders are very important for the purpose of your exam. The exceptions are:

1. When two or more persons jointly commit an offence, all may be charged in the same charge sheet and in the same count for that offence. Section 208 ACJA; Section 151(a) ACJL – Section215 ACJL Kano – **Okojie v. C.O.P**

2. **When two or more persons commit different offences in the course of same transaction**, all may be charged together in the same charge sheet but under different counts. **Section 208 ACJA – Section 151(a) ACJL; Section 215 ACJLK**

NOTE: For this exception to apply, the offences must form part of their common intention. For instance, where two or more persons decides to commit armed robbery, if one of them killed, another slapped the owner of the house while another broke down the gate, they will all be charged together because each of those acts will help them succeed in the armed robbery.

However, if during the course of the robbery, one of them decides to rape, although it will be in the same charge but only the person who raped will be charged for rape because it is not connected to their common goal.

The test of what amounts to 'course of the same transaction as laid down in **Haruna v State** :

i. proximity of time and place,
ii. continuity of action and
iii. community of purpose or design relative to the particular acts…thus in order to constitute same transaction, all the acts from the very beginning should be either in contemplation or should form the component parts of a whole

3. **When a person is accused of committing an offence and another of abetting or being an accessory to or attempting to commit such offence**, the accused persons may be charged and tried together on the same charge sheet but under different counts. See S.151(b) ACJL – S.208 (b) ACJA – 215(b) ACJL Kano – **Patrick Njovens v. The State .**

   Example: 'A' being aware of 'B's escape from a lawful custody provides 'B' with shelter to shield 'B' from arrest, both 'A' and 'B' may be charged together for the offences of screening and escape from lawful custody respectively on the same charge sheet but under different counts.

4. **When a person is accused of any of the offences of theft, criminal misappropriation or criminal breach of trust and another person of receiving or retaining or assisting in the disposal or concealment of the subject matter of such offence**, the accused persons may be charged and

tried together on the same charge sheet but different counts. See S.151 (b) ACJL; S.208(e)&(f) ACJA; 215(e) ACJL Kano; **Patrick Njovens v. The State.**

Note: Power of Court to order separate trial on application by defence despite these exceptions. See Mailayi v. The State (1968).

EFFECT OF BREACH OF THE RULES OF DRAFTING CHARGES

Generally, mere breach of any of the rule of drafting a charge will not vitiate the trial unless the defect or breach led to miscarriage of justice, ***Ogunjobi v FRN,*** **. Therefore if** the accused person was misled or prejudiced in his defence or he was by reason of the breach not sure of what charge he was to face, the trial will be set aside; ***Okeke v Police,*** **Section 220 ACJA – 158 ACJL – 227 ACJL Kano.**

DEFECTIVE CHARGE

A charge is defective if it fails to conform to any of the rules of drafting charges.

NOTE: **A conviction upon a defective charge will be set aside only if the defect in the charge led to miscarriage of justice;** ***Ogbomor v. State,*** **, Section 220 ACJA – 158 ACJL – 227 ACJL Kano.**

OBJECTION TO A DEFECTIVE CHARGE (MCQ, August 2018 Q 2a)

defendant may raise objection to a defective charge immediately upon arraignment (i.e. when the charge is read) **but** before taking of plea. – See Section 221 ACJA, S.228 ACJLK **.** Failure to so raise an objection on time, the defendant is deemed to have waived his right – **Allintah v. FRN.**

In **Obakpolor v. The State**, the Court held that objection to a defective charge should be made immediately after the charge is read over and explained to

defendant because pleading to such a charge is a submission to jurisdiction, if the defect does not deprive the court of its jurisdiction.

How to Object a Defective Charge

1. The defendant can file a **MOTION ON NOTICE supported by AFFIDAVIT stating grounds for the objection + WRITTEN ADDRESS**– See **Obakpolor v. State.**
2. The defendant can file a Preliminary objection stating his grounds of objection.

Grounds for Objecting to Defective Charge

1. Charge contains an offence not known to law.
2. The charge violates fundamental rules of drafting charges.
3. If the defendant has once been acquitted or convicted of the same offence.
4. Where the defendant is immune from criminal prosecution. See Section 308 CFRN and Tender Age.
5. If the proof of evidence and witness statement discloses no link of the charge to the defendant –**Abia v. State**.

AMENDMENT OF CHARGES

A charge may be amended any time before judgement. **Section 216 (1) ACJA**.

S.155 (1) ACJL,

The purpose for the amendment may be for adding, varying or curing a defect in the charge. A charge may be amended on the day reserved for judgment; ***Duru v. COP***

Who has the authority to amend.

1. **The person who drafted the charge:** Note that in the South, the Police or the Law Officer as the case may be, is authorized to charge any person before a court and may therefore amend such charge. See **The State v. Chief Magistrate Mbaise Experte Onukwe**. if the amendment is after the commencement of the trial, it has to be by the leave of the court.

2. **The court can also amend a charge upon which an accused is tried before it.** In the North and Abuja , the magistrate essentially frames the charge and reserves the right to alter it or frame a new one. **S.129(10) ACJLK, S.216 ACJA Nigerian Airforce v. James.**

The courts before which the charge is brought can suo moto amend the charge upon which the defendant is to be tried. Section 216 (4) ACJA.

The Court is right to grant an amendment to a charge as a Court has powers to amend a charge by addition, deleting, alteration and even substitution of a defective charge with a new charge **State v Olatunji. (August 2011)**

The new charge should merely continue the life of the original charge. It must bear the same charge number and be against the same defendant(s). It cannot be an independent separate charge, co-existing with the original charge. See State v. Chief Magistrate Mbashi. See Okwechime v. The Police.

The court should not permit the amendment of a charge if it will cause injustice to the accused. R v. Jennings.

PROCEDURE FOR AMENDMENT OF CHARGES: The procedure to be adopted depends on whether the amendment is coming before arraignment or after arraignment; **(January 2020 Q 1B, March 2021)**

Amendment to a charge can be done even before the accused person is arraigned in court. In such instance, the **leave of the court is not required** to amend a charge if the accused has not been brought to court or he has not pleaded to it. ***See Uguru v. State*.** The prosecution can simply amend it without formalities.

Amendment of a Charge after Arraignment: Sections 219 ACJA and 155 ACJL

The Prosecution may amend the charge after plea or during trial. The judge *suo motu* can order the prosecution to amend the charge.

PROCEDURE

Once the trial has commenced, the prosecution if he seeks to amend the charge will make a formal application for leave of court to amend. The application will be **MOTION ON NOTICE**, supported with A**FFIDAVIT** (Stating the reasons for the amendment and exhibiting the proposed amendment) and a **WRITTEN ADDRESS.**

NOTE: In Magistrate Courts, an oral application for amendment may be granted especially where the amendment is not substantial**.**

Conditions for Grant Amendment of Charges

The court will grant the amendment if:

1. The amendment will cure the defect.
2. The amendment is not intended only to bring the offence charged within the jurisdiction of the court – ***R v. Jinadu***
3. The amendment will not cause injustice to the accused person
4. The application is not frivolous or amounts to a breach of court process.
5. The amendment relates to the earlier charge**;, *Elumelu v. IGP State v Chief Magistrate Abo-Mbaise***

NOTE: instead of granting the amendment, the court may order the prosecution to draft a new or fresh charge.

Failure to Amend a Defective Charge

the appellate court will set aside a conviction based on a charge that is fundamentally defective, **EXCEPT** before judgement there was amendment. See **Okeke v. The police**. See also Dr. Clement Isong v. A.G Federation.

On the other hand, some defects are regarded **as minor** by the courts. Such defects are incapable of misleading the accused person and failure to amend such charges are usually overlooked by the courts, does not permit the acquittal of an otherwise guilty accused person upon fanciful errors contained in the charge. **Duru v. The Police** , **Ogbodu v. The State**.

POST AMENDMENT PROCEDURE - YOUNGMAN v COP, JONES v COP

This is mostly asked as Q 1B in the exam. See the following past questions: **(April 2017 Q 1B, August 2017 Q 1Biii, April 2018 Q 5f, April 2019 Q 1B, August 2018 Q 1B, Jan 2020 Q 1B, March 2021 1 e).**

The procedure to be complied with by the trial courts after a charge has been amended before proceeding with the trial is as follows:

1. The new charge shall be read and explained to the defendant and he shall be asked to plead to the charge. See Sections 156 & 157 ACJL, Lagos; S.216(2) ACJA, S.**223(3) ACJLK,**
2. The court shall ask the defendant if he's ready to be tried on such charge. Section S.217(1) ACJA, S.156(2) ACJL (ABSENT in KANO)
3. Either the defendant or the prosecutor shall be given an **adjournment** where if proceeding immediately with the trial shall prejudice the defendant in his defence or the prosecutor in the conduct of his case. S 36 (6) (B) CFRN, S.218 ACJA – Section 156 (3) ACJL, ***Gokpa v. IGP*** *(This is* NOT AVAILABLE IN KANO)
4. The Court shall endorse a note for the order for amendment on the charge. See Section 218(2) ACJA – Section 156(4), **S.225(2) ACJLK**
5. Both parties shall be allowed to recall or re-summon any witness who may have been examined in connection to the amended charge. See–Section 219 ACJA, S.157 ACJL, **S.226 ACJLK**, ***Adisa v. A-G Western Nigeria***

NOTE

where the defendant is unrepresented by counsel, the court must specifically inform him of this right. If he is represented, the court is not obliged to inform him

EFFECT of Non Compliance with Post Amendment Procedure

renders the trial **null, void and of no effect.** The appeal court, on appeal against conviction will set the conviction aside. See **Ayodele v. The state. However, where there are sufficient evidence at the trial, the appellate court may order a retrial.** See Echeazu v. The COP

POSSIBLE EXAM QUESTION ON AMENDMENT

1. **Assuming the prosecution amended the charge in the course of the trial, state the steps the court will take before continuing with the trial.**
2. **As the defence counsel, when are you supposed to raise objection to a defective charge.**
3. **State 3 factors the court will consider in granting an application for amendment.**

CHAPTER SEVEN

BAIL PENDING TRIAL

One of the constitutional rights of every Nigerian is the right to personal liberty. Therefore, a defendant/accused is entitled to bail pending the determination of his trial. Bail pending trial is granted based on the presumption of innocence in favour of an accused person.

The essence is to give the defendant/accused enough time to prepare for his defence; **section 115 ACJL; 161 ACJA**

Power of the Court to Grant Bail

All offences are bailable. The court is vested with power to admit defendant to bail pending trial. Section 158 ACJA, *S.168 ACJLK*, Section 115 (1) ACJL.

It is based on the discretion of the court which must be exercised judicially and judiciously. See Ukatu v. COP, **BAMAIYI v STATE.**

Time to Apply for Bail Pending Trial

Generally, bail granted by the police during investigation automatically **e**lapses immediately upon arraignment of an accused in Court. Therefore the best time for

the defence counsel to apply for a fresh Bail is immediately after arraignment. **(August 2019 Q 5b)**

What offences are bailable and which are not bailable. may 2011 no 4b (2)

The Court cannot grant bail in capital offences **EXCEPT** if it appears to the Court that there are not reasonable grounds for believing that the accused has committed the offence, but there are sufficient grounds for further inquiries.

For felonies (not punishable with death) the Courts may grant bail to a person charged with such offences.

For misdemeanors and simple offences, the Court shall grant bail to such persons except the Court sees reason to the contrary.

Circumstances When Court Bail May Be Granted In Nigeria

This depends on the nature of the offence as follows:

1. **Simple Offences and Misdemeanours:**

Simple offences are offences which punishment is less than **Six Months** imprisonment while a misdemeanour is any offence which **punishment is above 6 months but less than 3 years**. **If an accused is charged with any of the above, the** Court **shall** grant bail EXCEPT it sees good reason not to; **S. 115 (3) ACJL, S. 163 ACJA**.

2. **Felony:**

This includes any offence which **punishment is three Years or above**. In such **cases,** the court **may grant** bail; so it is at the discretion of the Court**. S. 115 (2) ACJL, 162 ACJA.** Such discretion of the court must be exercised judicially and judiciously.

3. **Capital Offences:**

This includes all offences punishable with either life imprisonment or death sentence. In capital offences bail is hardly granted to the accused unless there are special circumstances; **S. 115 (1) ACJL, S. 161(1) ACJA S. 35(7) (a) CFRN.**

An applicant for bail on capital offences must show special circumstances-see ***Abacha v. State, Olugbosi v COP*.**

The Special circumstances for grant of bail in capital offences include: (Exam Focus) - Section 171(3) ACJLK, and section 161(1) & (2) ACJA

1. On grounds of severe ill health- ***Fawehinmi v State*;**

   The defendant must show that the detaining authority do not have the medical facilities to take care of his illness

2. extra-ordinary delay in the investigation, arraignment and prosecution of the accused exceeding 1 year (**KANO provides for 2 years**) will entitle him to bail.
3. Any other circumstances that the Judge may, in the particular facts of the case, consider exceptional.

4. When the proof of evidence does not link the accused person with the crime- ***Abacha v. State***

5. Where a defence of **alibi** has been satisfactorily investigated.

NOTE: Where two or more defendants charged together apply for bail engaging one Counsel, they must do it separately because bail is personal. Separate affidavits and written addresses should be filed**.**

Modes of Application for Bail Pending Trial (see August 2019 Q 3d)

The Magistrate Court

It is usually made orally after the plea of the defendant, unless otherwise directed by the presiding officer. This is the procedure applicable in all jurisdictions in Nigeria. See Dogo v COP

- **High Court in The South/Lagos: Simidele v COP, State v Uwah**

Application is by SUMMONS/MOTIONS + AFFIDAVIT + WRITTEN ADDRESS

- **High Court in The North - Tanko v COP**

Application is by MOTION ON NOTICE + AFFIDAVIT + WRITTEN ADDRESS

- **High Court In Abuja, Section - Tanko v COP**

Application is by MOTION ON NOTICE + AFFIDAVIT + WRITTEN ADDRESS

- **The Federal High Court -** Section 158 ACJA

Application is by SUMMONS + AFFIDAVIT + WRITTEN ADDRESS

- **The National Industrial Court - S.254F (1) & (2) CFRN, 158 ACJA**

Application is by **SUMMONS + AFFIDAVIT + WRITTEN ADDRESS**

NOTE:

An application for bail at the Magistrate and High Court can be made **ORALLY** although it is subject to discretion of the court. So bail cannot be refused on the ground that it was made orally; ***Abiola v. FRN*; (August 2018 Q 3(4)).**

Where the Prosecution is absent and the Court is satisfied that the Prosecution has been served with a bail application by the Defense, the Court can take the bail application in the absence of the Prosecution**. May 2011 No 5**

N.B – Exam focus, can be asked to

Draft counter affidavit in opposition to a bail application August 2011 No 6a

Re-draft counter affidavit in opposition to a bail application May 2012 No 3

How to move motion for bail 2009 No 2(i)

A party/Prosecution is entitled to oppose an application without filing an affidavit if his opposition is on points of law. – **2009**

Factors for the Grant or Refusal of Bail/What court considers (see January 2020 Q 2f) 🔄

A court in granting or refusing bail will put into consideration the following factors:

1. The availability of the defendant to stand trial. **See Bamaiyi v State**. (whether or not he will jump bail).
2. The Nature of the Offence and the Punishment Prescribed. **Abacha v State**
3. Character of the Evidence Against the Accused. Abacha v State
4. The Prevalence of the Offence. **See Felix v. State, Ajudua v. FRN**.
5. The Criminal Record of the Accused, ***Ajudua v. FRN*.**
6. The Possibility of the Accused Interfering with further Investigation and/or Prosecution of the Case if Granted Bail; **See Bamaiyi v State**.
7. Detention for the protection of the Defendant. **Bamaiyi v State**.
8. The likelihood of the Defendant Committing any Offence while on Bail. *See **R. vs. Jammal***

9. Ill-Health. ***See Abacha v State, Fawehinmi v State***.

The **affidavit in support** of the bail **for ill- health must show**: **Ofolue v The State**

a) That the ill-health may affect other inmates where the applicant is detained,
b) Cogent and positive medical report by an expert pointing irresistibly to the existence of the illness (preferably a government hospital) S.161
c) The detention centre lacks adequate medical facilities to treat the applicant ailment.

See State v Bamaiyi, Ajudua v State, Abacha v State Fawehinmi v. State **(one or two of these cases will suffice).**

The court must not refuse the defendant bail as a punishment. See **Dogo v. The COP** this is because the defendant is usually presumed innocent until his guilt is proved. See **Eyu v. The State, S. 36 (5) CFRN**

TERMS /CONDITIONS/ SECURITY FOR BAIL

This refers to the conditions to be fulfilled by the accused in order to secure the bail. It is used to guarantee the attendance of the accused that is on bail.

The terms must not be onerous but at court's discretion and bail is not to be refused as a form of punishment to the defendant. See **Dogo v COP Section 165 (1) ACJA; Section 116 (1) ACJL, *S.175 (1) ACJLK*. - 2009**

1. **Self-recognizance:**

   Bail may be granted on this term when the person applying for bail appears to be a person of repute and the court reasonably believes that such person will appear to face his trial or jump bail.

2. **Defendant executing a bond:**

   the court may make an order for the execution of bond for a fixed sum before the applicant for the bail will be released from custody. The bond is an undertaken by the applicant that he will appear to face his trial. Where the applicant fails to appear as at when due, the sum in the bond may be forfeited, the bail revoked and bench warrant issued for his arrest. **S.184 ACJA.**

3. **Defendant Producing a surety to execute a bond in a specified sum**. See **118(1) ACJL; *S.177 (1) ACJLK* 167 (1) ACJA:**

   court may require an applicant for the bail application to produce a surety/surety Such surety/sureties are to execute a bond in a specified sum in favour of the State which is an irrevocable undertaking to forfeit the sum stated in the event that the applicant jumps bail, unless he shows good reason why he should not be made to forfeit the sum

4. **Deposit of money in lieu of bond**. S.**116 (2) ACJL, 165(2) ACJA**; ***Onuigbo v. Police:***

   The court may suo motu direct an applicant for bail to deposit money in lieu of entering into a bond. The applicant could also make such a request and the court will consider it especially where the applicant may find it difficult to get a surety. Where such money is deposited, it must be kept in an interest yielding account or be handed to the court registrar. S.136 ACJL; S. 185 ACJA.

NB

Upon the grant of bail by the court and subsequent fulfilment of the bail conditions, the court will immediately issue a written order of release to the officer

in charge of the prison or such other place of detention which will facilitate the detainee's immediate release. **See s. 171 ACJA; S. 124 ACJL.**

REVIEW OF THE TERMS OF BAIL (Exam Question)

In granting bail, the amount of bail to be taken in any case shall be fixed with due regard to the circumstances of the case, status of the defendant and shall not be excessive. **Section 175(1) ACJLK, S. 116 (1) ACJL** and **S. 165 (1) ACJA.**

A Judge of the High Court have the power to vary bail terms and Any court that grants bail, also has the power to vary the terms. See **Section 168 & 173 (2) (a) ACJA;** ***S.178 & 183 (2)(a) ACJLK*** **Section 120 ACJL.**

Where bail is granted on an onerous or excessive condition, the accused or defendant may **apply to the same court** for review or to **apply to a higher court**.

For example, an accused person granted bail by a **Magistrate Court** on **onerous terms** may apply to the same Magistrate court or to the **High Court** for a **review** of the terms of bail–***Eyu v. State***.

Procedure For Variation/Review Of Bail Terms

Motion on Notice/Summons + Affidavit + Written address.

Option available after ruling granting or refusing bail 2009 No 2(g)

For a ruling granting bail to an accused, both or either the Prosecutor and the defendant can appeal against the ruling and apply for the variation of the bail conditions.

But the Prosecutor should generally not appeal against the grant of bail as his duty is to prosecute and not to persecute. **Rule 37(4) RPC.**

CAN A MAGISTRATE COURT GRANT BAIL IN CAPITAL OFFENCE?

Magistrate Court cannot grant bail in capital offences. See **S.161 (1) ACJA, *S.171 (1) ACJLK* - S.115 ACJL**, ***State v. Ozuzu***

In the North, Judge of Upper Sharia Court can grant bail in capital offences. *S.171 (2) ACJLK*.

NOTE:

that once a court has refused to grant bail, application for bail should be filed at a higher court, not in any court of the same co-ordinate jurisdiction. See **The State v. Uwa**

Procedure For Bail Application at High Court After Refusal by Magistrate Court: **(Important Exam points**)

1. If bail is refused by Magistrate Courts in the South/Lagos, the defendant counsel will **APPLY** to the High Court for bail by way of **SUMMONS** supported by **AFFIDAVIT and a WRITTEN ADDRESS**; ***Simidele v. COP*** **(August 2017 Q. 4B).**
2. If bail is refused by a Magistrate Courts in the North (Kano) you can also apply to the High Court by way of **MOTION ON NOTICE** supported by **AFFIDAVIT and a WRITTEN ADDRESS; *Achadu v. State; Tanko v. State.*** The affidavit must equally evidence the certified true copies of the charge sheet and certified true copies of the Ruling of the lower court refusing the bail application. See **Offiong v. The C.O.P**

Note: it's a fresh application, not an appeal. See Achadu v State, *Ss.168 & 178(b) ACJLK*, Section 119 ACJL – Section 158 & 168(b) ACJA.

The Summons or Motion for bail to the High Court when refused by a Magistrate will be supported with:

a) An affidavit

b) Certified True Copy of the Charge Sheet

c) Certified True Copy of the ruling of the Magistrate refusing to grant bail and

d) A written address

3. Where bail is refused by the High Court in both North and South, the defendant/accused will **APPEAL** against the refusal to the **Court of Appeal within 14 days** **by:**

a. Filing a notice and grounds of appeal

b. Compilation and transmission of the record of the lower court refusing the application

c. Filing the brief of argument ***Kanu v FRN*****,** ***State v Uwah*** **(August 2019 Q 2b)**

Effect of Failure to Attend Court While on Bail

Where an accused that is on bail fails to attend court without a just cause, the Court may take any of the following decisions:

a) Revoke his bail.

b) Issue a bench warrant for his arrest.

c) Order the forfeiture of the bail bond.

d) Order surety to pay the said sum.

REVOCATION OF BAIL

1. Where the defendant deliberately fails to keep to the terms and conditions of the bail after being released on bail. In such scenario bench warrant may be issued for his arrest Also the bail bond will be forfeited. See **S.184 ACJA; S.139 ACJL;**

2. Where the bail was granted by an appellate court pending appeal, it remains in force until the determination of the appeal before it becomes automatically revoked.

2. Where a defendant on bail by a Magistrate is indicted by a law officer for an offence not bailable by a Magistrate court, the magistrate shall issue a warrant for the apprehension of the defendant. **S. 127(1) ACJL, S. 169 & 175 ACJA;**

3. Where surety applies to be discharged, the defendant will be detained until he gets another surety. See Section 177 ACJA; S.129 ACJL; ***Caleb v. F.R.N.***

4. Where the surety dies. See **Section 178 ACJA; Section 130 ACJL**

5. bail by the Police, such bail is automatically revoked upon the arraignment of the suspect in Court, or breach of conditions by the police

6. where bail was granted by the Court pending trial, such bail remains until the determination of the case against the defendant/accused by the Court or the bail condition is revoked

Eligibility Of A Woman To Stand As Surety – March 2021

Denial amounts to discrimination under **Section 42 (1)(a) CFRN. See s.167 (3) ACJA; *S.177 (3) ACJLK*, s.118 (3) ACJL.**

Every sane person, an adult, a responsible person is eligible to stand as surety unless such person is disqualified by the court so to do based on the circumstances of the case. Therefore, the discrimination against women is misplaced and unconstitutional.

There is no law in Nigeria prohibiting a woman from standing as a surety either at the police station or in the court The ACJL Lagos and ACJA expressly prohibits such attempt to stop a woman from standing as a surety.

N.B- May 2012 No 2 (iii)

The duty of a defence counsel is to prosecute the case of his client by all fair or honorable means, but is not allowed to stand as surety for bail. **Rule 37(1) RPC** expressly forbids a lawyer from standing or offering to stand bail for a person he is defending or appearing for. Therefore, it is inappropriate for a Defence Counsel to stand surety for an accused.

APPLICATION FOR DISCHARGE BY A SURETY

A surety may apply to be discharged from his surety-ship or surrender the accused to the court before the date assigned: ***Onyebuchi v. FRN***

Where this happens, the accused shall be detained until he gets another surety, else he would remain in detention until the trial is determined.

BAIL PENDING APPEAL

A convicted person who has appealed against his conviction may apply to be released on bail pending the determination of his appeal.

The grant of bail is now at the Court's discretion and not as of right. ***Kuti v. Police***

CONDITIONS FOR THE GRANT OF BAIL PENDING APPEAL

The Appellant is required to show **EXCEPTIONAL OR SPECIAL** circumstances why bail should be granted. ***Ajayi v. State***

At this stage, the appellant is a convict, and has lost the presumption of innocence guaranteed by the Constitution.

The exceptional or special circumstances may include:

1. Where the applicant will be of assistance in the preparation of the real case for the appeal or The real case is so complex that constant consultation between the convict and his counsel is required for the preparation of the appeal; ***R. v. Starkie***

2. Where a sentence is manifestly contestable, refusal of bail in such circumstances could inflict a greater injury on the applicant who may well have served an illegal sentence. ***Fawehimi v. State***

3. That the duration of appeal may out last the duration of the sentence; ***Okoroji v. State, Madike v. State***

4. Where to refuse the application will put the applicant's health in serious jeopardy, e.g. a hypertensive patient who needs constant medical attention and who cannot be attended to in custody. See **Fawehinmi v. The State, Chukwunyere v. The C.O.P.**

5. Where the appellant was granted bail in the course of trial and he did not jump bail. See **Munir v. F.R.N**

6. Where the appellant is a first-time offender. See **Buwai v. State**

PROCEDURE FOR APPLYING FOR BAIL PENDING APPEAL

The application is made by a **MOTION ON NOTICE** to be supported with**:** **Aroyeun v COP**

1. Affidavit showing special circumstances for its grant
2. CTC of the Notice of appeal.
3. CTC of the judgment of the Court convicting him

N.B

Where two or more defendants are jointly tried and convicted, even where they are represented by the same counsel, it is important that separate motion paper and affidavit be filed for each of the applicants. **Afigbu v. C.O.P**.

Where however the counsel elects to file one motion paper for two or more applicants, yet the applicants must depose to separate affidavits.

NOTE: The application is first made to the **trial** court and if refused it can be made to the **appellate court**; ***Offiong v. COP***

POSSIBLE EXAM QUESTIONS ON BAIL

1. **Assuming counsel for defendant filed a motion ex parte for bail, comment on the propriety or otherwise of the mode of application.**

Answer: The mode is not proper. It ought to be by motion on notice or summons**.**

2. **Comment on the competence of the mother to the accused standing as surety for his bail.**

   Answer: Every adult whether male or female can stand as surety for bail.

CHAPTER EIGHT

CONSTUTIONAL SAFEFUARDS FOR FAIR TRIAL

In the course of the trial of an accused or defendant, the court is enjoined to observe all the rights guaranteed under chapter 4 of the constitution particularly under section 36(1-12) of the Constitution as amended.

(**Take note of this rights and how each one applies it usually appears in Bar Final see August 2017 Q5, April 2018 Q2 &3, August 2018 Q2 & 6a, August 2019 Q5d, Jan 2020 Q 5(5), Dec 2020 Q 2e, 5c**)

The constitutional safeguards to ensure fair trial of an accused or a defendant in Nigeria are as follows:

1. **Right to Fair Hearing. See S. 36 (4) CFRN**

   The right to fair hearing is otherwise known as the principle of natural justice. It entails that both parties in a criminal trial shall be given equal opportunity to be heard and the Judge should avoid any act which is likely going to lead to bias. Therefore, where the judge has any interest in the trial, he should not try the accused.

   Exceptions to the Right of Hearing

Where an accused/defendant was availed the opportunity of presenting his case or defending same and he wilfully refused or decides to remain silent, he cannot complain later that he was not given fair hearing: ***Igabele v. State***

2. **Right to be Presumed Innocent until Proven Guilty: S. 36(5) CFRN Tulu v. Bauchi:**

   Every person charged before a Court of law for any offence shall be presumed innocent until he is proved guilty. Therefore the onus is on the prosecution to prove the guilt of the accused beyond reasonable doubt.

   There are however **exceptions** to this general rule under **section 139 (3)(c) Evidence Act** in respect of insanity or facts within the knowledge of the accused person.

3. **The Right to be informed of the Crime allegedly committed.S. 36(6) (a) CFRN**: This is to u the accused prepare adequately for his defence. A breach of the above provision will render trial a nullity-***Yahaya v. State***

NOTE:

If the accused is convicted for a lesser offence flowing from the offence he is actually charged with; he is deemed to have had notice of it as he had notice of the greater offence charged with. ***Nwachukwu v State; Maja v. State***; **S.171 ACJL**

The effect of the foregoing principle is that it is no violation of the fundamental human rights not to inform the defendant of lesser offence for which he is convicted if he is informed of a graver offence. See **Uguru v. State**

4. **Right to Adequate Time and Facilities to Prepare for His Defence. - S. 36(6)(b) CFRN. (Exam focus)**

An accused person is entitled to be given adequate opportunity to enable answer to the alleged offence during the trial.

In this area, the court should grant adjournment to the defendant, either to obtain the service of a counsel where necessary or call a witness that will be material to his case; ***Udo v. State; Yanor v. State.*** It is wrong for the court to refuse a reasonable request for adjournment; (**see Jan 2020 Q 5(5) & Dec 2020 Q 2e).**

Once the trial is a capital offence and counsel to the defendant is not in court, the court must adjourn the case**;** ***Udo v. State Eze v FRN***

Where a witness is absent and an adjournment is sought, it has been held that the defendant should normally satisfy the court that: **Yanor v State**

(a) the witness is material to his case
(b) The, the defendant, has not been guilty of neglect in procuring the witness to attend;
(c) there is a reasonable expectation that he can procure his attendant for a certain date

NOTE:

Where a counsel is absent (and the offence is not a capital offence) and there is no reasonable explanation for his absence, a court may properly refuse an adjournment **Omega v State**

The court may refuse to grant unreasonable request for adjournment especially where the defence is using it as a ploy to delay justice.

Also, the accused is to be given copies of the Charge, statements of the witnesses and proof of evidence by the Prosecution; ***Gokpa v. IGP***

5. **Right to a Counsel of His Choice- S. 36 (6)(c) CFRN, JOSIAH v STATE, UZODINMA v COP**

An accused person is entitled to be represented by a counsel of his choice. Therefore an accused or defendant cannot be denied the right to counsel of his choice neither can a counsel be imposed on him if he chooses to defend himself; ***Uzodinma v COP***.

Where the accused is brought before the court without representation, the court must inform him that he has a right to be represented by a counsel. Such rights are not waivable. **Okon v State**

NOTE: exam focus 2012

In all capital offences, legal representation **is mandatory**. **Therefore e**ven if the defendant cannot afford a counsel, the court must provide one for him at the expense of the state or direct him to legal aid; ***Josiah v State***;

6. **Right to Cross Examine Prosecution's Witnesses**; **S. 36(6) (d) CFRN, *Tulu v Bauchi Native Authority***

In criminal trial, the defence must be allowed to cross examine all the witnesses called by the prosecution. The accused may do so in person or through his counsel if he has one**.**

NOTE: Where counsel to the accused is not available to cross examine the prosecution witness, the court should adjourn the case in order to enable the defence counsel to attend. The court should not compel the accused to do so in person unless he so desires.

In *Tulu v Bauchi Native Authority*; the prosecution called many witnesses. The Court did not allow the accused to cross examine any of the prosecution's

witnesses. Instead the judge put several questions to the witnesses. It was held that this was a gross violation of the constitutional right; **(see April 2018 Q 2bii)**

7. **Right to an Interpreter. -S. 36(6) (e) CFRN (always asked in exam).**

Where a defendant informs the court that it does not understand English, the court is bound to provide an interpreter for the defendant at the expense of the court. Where incompetent to interpret satisfactorily, the convictions will be set aside **Ajayi v Zaria Native A**uthority

NOTE THE FOLLOWING EXAM POINTS:

1) The interpreter must be sworn on oath and must either be the Registrar or any other officer of the court**.**

2) The interpreter must be competent in both English and the language of the accused, see ***Ajayi v. Zaria Native Authority;***

3) The interpreter must interpret whatever is said in the trial, sentence by sentence. He should not wait until everything is said and just interprets in summary -***Zaria Native Authority v. Bakari***

4) Failure to provide an interpreter when needed, the trial will be null and void. The accused's conviction will be quashed and a re-trial ordered.

5) It is the duty of the defence counsel to inform the court that the accused does not understand English**;** ***State v. Gwonto***

6) Where the defendant understands Pidgin English (although not the language of the court), he will be deemed to understand English and therefore requires no interpreter**;** ***Olanipekun v State*****.**

8. **Right against trial and conviction on a Retroactive Legislation S. 36(8) CFRN**

This right can be interpreted in two ways; which is:

a. That a defendant shall not to be punished for an act/omission which was not an offence as at the time it was committed**; (see April 2018 Q 2c)*; Bode George v. FRN*;**

b. That a defendant shall not be penalised with a heavier punishment than that in force at the time the offence was committed; see ***Egunjobi v. FRN*,**

9. **Right to only one trial for an Offence. -S. 36(9) CFRN (Right against double jeopardy):** A person cannot be tried twice for an offence which he has earlier been tried and either convicted or acquitted. This is also known as defence of ***autre fois acquit*** and ***autre fois convict*; *Nafiu Rabiu v State*. (see Dec 2020 Q 5c, April 2018 Q 2b (i-ii))**

The defendant must raise the objection to double trial timeously at least before taking of plea- ***State v Dushi***

The Conditions for Raising and Succeeding On the Bar Pleas: **(Bar Final April 2018, Q 2biii).**

In order to succeed, the defendant must show that:

a) The first trial was done by a competent Court of criminal jurisdiction; **see *Umeze v. State*** where plea was rejected because the first trial of murder was tried at magistrate court.

b) The new charge must be for the same offence or offence having same ingredients with the first or previous offence**: *R v Jinadu; Edu v. COP***

c) The defendant was either convicted or acquitted after the first trial.

10. **Right against Trial for an Offence Already Pardoned-see section 36(10) CFRN**: where a person has been granted pardon for an offence either by the Governor or the President, such a person cannot be tried again for that offence. ***Falae v. Obasanjo*, *Okongwu v State*.** The burden of proving that a convicted person was pardoned is on the convict.

Effect of Pardon

a. A convict who has been pardoned will no longer serve the penalty imposed on him.
b. A convict who has been pardoned is free from the legal disabilities of a conviction. He is not an ex-convict-***Falae v. Obasanjo***

11. Right to Remain Silent. -S. 36 (11) CFRN.

An accused is a competent but not compellable witness for the defence; **S. 180 E.A.** therefore he may elect to remain silent and avoid answering any question.

NOTE: It is not advisable for the accused to remain silent where there is a prima facie case against him. This is because the court for draw all necessary inference from the silence and may convict him based on the evidence of the prosecution if it's sufficient**; *Babalola v State; Igabele v State***

12. Right to be tried only for an offence known to Law.-S. 36 (12) CFRN:

The offence an accused is charged with and its penalty must be prescribed by Law. **AGF v Clement Isong** Therefore, a person shall not be tried for an un-existing offence; ***Aoko v Fagbemi***

13. **Publicity of Trial (right to be tried in public) S. 36(3) & (4) CFRN** provides that criminal trials are to be held in open court where the public can have free access**;** ***Edibo v State.***

Exceptions: trials may be conducted in chambers or in exclusion of the public for the following reasons:

i. In the interest of public defence, public safety, public order or public morality; ***Tokunbo v FRN; Mandara v AGF***

ii. When a minor is to give evidence in the case of an offence, which is contrary to decency or morality.

iii. When it is considered necessary due to special circumstances to protect the private lives of the parties to the proceedings.

iv. The trial of juveniles is not opened to the members of the public.

CHAPTER NINE

TRIAL I-ATTENDANCE OF PARTIES AND ARRAIGNMENT

This is one of the most important topics in criminal litigation. Therefore under this topic, the important subtopics are:

1. Presence of the defendant at trial
2. Presence of the defence counsel and the prosecution.
3. Arraignment.

PRESENCE OF THE DEFENDANT AT TRIAL (August 2019 Q 1B)

There is no trial in absence of an accused in Nigeria: ***Adeoye v. State***. Therefore, the defendant **MUST** be present at all times during his trial. **S.268 ACJLK, S. 266 ACJA, S. 208 ACJL. Trial in absentia is invalid**

Exceptions Where the Defendant may be tried in His Absence:

1) Where he misconducts himself in the Court or makes his trial in his presence impracticable/impossible
2) At the hearing of an interlocutory application (ABJ & KANO)
3) Where he has pleaded guilty in writing and or appears in court and pleads guilty through his counsel represented by a counsel on a **Charge whose penalty does not exceed N10, 000.00 fine or 6 months** imprisonment or both **section 135 ACJA**
4) the Court can also dispense with the presence of the defendant if he is of unsound mind. **Lawrence v. The King**

NOTE: If during the trial, the defendant failed to attend on an adjourned date, the court may do any of the following**:**

a. Issue a Bench warrant for his arrest if he is already on bail.

b. Issue a production warrant to the Correctional centre officers to bring him to the Court if the accused is in a Prison custody.

c. Revoke his bail if the accused has been admitted to bail.

d. Adjourn the case if tangible reason was given.

ATTENDANCE OF COUNSEL IN COURT

The counsel to the defendant is expected to represent the client diligently and competently. Therefore, he should always try as much as possible to be present in court.

Where a counsel is unable to attend court, he must inform the Court of the cogent reason to justify his absence. He do so by writing a letter to the court asking for adjournment of the case; ***Gokpa v. C.O.P*** **(See Dec 2020 Q 2g)**

NOTE: In a trial for **capital offence** where counsel is not in court, the court must adjourn or ask the defendant if wants another counsel; see ***Udofia v. State; Okojie . v. State***

DUTIES OF PARTIES IN CRIMINAL TRIALS

1. **PROSECUTING COUNSEL**

a. The duty of the prosecution is not to persecute the defendant. Therefore, the prosecution must be candid and fair, not trying to secure conviction by all means. **R. 37 (4) of the RPC, *Enahoro v. State*.**

b. He must be fair and impartial and ensure justice is enshrined at all times in a matter he must not conjure or manipulate facts to suit his case. **Dariye v FRN**

c. He is not to withhold the existence of any evidence or information which is favourable to the defendant. – ***Odofin Bello v State***

d. He should make available to the defendant or his counsel evidence that's favorable to the defence. **Odofin Bello v State, R 37(6)**

e. He is not to withhold the existence of any adverse decision on a point of law favourable to the accused **–** ***Anani v. R*****.**

the court held that a counsel can do any of the following where an adverse decision exists:

a. if the previous decision is by a lower court, he may invite the court to overrule it,
b. if by a court of coordinate jurisdiction. it is open to him to distinguish the previous decision.

What Court should do in the absence of a Prosecution at the trial - May 2011

Where the Prosecution is absent at the trial, the Court may:

1. dismiss the accused who is present, but
2. where the prosecution gives excuse for his absence, and the Court is satisfied with the excuse, the Court may adjourn the hearing to some future date

2. DEFENCE COUNSEL

One of the essential duties of the defence counsel is to undertake the defence of a person charged with a criminal offence competently and with dedication**: Rule 37(1) & (2) of the RPC,** ***Josiah v. State****;* ***Udofia v. State***.

He should not abandon or withdraw from the brief without just cause and even if he intends to withdraw, he should give prompt notice to the defendant.

Also, where the accused person admits guilt and confessed to having committed the offence the Defence counsel should not put up/cook up adverse/false evidence to show the accused as innocent: **R.15(3) RPC**

He is not to return the brief of a person charged with a capital offence.***; R v. Uzorukwu.*** and he shall also undertake the defence of a defendant not withstanding his personal opinion on the guilt of the defendant so that innocent persons are not convicted without having the benefit of the available defence to them by the law. **Rule 37(1)(2)**

When client discloses a fact to a counsel, it is unethical to disclose it to anyone without the express permission of the client - ***Rule 19 RPC***. This duty extends to other counsel and staffs in his law firm. Even after the case, the defence counsel cannot disclose – ***Section 193 Evidence Act***.

3. PRESIDING JUDGE

The Judge must be an impartial arbiter. The Judge or Magistrate in a criminal case must see himself and be seen as a neutral, unbiased and fair umpire.

The Court must ensure that justice is done to all the parties.

COMMENCEMENT OF CRIMINAL TRIALS

The defendant shall appear or be brought before the court, and the charge shall be read and explained to him in a language that he understands to the satisfaction of the court by the registrar. He shall thereafter be asked to plead to the charge**. S. 211 ACJL, section 271 ACJA**. This is called **ARRAIGNMENT**. **Kalu v State**

Therefore until the accused is arraigned, the court will not assume jurisdiction over the case; ***Fawehinmi v. IGP; Adio v. State*.**

PROCEDURE FOR A VALID ARRAIGNMENT

Due to the importance of arraignment, every student must know the procedure for a valid arraignment. The reason is because in the exam, a scenario of a defective arraignment will be given and the students will be asked to comment on its validity**. (See the following past questions; April 2017 Q 2c, August 2017 Q 2a, April 2019 Q 6(5), August 2018 Q 2, August 2019 Q5, Jan 2020 Q3c & Q 5(1), Dec 2020 Q 2a)**

The procedure for a valid arraignment: Kalu v State, Kajubo v State

1. The defendant will be brought before the court unfettered (i.e.without handcuff or chain);

2. The Charge will be read and interpreted (if an illiterate) to the defendant in the language that he understands by the **Registrar** or any other **officer of the court to the satisfaction of the court**.

3. The defendant will be called upon to plead instantly to the Charge **UNLESS** there is a good reason not to do so.

N.B

Whether an accused can take a plea on behalf of co-accused 2010

Each accused person is supposed to plead individually to the charge against him. an accused person is not allowed to take a plea on behalf of another accused person**. Adamu v State.**

NOTE THE FOLLOWING

a. The Judges orderly is not an officer of the court; therefore he is not qualified to read the charge to the accused.

b. The defendant may be arraigned fettered where he is violent or it is necessary to protect him or others.

EFFECT of Non-Compliance with the Procedure for Arraignment (very important)-

Failure to comply with the three requirements for a valid arraignment **renders the whole trial a nullity**– ***Kajubo v. State; Ogunye v. State;***

OPTIONS AVAILABLE AN ACCUSED UPON ARRAIGNMENT

This is another sub-topic that is very essential because it appears the exam in both theory and MCQ. Here we will be looking at the options which you as a defence counsel may explore immediately upon arraignment. They are:

1) Preliminary objection
2) Refusal to plead
3) Stand mute

4) Plea of guilty

A. The Defence May Raise Preliminary Objections:

The accused person may (through his counsel) raise preliminary objections to his trial by the court **rather than plead** to the charge. The objection may be based on any of the following grounds:

1) Lack of jurisdiction – **AGF v Abubakar**
2) The charge is defective.
3) Double trial (i.e., that the accused has been tried before; plea of autrefois acquit/convict). **Edu v State**
4) That the case is statute barred.
5) Ground of pardon – **Falae v Obasanjo**

B. The Accused May Remain Silent or Stand Mute: (Exam Focus)

When an accused person is called upon to take his plea, he may elect to remain silent or stand mute. Where an accused person remains silent or stands mute the Court's duty is to conduct a preliminary investigation to find out the reasons for such silence or muteness; **S. 215 ACJL, Gaji v State.**

NOTE the following for exam the first two is important:

1) If the accused person remained silent or stood mute **out of malice** (deliberate act) the court shall record **a plea of not guilty** for him and thereafter proceed with his trial; ***Yesufu v. State***
2) If the accused person stood mute due **visitation of God** the court will discontinue the trial of the accused, and order that the accused be remanded in custody at the pleasure of the Governor**. - *Yesufu v. State.***

3) Where the defendant is found to be deaf and or dumb, the court shall further take evidence to determine whether the defendant can be made to understand and follow the proceedings. If so, trial shall proceed; if not, the defendant shall be remanded in custody or released on bail until the visitation is over, or until the Governor's pleasure is known.

What court should do when an accused keeps mute 2010 No 3(vi)

Where an accused keeps mute during arraignment, the duty of the Court is to inquire into the cause of his muteness whether it is out of malice or visitation of the Gods. If the muteness is out of malice, the Court shall enter a plea of not guilty. **Yesufu v State**. But if it is due to the visitation of the Gods, the Court should order that the accused person be detained at the pleasure of the Governor. **R v Ogor.**

What court should do when an accused refuses to plead 2010 No 4 (iv)

Where an accused refuses to plead during arraignment, the Court should enter a plea of not guilty for him and continue with the trial. **Gaji v State.**

C. The Accused May Plead to the Charge:

Where the accused elects to plead to the charge, he has the following options:

1. He may Plead 'Guilty';
2. He may Plead 'not Guilty';
3. He may plead 'not Guilty by Reason of Insanity'.
4. He may plead 'not guilty to offence charged but guilty to a lesser offence'.

1. PLEA OF GUILTY: Section 213 ACJL & 274 ACJA

Effect of the Plea: A plea of guilty means that the accused is admitting the commission of the offence**.** Where an accused person pleads guilty, the court **may convict** the accused person; ***Onouha v. COP,*** The plea of the defendant must not be ambiguous, otherwise the court shall not convict upon it

Conditions for Conviction Based On a Plea of Guilty:

Before convicting an accused person based on a plea of guilty the court must do the following**: (Exam Point so take note)**

1) Record the plea of guilty made by the accused in his exact words or as nearly as possible in the words used by him **S. 213(1) ACJL, 274(1) (a-c) ACJA**

2) Call upon the Prosecution to restate the facts of the offence and ask the accused whether his plea of guilty is to the facts as stated by the Prosecution; ***Osuji v. IGP***

3) Where the offence charged is a capital offence, **a plea of not guilty** shall be recorded notwithstanding a plea of guilty by the defendant. See **Sanmabo v. The State**

4) If the court is satisfied that the accused intends to admit the offence and the plea is unequivocal and unambiguous, the court will convict him; ***Aremu v. COP***

5) If the offence requires expert evidence to be proved (e.g. drug related offence), such evidence must be tendered before the defendant can be convicted on the plea**;, *Ishola v. State* (exam focus)**

What court should do where an accused pleads guilty to a charge requiring scientific proof 2010 No 1 (b) (i); May 2011 No 4B (1); August 2011 No 1B

Where the offence for which an accused person has pleaded guilty can only be constituted by scientific or expert evidence, **such evidence must be tendered by the prosecution** before he can be convicted upon his plea **Stevenson V Police**, ***Ishola v. State***

6) A plea of guilty may be withdrawn with the leave of court at any time before conviction but not after. See **R. v. The Guest**

NOTE THE FOLLOWING POINTS (Exam points)

a. A plea of guilty must be unequivocal, therefore if the accused pleads **'guilty with reasons'** the Court shall enter a plea of '**Not guilty'** and proceed with the trial; ***Onuoha v State; Aremu v COP (2010 exam)***

b. If an accused pleads guilty to the Charge in a **Capital offence**, the court must record a plea of '**Not guilty**' and proceed with the trial; ***R. v. Guest; Olabode v. State, Chukwu v State*; (see April 2019 Q 6(6), Jan 2020 Q 3c)**

c. Where the plea of guilty is inconsistent with any statement made by the defendant either to the police or in court, he shall not be convicted on his plea: **See R. v. The Middlesex Justice Exparte Rubens**

2. PLEA OF NOT GUILTY

An accused may plead 'Not guilty' to the charge. The **effect** of this plea is that the accused is deemed to have **submitted to the jurisdiction of the court** and have **put himself upon his trial**. Therefore, the Prosecution should prove his guilt beyond reasonable doubt**; S. 212 ACJL; 273 ACJA; see (August 2019 Q 6. This is also asked in MCQ)**

3. PLEA OF NOT GUILTY BY REASON OF INSANITY

Where an accused pleads not guilty by reason of insanity; it is to the **effect** that the accused committed the offence but is **not criminally liable** for his acts or omission due to insanity.

Once this plea is made, t**he court will determine two basic questions:**

1) Whether the defendant committed the offence, and
2) Whether he was insane at the time of committing the offence.

(See MCQ April 2019 Q No 3 and MCQ Dec 2020 No 3)

If the accused was insane at the time he committed the offence, the court will order that he be remanded in a mental asylum at the pleasure of the Governor: ***Karimu v. State*, R v Ogor**

If the trial is before the FCT High Court, if the court suspects that the defendant is of sound mind, he shall be remanded under the supervision of a medical officer who make report to the court as to the mental state of the defendant; **section 278 ACJA**

If the court finds that the defendant committed the offence and was seen at the time of the commission of the offence, the accused would have a verdict of guilt returned against him and he would be sentenced appropriately.

4. Plea of Guilty to an Offence not Charged By the Prosecution:

An accused may plead guilty to an offence not charged and plead not guilty to the offence charged with: ***R v Kelly***. The Court may convict him on the offence not charged if the prosecution consents and drop the earlier Charge.

However, if the prosecution **refuses,** the Court will **proceed with the trial and** if the offence charged with fails, **the Prosecution is barred** from prosecuting the **other offence the accused pleaded guilty.**

5. Plea of autrefois acquit or autrefois convict:

The defendant may make a special plea of autrefois acquit or autrefois convict which has been provided for in **section 36(9**) of the **CFRN**, that: "No person who shows that he has been tried by a competent court for a Criminal offence and either convicted or acquitted shall again be tried for that offence or for a criminal offence having the same ingredients as that offence, **EXCEPT** upon the order of a superior court". See also **277 ACJA, and 216 ACJL**. This issue of this special plea shall be tried by the court and if found proved, the defendant shall be discharged. If found not proved, the defendant shall be asked to enter a plea and the court shall proceed with the trial. The doctrine of autrefois acquit or autrefois convict applies whether the previous acquittal or conviction is by a local court or foreign court. See **Treacy v. DPP**.

However, where a defendant was absent and takes no part whatsoever in the foreign proceedings and he does not run the risk of prison or fine, nor exposed to

any true danger or evil or jeopardy in respect of the foreign conviction, he cannot succeed on the plea of autrefois convict. See **Keith Williams v. The Queen**

Elements of the special plea of autrefois acquit or autrefois convict:

(a) That the defendant had previously been tried on a Criminal charge. **R. v. Jinadu**

(b) That the trial had taken place before a court of competent jurisdiction**.** **R. v. Jinadu**

(c) That the trial ended with an acquittal or a conviction. Thus, where trial was terminated by nolle prosequi, this plea cannot be sustained.

(d) That the criminal charge for which the defendant was tried was the same as the new charge against him, or that the new charge is one in respect of which the defendant could have been convicted at the former trial although not charged with it. See **R. v. Edu**

NOTE: if it is in the FCT, the court shall order the prosecution to amend the charge and include the offence which the defendant pleaded guilty to, in which case the defendant will take a fresh plea; **section 275 ACJA.**

WITHDRAWAL/CHANGE OF A PLEA

A defendant may change his plea at **any time before judgment**. A plea of guilty can only be changed with the **leave** of the Court **at any time before judgment**. It may be by written application or orally. After **conviction**, the defendant **cannot apply** to change his plea of guilty**;** ***R. v Guest***

NOTE THE FOLLOWING EXAM POINTS ABOUT PLEA

1. Plea is personal; therefore an accused must plead to the charge himself and not through his counsel**:** ***Adamu v. State*****;** ***State v Ekpo***
2. Where a Charge Sheet contains more than one Count/Charge, the accused is to plead **separately to each** of the Counts; ***Ayinde v. State*****. (January 2020 Q6)**
3. Where **several accused** persons are **jointly charged, each** accused person **must** take his plea for **himself personally**-***Adamu v. State*****. Thus** a plea by one accused person on behalf of other accused persons will nullify the trial; **(August 2018 Q2)**
4. If an accused person is transferred to another court he must plea afresh.

CHAPTER TEN

TRIAL II: TRIAL PREPARATION AND EVIDENCE

Under this topic, the focus is on the issues of evidence like burden and standard of proof, competence of witnesses, examination of witnesses, tendering of documents and so on.

A. **BURDEN OF PROOF**

This simply means the person who has the burden to establish the existence of a set of facts. In criminal litigation, the burden of proof is on the prosecution to prove all the ingredients of the offence; ***Musa v State***

EXCEPTIONS When the Burden of proof may be on the Accused

The accused will have the burden to prove the following:

1. Exemption, Exception or Qualification in statutes: **s. 141 EA**
2. Facts that are peculiarly within his knowledge alone; **S. 140 Evidence Act; *Rahman v. COP, Bello v state***
3. Plea of Intoxication and Insanity; **Kure v State, 139 (C)Evidence Act**
4. Special plea of **autre fois acquit** and **autre fois convic**t **S. 36(9) CFRN**

B. STANDARD OF PROOF IN CRIMINAL MATTERS

This means the extent to which a burden of proof should be discharged. In criminal trials, the standard of proof required is **Beyond Reasonable Doubt**: **S.135 (1) Evidence Act**, **Abeke v The State**

Therefore, once there is any doubt on the case of the prosecution, it will be resolved in favour of the defendant -; ***Bakare v. State, Bello v State***.

All elements of offence charged must be proved beyond reasonable doubt otherwise the defendant is entitled to an acquittal, **Amaremorc v The State**

Suspicion no matter how strong does not amount to proof beyond reasonable doubt **Dung v State**

Where there is contradiction or conflict which makes it unsafe to convict on the evidence of the prosecution, the defendant must be acquitted. **Ekpiosong v The State**

C. COMPETENCE OF WITNESSES IN CRIMINAL TRIALS

The general rule is that **all persons** are competent to testify **EXCEPT** they are:

a. Prevented from understanding the questions put to them, or

b. Prevented from giving rational answer by reason of extreme old age, tender years, disease whether of the body or mind or any other cause of the same kind: **s. 175(1) EA**

NOTE THE FOLLOWING POINTS[7]:

1) A person of unsound mind may testify during lucid intervals**; s. 175(2) EA.**

2) Also, a dumb person may testify by sign or in writing made in open cour**t: s. 176 EA**

3) A Co-accused is a competent witness for the defence but not a competent witness for the prosecution **EXCEPT** when he is: **Umole v State**

   a. Tried separately; and Acquitted or

   b. Convicted and sentenced or

[7] Accused, co-accused, spouse competent but upon the application of accused – **S.180 EA**

c. Discharged on a *nolle prosequi* or

d. Pleaded guilty and convicted**; *R. v. Akpan***

4) A spouse is competent and compellable witness for the accused. A spouse is generally not a competent or compellable witness for the prosecution except under S. 182 E.A:

1. Sexual offences under S.182 (1) (a) EA.
2. Offences against property of the spouse.
3. Offences involving violence against the spouse.

NOTE:

An **accused** may, while testifying in his own behalf incriminate his co-accused person. Such incriminating evidence **ma**y be utilised by the court to convict either or both of them**; *Ajani v. R; S.* 199 E.A**. **(April 2018 Q. 3)**

Whether a Judge can convict on the testimony of a sole witness who is a relative of the victim **2009 No 3(f);**

The relative of a victim is a competent witness for the prosecution. The evidence of the brother of a victim is admissible and does not require corroboration as a matter of law but the Courts are cautious to act on the sole evidence of such witness and may in practice ask for corroboration. **Oguenzee v The State**.

EVIDENCE OF A CHILD

A child of **less than 14 years old** can give unsworn evidence in court. However, the Court must satisfy that:

a. the child understands the questions put to him and can give rational answer to it and (possessed of sufficient intelligence)

b. that the child understands the duty of telling the truth; **Solola v State; S. 209(1) Evidence Act.**

NOTE:

The above requirements are conjunctive.

That no procedure in E.A. for how court would satisfy itself as to intelligence and understanding of the child.

That the court cannot convict an accused based on the unsworn evidence of the child alone **without corroboration**-**S. 209 (3) E.A**

A child of **14 years and above** can give sworn evidence which will **need no corroboration** but the Court will caution itself if it decides to convict on it.

If the child fails the preliminary set of questions the child is not competent.

If the child demonstrates ability to understand the questions, then, the court proceeds to nether next stage of determining whether the child understands the nature and implication of an oath. See **Okon v. The State**

If he passes this second test then he would give evidence on oath. **See Dagayya v. The State**

COMPELLABILITY OF WITNESSES

This is the process of bringing an unwilling witness to court to either testify or tender document or even both. It is only competent witnesses that can be compelled.

NOTE: Non compellable witnesses are:

1. President and Vice, Governor and his deputy: In their personal capacity, S. **308(1)(c) CFRN**
2. Diplomats: S. 1(1) Diplomatic Immunities and Privileges Act

   It covers their official or domestic staff and members of family

   Does not cover their Nigerian staff

   They can be waived Zabusky v Israel Aircraft industries, S. 15 DIPA
3. Judges

4. Legal practitioners:

   Competent and compellable both for client and adverse party – Elebanjo v Tijani

   Cannot be compelled to disclose communication between him and his client – 192(1) EA

<u>Modes of Compelling Witnesses -</u> exam focus

There are generally three methods of securing attendance of a witness in court: **Buhari v Obasanjo**

1. Witness summons (usually used at the Magistrate court).
2. Subpoena this may be
   a. ***Subpoena Duces Tecum*** for tendering documents (cant cross-examine, as long as he brings the document to court he has satisfied the requirement):

      Where a party seeks to compel the presence of a material witness to tender a process, he employs the use of a **subpoena duces tecum**. The

process compels the witness to come to Court and provide some documents

b. ***Subpoena ad testificandum*** for oral testimony):

Where a party seeks to compel the presence of a material witness to testify on his behalf, he makes use of a **subpoena ad testificandum**. The process compels the witness to come to Court and give evidence

c. ***Habeas corpus ad testificandum:***

is issued to command the Controller of Prisons or whoever is in charge of a person who is detained, to produce or conduct the person in court to give evidence.

NUMBER OF WITNESSES

This is a very important exam focus area. See the following past questions: August 2017 Q 2b, Jan. 2020 Q 5c, Dec. 2020 Re-sit Q 2c & Q 5b)

In criminal trials, there is generally no required number of witnesses for the prosecution to call to prove a case unless where the offence requires corroboration. The prosecutor must call sufficient witness to prove his case. He needs not call all the available witnesses, but those called must be sufficient. **Section 200 EA, *Adaje v. State***

Can the Prosecution decide not to call all the witnesses listed in the proof of evidence? (repetition)

The prosecution is not bound to call all the witnesses listed in the proof of evidence and there is no consequence for failure to call a witness, although named in the proof of evidence so long as the prosecution can prove its case beyond reasonable doubt. Even one witness or piece of evidence will suffice. **Adaje v State**

NOTE: Although the Prosecution must not call any number of witnesses, it is advisable for him to call eye witnesses. This is because, where there are eye witnesses and he fails to call him/her, the court may reasonably infer that if the eye witness had been called, his testimony would have been favourable to the accused person; ***Ogbodu v. State***;

CORROBORATION (Exam Focus)

Corroboration means producing more than one source of evidence in prove of a case. In all the situations, where the law of Evidence requires corroboration, the Prosecution will require the testimony of **at least two witnesses** to secure a conviction- The circumstances are as follows:

1. The unsworn testimony of children S. 209(3) EA, **Okoyomon v Police**
2. Perjury
3. Treason or treasonable felonies other than that the killing or attempted killing of the president
4. Treason and Treasonable felony; **S. 201(1) EA; R. v. Omisade**; unless the treason alleged is the killing of the President or an attempt to endanger his life or injure his person.
5. Exceeding Speed Limit **S. 203(1) EA:**
6. Offence of Sedition S. **204 EA, S. 528 Criminal Code**

N.B

Whether the Court can convict on the uncorroborated evidence of a prosecutrix

August 2011 No 1A (iii)

The evidence of a victim of a sexual offence requires corroboration. A defendant shall not be convicted solely upon the uncorroborated evidence of the prosecutrix.

ACCOMPLICE & CO- ACCUSED

Accomplice is a party to the offence but not standing trial with the accused – **S. 198(2) EA**

Does not require corroboration but court must warn itself where there is no corroboration – **S. 198(1) EA**

Co-accused is a person jointly tried with the accused

Does not require corroboration or warning – **S. 199 EA**

Absence or corroboration or warning where required nullifies the conviction

OATH AND AFFIRMATION

Generally, before a witness testifies, he must either be sworn on Oath or affirmation; **S. 205 EA 2011**

However, as an exception a witness may not testify on oath where:

a. The witness is not a believer in any of the known religions or is a person whose religion forbids oath taking **S. 208 EA or**
b. The witness is a child less than 14 years: **S. 209 (1) EA**;

NOTE: before a witness starts testifying, the Registrar does will order all other witnesses in the case to go out of Court and of hearing; **S. 212 Evidence Act.**

However, this order does not apply to the parties themselves or their respective counsel even if they will be called as witnesses: **s. 212 Evidence Act**

NOTE: where a witness remains in the Court, it will not affect his competence to testify. Therefore his evidence will be admitted but less weight will be attached to it; ***Nwabueze v.COP*** **(August 2018 Q 5(2)**

D. EXAMINATION OF WITNESSES (Mostly Compulsory Question 4)

This is the process of eliciting evidence from a witness. It involves 3 stages which are:

a. Examination-in-chief

b. Cross–Examination

c. Re–Examination; **section 214(1-3) Evidence Act**

1. EXAMINATION IN CHIEF

The examination in chief is the examination of a witness by the party who called him-**Section 214(1) Evidence Act.**

The main purpose of examination in chief is to elicit admissible, material and favourable evidence in support of the case of the party calling him. (**August 2011**)

It is aimed strengthening the case of the party calling the witness. Usually commenced by introductory questions

The important here for the purpose of your exam is to know the types of questions allowed in examination in chief and the questions that are not allowed.

Questions Allowed:

In examination in chief the best questioning pattern to use is OPEN QUESTIONS.

Open questions are questions which gives the witness the liberty to tell the story from his or her personal experience and knowledge. It is preferred in examination

in chief because it makes the testimony of the witness more coherent and believable. It usually starts with words like 'what', why, how, explain, where, etc.

EXAMPLES of open questions are:

a. Tell this court your name, address and occupation.

b. Tell this court what happened on 10th of January, 2020?

c. Why were you at Bwari market on 15th of January 2020?

NOTE: Counsel should be cautious in using open questions in examination in chief, therefore he should guide the witness to avoid telling stories that are not relevant to his case or that are unfavourable to his case.

(Exam Question Q4 2017, April 2018, 2019 and Jan 2020)

Questions Not Allowed in Examination in Chief:

Generally, the following questions are not allowed in examination in chief:

a. Leading questions; **s. 221 (1) & (2) E.A**.

b. Question's tending to give hearsay evidence

c. Questions eliciting evidence of opinion.

d. Questions eliciting oral evidence from the contents of a document.

LEADING QUESTIONS (it has appeared in the exam as Q4 till Date)

Leading question is any question suggesting the answer, which the person putting the question wishes or expects to receive-**S. 221 (1) Evidence Act**

Generally, leading question is not allowed in Examination in Chief **unless** in any of the following exceptions :**(Exam Focus) S. 221(3) EA**

1) Introductory matters that are not in issue (like name, address and occupation of the witness)

2) Undisputed Matters which in the opinion of the court have already been sufficiently proved before the court.

In the exam, (always Q 4), the scenario will contain series of questions which was asked in examination in chief and ask students to identify the type of question asked, what is its purpose and state whether or not it is allowed in examination in chief.

2. CROSS EXAMINATION

The examination of a witness by a party other than the party who called him is called cross examination **Section 214 (2) Evidence Act**. It comes after the examination in Chief has been completed.

Cross-examination is not mandatory. If the counsel on the opposing side has no real issues to prove by the questions, then he should refrain from asking them: ***Kpokpo v Uko***

NOTE: that where more than one defendant is charged at the same time each defendant shall be allowed to cross-examine a witness called by the prosecution before the witness is re-examined: section 216 EA

Also a co-accused is allowed to cross-examine the witness brought by another accused person. This must be done before Cross examination by the prosecution (**MCQ 2017-2020**): **section 217 EA**

Failure to cross examine a witness on a vital point he raised during examination-in-chief, may be regarded as an admission of such issue. ***Ishaya v. State***

Where a party is denied the opportunity to cross-examine a witness, it is a denial of the right to fair**. Shofolahan v State**

PURPOSE OF CROSS EXAMINATION (March 2021 Q 4f)

1. destroy, and discredit the evidence of a witness.
2. To discover who the witness is and his position in life
3. To test his accuracy, veracity and credibility of the witness
4. Shake his credit by injuring his character
5. To weaken or qualify the case of the opponents.
6. It is used as a means of establishing the party's case through the opponent's witnesses ***Awopeju v. State***

NOTE: In cross examination, leading and closed questions are to be used. It is not totally advisable to use open question. This is because the use of open question in cross examination may give the witness an opportunity to fill the loop holes or errors committed during examination.

LIMITATIONS IN CROSS EXAMINATION

In cross examination, only relevant questions are allowed. Such questions need not come from the issues raised during examination in chief. Therefore, it is wrong to state that; '**In cross examination the sky is limit**'. The limit of cross examination is relevance. **(august 2011)**

The following questions cannot be allowed in cross examination: 🔄

a) Questions that are improper or too remote[8] – **224 EA**

b) **Indecent** or **scandalous**: **S. 227 E.A**

c) Question that intended to insult or annoy or to needlessly offensive, the court may not allow it**: S. 228 E.A (see Jan. 2020 Q 4f)**

[8] The court is under obligation to warn the witness that hes not obliged to answer

questions that are permitted to be asked during cross examination of witnesses:

1. questions which test the accuracy, veracity and credibility of the witness,
2. questions to discover who he is and his position in life and
3. **questions intended to shake his credit by injuring his character**

NOTE: it is not advisable to ask a question which you do not know the answer in cross examination. This is because such question may be detrimental to your own case.

TECHNIQUES FOR CROSS EXAMINATION (2009 No 4 (f); 2010 No 5(g)

a. Probing technique: pin down the witness to get a direct answer

b. Insinuation

c. Confirmation

RE–EXAMINATION

This is the last stage of examination of a witness. It takes place where necessary after cross examination. It is conducted by the **party who called** the witness: **Section 214(3) Evidence Act**

The aim of re-examination is to clear ambiguities, **inconsistencies doubts or** haziness that arises out of cross-examination. Therefore, where there is **no cross-examination**, there cannot be **re-examination**. (March 2021 Q4)

Leading questions shall not be asked in re-examination **–S. 221(2) EA**. Also no **new matter** is entertained in re-examination unless **with leave of court; S. 215(3) Evidence Act**

TYPES OF QUESTIONS ALLOWED 2009 No 6 (a),(b) and (c); May 2011

Leading questions are not allowed in examination in chief and re-examination. Leading questions may however be permitted by the Court in relation to introductory matters, undisputed matters and matters sufficiently proved**. Section 221 (3) Evidence Act.**

Hearsay evidence is not admissible during examination of witnesses. A witness should only testify as to matters within his knowledge, **EXCEPT** they relate to the known exceptions on the rule against hearsay.

Leading questions must relate to relevant facts. **Section 215 Evidence Act**

NB

Effect of testimony of witness who remains in Court during other witnesses' testimony May 2012 6 (c)

The effect of the testimony of a witness who stayed in Court when the other witnesses were testifying is that the testimony is still admissible however, the Court will attach little or no weight to the evidence of that witness.

REFRESHING MEMORY

- Where a witness finds it difficult to remember an event, which had taken place a long time ago, such witness, is permitted to refer to any document made by him at the time of the transaction or so soon afterwards-**S. 239(1) Evidence Act (EA)**
- Leave of court for the witness to refresh his memory by referring to any writing **made by any other person** and **read by him** and if he knew it to be correct: **S. 239(2) EA.**

- ⇨ An expert may refresh his memory by reference to professional treatises: **S. 239(3) EA**

The procedure for refreshing of memory is that counsel **must seek leave of court** for the witness to refresh his/her memory.

Any writing which the witness intends to refresh his memory, shall be produced and shown to the adverse party if he requires it, and such party may, if he pleases, cross-examine the witness upon the writing -**S. 241 EA**

HOSTILE WITNESS (Exam Focus)

A hostile witness is one who in the opinion of the court, is biased against the party who calls him, is unwilling to testify or who supports the other party: ***Esan v State***

The general rule is that a person calling a witness is not allowed to discredit him; **S. 230 EA; *Babatunde v. State*.**

However, when the witness:

a. **testifies against** the party who called him and

b. is **unwilling to tell** the truth or he is **evasive** in the answers he gives**,**

he will be termed **hostile witness.**

PROECEDURE: The party calling the witness will have to **apply to the Court** to declare the witness a **Hostile Witness**: **S. 230 Evidence Act, Gaji v State**

The effect of the court declaring a witness hostile is as follows:

a) He can be cross-examined- **Gaji v state**

b) He can be asked leading questions

c) He can be discredited using previous inconsistent statements made by him; s. **231 of the Evidence Act.**

d) Both his previous and present statement will be disregarded by the court. **Adeleye v The State**

POWER OF THE COURT TO PUT QUESTIONS TO WITNESS

The Court has the power to put questions to any witness before it –**S. 246 Evidence Act.** The aim is to **clear up ambiguities** or a **point left obscure in his testimony** for the determination of the case justly.

However, the Court is not to descend into the arena or ask damaging questions to the witnesses or an accused person. ***Okorie v. State***

POWER OF COURT TO CALL OR RECALL A WITNESS

The court has powers to call any witness whether or not such a witness has been called by either party. This power extends to **recalling a witness after the close of the defence** on matters unforeseen which arose during the case for the defence- ***Onuoha v. State***

POWER OF A PARTY TO RECALL

A party to proceedings may have a crucial need to recall a witness for further examination. He shall apply to the court and support his application with facts as to why and what he intends to put to the witness- ***Ally v. Stateions***

If the court feels that the questions are material he may recall the witness – **Ogbodo v State**

ADMISSIBILITY OF DOCUMENTARY EVIDENCE IN CRIMINAL TRIALS (NOTE)

The basis for the admissibility **of any document** tendered is if it is relevant to the facts in issue or facts relevant to facts in issue: **Section 1& 2 of the Evidence Act.**

Tendering of Documentary Evidence S. 128 EA 2011 (Exams)

Generally, the contents of a document can only be proved by tendering the document itself in evidence. The contents of the document itself must emanate from the personal knowledge of the maker.

Also the person who made the document must be called to tender the document **UNLESS**

- **a.** The maker is dead,
- **b.** He is unfit to testify by reason of mental health or old age,
- **c.** He is outside Nigeria and getting him would be unreasonable or cause delay.
- **d.** If the maker of the document cannot be found, **S. 83(1)(a & b) Evidence Act**

In tendering a document it is the **original copy** that will be admissible. Where the original of a private document cannot be found, the photocopy may be tendered by laying proper foundation to show the whereabouts of the original; either that the original is lost, cannot be found or that it is in possession of the adverse party; **section 89 Evidence Act**

If it is a public document, where the original is not available, it is only the Certified True Copy (CTC) duly certified by the appropriate authority in accordance with section **104 of the Evidence Act** that will be admissible in Evidence; s**ee Section 89 and 90 Evidence Act**

NOTE THAT:

Once a document is admitted, **Oral evidence** can no longer be allowed in prove of its content because the content of a document speaks for itself.

Statement made to the police officer during investigation are tendered through the makers of the IPO while those made by suspects or accused person/defendants must be tendered through the IPO – **Azeez Okoro v State, Okpara v FRN – (focus)**

HOW TO LAY PROPER FOUNDATION (Always asked in question 4)

Ask the witness the following questions for **Original document**:

1. Do you have the document in Court?
2. If you see the document can you recognise/identify it?
3. How will you identify the document?

(In practice, Counsel will seek the leave of court to show the document to the witness for identification);

4. Is this the document?
5. My Lord I apply to tender the document in evidence.

If it is photocopy (for private document) or CTC (for Public document) (See bar Final 2017 till date Q4)

1. Do you have the Original of the document in Court?
2. Where is the Original?
3. Which Copy do you have?
4. If you the Photocopy/CTC of the document can you recognise/identify it?
5. How will you identify the document?

COMPUTER GENERATED EVIDENCE; (August 2019 Q 4e)

The necessary condition precedent must be laid by the person intending to tender the evidence for it to be admissible. The condition includes;

1. That the computer was regularly used to process or store the type of information or evidence sought to be tendered
2. That the evidence was supplied to the computer in the ordinary course of business
3. That the computer was functioning properly and if not, it did not affect the processing and production of the document or evidence
4. An oral testimony or documents by the person who operated the computer testifying to the above facts. See **S. 84 EA; Kubor v Dickson; Sylva v Dickson**

NOTE

That where a series or combinations of computers are used in the operation that generated the evidence, all the computers or combinations shall be treated as a single computer. **Section 84 (3) E.A.**

A certificate is not the only means of proving the conditions stipulated **in S. 84(2) EA** and that the court can also require oral evidence – **Slyva v Dickson**

What are the contents an affidavit August 2011 No 6a (v)

1. An affidavit must contain facts and not law
2. An affidavit must not contain extraneous matters by way of objection or prayer or legal argument or conclusion

EXPERT EVIDENCE

The general rule is that the opinion of an individual is inadmissible in evidence – **S.67 EA**.

However, the opinion of an expert may be admissible by the court. An expert is any person that is specially skilled and knowledgeable in certain areas: **S. 68 EA.**

The expert must possess the skill and qualification to be so referred: ***Essien v. R***

The court can reject expert evidence if it does not conform to common knowledge: ***Arise v State, Aladu v State,***

NOTE: For the expert evidence to be admissible, proper foundation must be laid to show the **expert's qualification, skills and years of experience.**

HEARSAY EVIDENCE (Exam Focus)

The testimony of a witness must come from his or personal knowledge, experience or believe. Hearsay evidence is therefore any statement **oral or written** made otherwise than by **a witness in** a proceeding or which is tendered in evidence**; S. 37 of Evidence Act, *Okoro v State*, *Subramaniam v DPP***

Generally, hearsay evidence is not admissible: **S. 38 EA**. However, there are exceptions to the rule against hearsay evidence under **section 39 E.A**

Examples of it are:

1. Affidavit evidence;
2. Testimony regarding history and tradition **Ansa v. Ishie**;
3. Dying Declarations **S. 40 (1) & (2) E.A**
4. Res **Gestae S. 4 E.A, Akpan v. State**;
5. Treatises published by experts **Olalomi Ind. Ltd v. NDIC**;
6. Reports of Police investigators;
7. Testimony in previous proceedings;

8. When not practicable for maker to testify; Admission **S. 20-27**
9. Confession **S. 28-32**

VISIT TO THE *LOCUS IN QUO* (SCENE OF AN OFFENCE)

If court is satisfied that there is need to inspect the venue of the crime or where the evidence to be inspected cannot be conveniently brought to the Court for the proper determination of the case**,** then the court will conduct a visit to the venue **S. 127 Evidence Act, S. 205 ACJL, 263 ACJA**; **265 ACJLK**

The essence of locus visit is for the court to ascertain facts, clear doubts and see things by itself to assist it in just determination of the case.

It may be conducted on the application of the parties or the **Court *suo motu*:**, ***Unipetrol v Adireje Ltd*** and it can be made at any time before judgment-***Arutu v. R*** **(it was** done after final address).

N.B

Is it proper for the Court to conduct a visit to the locus in quo without all the accused persons **August 2011 No 3 (a)**

Where the Court orders the visit to a locus in quo, the accused person(s) must be present irrespective of the number.**; Section 205(2) ACJL; Section 127(2)(b). Adunfe v IGP**. It is wrong for a Court to conduct a visit to a locus in quo in the absence of the accused persons

Why is it desirable that the accused persons shall be at the locus in quo. Give reasons **August 2011 No 3 (b)**

It is desirable for all the accused persons to be present at the locus in quo because a visit to locus in quo is part of the court proceedings irrespective of

the procedure adopted. Since it's a trial proceeding, an accused person cannot be tried in absentia. They must all be present. **Adeoye v State.**

Procedure for the Conduct of Visit to *Locus in Quo*: (Exam Focus April 2018 Q 6c)

There are two (2) ways as follows: **COP v Olaopa**

1. The Court may adjourn to the locus to inspect and continue trial there by taking witnesses in evidence and later the Court will reconvene in the regular Court to continue the trial, **without recalling the witnesses**; OR

2. The Court will adjourn to visit the locus, take notes of the things observed and reconvene in Court to continue proceedings where it will take the testimony of witnesses in Court; **S. 127(2) (a) & (b) E.A; *Aremu v. AG Western Nigeria*; Unipetrol Plc v Adireje Ltd**

NOTE THE FOLLOWING POINTS:

The accused persons **must all be present** at the venue during the visit to the locus; ***COP v Olaopa***. This is to give them the opportunity to clarify uncertainties and contradictions.

However, failure to take the accused person(s) to the venue will not vitiate the trial **unless it occasioned a miscarriage of justice; *Adunfe v. IGP.***

Non-compliance with the procedure of locus to visit would not nullify the proceedings unless the accused unless the accused can show that he suffered a miscarriage of justice by reason of Non-compliance. **Unipetrol v Adireje**

CHAPTER ELEVEN

TRIAL IV: PRESENTATION OF THE CASE FOR THE DEFENCE

The prosecution is deemed to have closed its case when it has called its last witness or tendered the last evidence. When the prosecution closes his case by saying **"My Lord, That would be all for the Prosecution"**

Options Available to the Defence upon Close of Prosecution's Case: (Exam Focus, August 2016, 2017, 2019 & 2020, April 2017, 2018 and 2019)

In opening the case for the defence, the accused person has three (3) broad options**;**

1. He may make a No Case Submission. **S. 302 ACJA, 239 ACJL**
2. He may rest his case on the prosecution's case.
3. He may choose to enter into his own defence: **Ajibaye v The State**
    a) He may Remain in the Dock and Make a Statement in which case he will not be sworn or cross-examined
    b) He may give Sworn Evidence from the Witness Box where he will be sworn and cross-examined

c) He May Remain Silent

A. NO CASE SUBMISSION/RULING (Exam Focus)

When a defendant/accused makes a no case submission the implication is that the accused/defendant is alleging that the prosecution has failed to establish any case for him to answer; therefore, there is no need for him to open his defence.

WHO RAISES NO CASE SUBMISSION?

This can be made by **the defence** or the **Court**[9] on its own volition at the close of the prosecution's case where a **prima facie case** has not been established against the accused: ***Dabor v. State***

When a No Case Submission can be Made/conditions for a successful plea of NCS- ***2009 No 3(d); August 2011 No 1A (v); August 2011 No 6b (iv)*. S. 239(1) ACJL, 303(3) ACJA, S. 304 (3) ACJLK *Emedo v. State , Agbo v The State***

1. That the prosecution has failed to prove an essential element of the alleged offence; (for instance; penetration in rape)

2. That the evidence adduced by the Prosecution has been discredited during cross-examination and rendered unreliable

[9] The Court has an obligation to consider suo motu the prosecution's case whether a case has been made out against the accused and if it discovers that the prosecution made out no sufficient case, it should discharge the accused. Okoro v. The State

3. When the evidence of the prosecution is so manifestly weak that no reasonable Tribunal or Court can safely convict upon it-***;***

Note

The Court has an obligation to consider suo motu the prosecution's case whether a case has been made out against the accused and if it discovers that the prosecution made out no sufficient case, it should discharge the accused. **Okoro v. The State**

Ruling on A No Case Submission:

Once the defendant makes a no case submission, the Court is expected to make a ruling on the no case submission raised either **upholding** it or **overruling** it. However, before such ruling, the Court must allow the Prosecution to **reply** the no case submission failure of which will vitiate the proceedings**.**

NOTE the following Points on Ruling: (see August 2018 and 2019, Jan 2020 Q 5d, December 2020 Re-sit Q. 2b)

1) If the court is overruling the No case submission, the ruling **must be brief** so that the Judge will not fetter his discretion[10] -***Odofin Bello v. State*.**

   It is not the length of a ruling ***per se*** that determines that a judge has fettered his discretion, rather it is the contents of the ruling; ***Atano v. AG Bendel***

[10] and should contain the decision of the court on the issues raised in the no case submission. Consequently if short and does not touch on content it is invalid and will be set aside on appeal

2) But if the court is upholding the No case submission, he should give sufficient reasons why he believes that the defendant has no case to answer; ***Emedo v State***; **(Jan. 2020 Q. 3d)**

Effect of A No Case Submission When Rightly Upheld By The Court August 2011 No 6b (v)

The effect of a no case submission rightly upheld is that it amounts to the acquittal of the accused person. **Mohammed v State; IGP v Marke.**

IT'S A DISCHARGE on merit/acquittal and is a bar to further proceedings. **S. 239(1) ACJL, S. 302 & 357 ACJA, 303 ACJLK**

N.B - Ruling is appealable**. Aminu Mohammed v The state**

Effect Of No Case Submission If Wrongly Upheld

If a no case submission was wrongly upheld, the prosecution will have the right to appeal to a higher court. On hearing the appeal, the appellate court may **quash** the order of the trial Court acquitting the accused and order for a **retrial** for the accused to defend himself - ***Police v. Ossai; COP v. Agi***

Effect of A No Case Submission Rightly Overruled

Where the no case submission is rightly overruled evidence obtained from participation will be admissible against the defendant. **Ohuka v. The State**

If the No case submission was rightly overruled by the court; (i.e. the court disagreed with the defendant or accused);

i. The accused will be called upon to enter his defence.

ii. Any subsequent evidence adduced before the court by the accused which is incriminating him will be admitted and the court may convict him upon it: ***Ohuka v State; Okoro v State***

Effect of A No Case Submission Wrongly Overruled

If no case submission is wrongly overruled and an accused person participates in the proceedings whereby, he supplies the evidence incriminating him it has been held that a conviction founded on such evidence could not stand ***Okoro v. State***,

NOTE[11]: Any conviction based on incriminating subsequent evidence adduced by the accused during his defence will be quashed on appeal as it is a nullity since the accused was ordinarily not supposed to have entered his defense; ***Mumuni v. State; Okoro v. State;*** **(August 2016 No. 2C)**

Thus, it is immaterial whether the defendant participates in the trial or not if in any event the submission is wrongly overruled or the court does not discharge when there is no case against the defendant after the close of the Prosecution's case. **Okoro v. The State**

NB – Can be asked to Draft an address for a no case submission

B. RESTING OF CASE ON THAT OF THE PROSECUTION

This implies that the defendant is adopting the totality of the Prosecution's evidence and is calling the Court to **convict or acquit him** based on the evidence led by the prosecution; ***Akpan v State***

[11] If no case submission is wrongly overruled and an accused person participates in the proceedings whereby he supplies the evidence incriminating him it has been held that a conviction founded on such evidence could not stand.

Means the defendant concedes the case of the prosecution against him on the assumption that the evidence adduced is insufficient to prove his guilt beyond reasonable doubt

Defendant who rests his case on that of the prosecution waives right to lead evidence. **Sulaiman v COP**

NOTE

that it is not advisable to adopt this option where there are compelling evidence against the accused; ***Babalola v State***

When a counsel makes a no case submission and indicates that he will be resting his case on the prosecution's case, he can freely address on the facts and the law and he can deal with issues of veracity of witnesses and the insufficiency of the witnesses to establish the offence(s) charged. **Akano v. The A.G. Bendel State**

When An Accused Should Rest His Case On the Prosecution's Case:

1. Where a no case submission was wrongly overruled.
2. The prosecution's case is manifestly weak that no Court/Tribunal can possibly convict on it. ***Emedo v State.***
3. Where the evidence of the prosecution did not link the accused with the offence charged.

When is the defense a proper defense 2010 No 4 (v)

One of the rights available to an accused person in his defense is to rest its case on that of the prosecution. A Defense Counsel should however rest the defense case on that on the prosecution only where the prosecution's case is manifestly weak and no conviction can be secured on it. Where there is cogent and compelling

evidence against the accused that require his explanation, resting the case on that of the prosecution will be a reckless defense.

Implication of Resting of Case on that of the Prosecution:

Since the accused has elected not to give evidence, the Court may go ahead and convict the accused based on this option. However, the court should first consider the whole case of the Prosecution including credibility of witnesses and weight to attach to evidence before delivering judgment after the accused has rested his case on that of the Prosecution.-***Akpan v. State***

Difference between No Case Submission and Resting Case on Prosecution Case (Bar Final August 2018)

1. Where a no case submission is overruled**,** the accused is given leave to enter his defence. BUT where the accused rests his case on that of the Prosecution; the accused has no further opportunity of calling witnesses or to enter upon his defence.

2. **Resting case** is used where defence alleges that there is insufficient evidence to warrant a conviction but **no case submission** is used where there is no prima facie evidence linking the accused person to the crime.

C. THE ACCUSED OPENING DEFENCE (Entering upon His Defence)

Where the defence elects to open his defence, it implies that he is ready to lead evidence to disproof the case of the prosecution.

It is advisable to do so when a prima facie case is established by the prosecution; **S. 240 ACJL, s. 358 ACJA , S. 358 ACJLK (August 2016 No 2b & 2017 No 2)**

The step the court takes will depend on whether he is represented by counsel or not.

(a) If not represented: Ajibaye v The State

The court shall inform him of the **three alternatives** open to him viz:

a) He May Remain in the Dock and Make a Statement in which case he will not be sworn or cross-examined (exam focus)
b) He gives Sworn Evidence from the Witness Box where he will be sworn and cross-examined
c) He May Remain Silent

1. **He May Remain in the Dock and Make a Statement:**

The effect of this option is that;

a. He will not be **sworn on oath** to testify
b. he is not liable to be cross-examined
c. he is not seen or treated as a witness

NOTE: that this option is not advisable because the Court will attach little or no weight to his evidence.

2. **He give Sworn Evidence from the Witness Box:**

The effect of this option is that:

a. He will be sworn on oath and treated as a witness.
b. He is liable to cross-examination by the prosecution and co-accused if any

This is advisable for a credible and stable accused person as his evidence can withstand cross examination. Therefore the court will attach much weight to his evidence.

3. **He May Remain Silent: 240(1) (a) ACJL**

The effect of this option is that:

a. He has elected not **to adduce** any evidence whatsoever.

b. He is deemed to have impliedly **rested his case** on the Prosecution's case

c. The court can give a valid conviction on that basis-***Akpan v. State***

N.B- defendant is entitled to call witnesses in any of those 3

If he is represented:

The court shall call on his counsel to proceed with the defence- section 240(1)(b), ACJL

Non-compliance does not vitiate the proceedings **provided** that the court called the accused for his defence and asked him if he had any witnesses and heard the defendant and his witnesses and other evidence if any

NOTE THAT:

- Although the prosecution may comment on the silence of the accused; S. **181 Evidence Act**, he is not allowed to suggest that the silence amounts to guilt or urge the court to convict the accused based on the silence, **Igabale v State -(August 2017 Q 2e, January 2020 Q 5f)**

- This option is not advisable where a prima facie case is established or where a little explanation from the accused/defendant would have made a difference; ***Igabele v State; Babalola v State***

NOTE: It is the duty of the court to inform the accused of this 3 options if he elects to enter his defence and explain the implications of each it to him: ***Josiah v State***. **However**, if the accused is represented by a counsel, it will be deemed that

his counsel is aware of these options and the duty would no longer be on the court to inform the accused of it but on his counsel; ***Edet v. State; Adio v State***

NOTE HOWEVER THAT:

Failure of the Court to inform the accused of the 3 options and its implications where he has no counsel will not vitiate the trial EXCEPT it occasioned a miscarriage of justice resulting in the conviction, depending on the circumstances of the case- ***Josiah v State; Saka v. State***

EX-IMPROVISO RULE

is a rule of procedure where the prosecution may be allowed to call evidence in rebuttal where the defence raises some facts not within the contemplation of the prosecution; **S. 241 ACJL, 361 ACJA, 361 ACJLK**

For the *ex-improviso* rule to be allowed the following conditions must exist**:**

a. It must come **at the end** of the defence case

b. **Leave of court** must be sought by prosecution

c. The defence must have raised a **new matter** which human ingenuity could not have foreseen; ***Onuoha v. State; Bala v. COP.***

CHAPTER TWELVE

FINAL OR CONCLUDING ADDRESS

After the close of evidence, the parties are expected to file their final address which is like a summary of each party's case. **S. 269(1) ACJL, 304 ACJA, 305 ACJLK**

The order of presenting final address is as follows: Bar final 2009

- The accused is to address the Court first, and
- Then the Prosecution may reply and
- Accused has a right to further reply on POINTS OF LAW.

Under the ACJA & ACJL Kano, there is no provision prescribing the form in which the address should be delivered. In practice, court orders written address. Under the ACJL, final addresses shall be in writing to be adopted in open court. **See Section 269(2) ACJL.**

LEGAL STATUS OF FINAL ADDRESS AND REPLY

The final address and reply is not part of evidence and will not vitiate the trial if not done **-.** The Court **can write** its **Judgment** before the final addresses of the parties but cannot deliver the judgment until after the final address;–***Ndu v State; S.269 ACJL*** **(August 2018 Q 5d)**

NOTE: The court cannot deny the parties the right to final address**.** If denied it will invalidate the trial and conviction if any**.**

Whether Court can convict an accused person without a final address (May 2011)

It is wrong for a Court to sentence an accused person without first listening the address of Counsel. The right to final address is a Constitutional right and any denial of that right gives rise to an appeal when it can be proved that there is a miscarriage of justice. **Section 294(1) CFRN**

PROSECUTION'S RIGHT OF REPLY

A prosecutor's right of reply depends on the conduct of the defence and the status of the prosecutor. He could be a law officer, police officer or private prosecutor

If the prosecution is a Law Officer:

He will have **an automatic right of reply** to the final address of the accused; ***Osahon v. FRN, Awobutu v The State***

Note

however, that private prosecutors engaged by the A.G. or the Director of Public Prosecution (DPP) to prosecute cases on behalf of the State may qualify as law officers. See section 371 ACJL

The right of reply is discretionary and the law officer may choose not to reply or exercise his right **Adamu v. The A. G Edo State**

If He Is Not a Law Officer

The right of reply of a police officer or a private prosecutor depends on the following;

a. If **no witness** was called for the defence EXCEPT the accused himself or a witness testifying as to the accused's character ONLY and accused does not tender any documents in evidence, then the Prosecution has **NO right** of reply-***Ali v. COP*.**

b. If the accused **called witnesses other than as to character** or tenders any document not relating to character in support of his case, the Prosecution **shall** have a **right of reply**. ***State v. Sanusi***, **Section 270 ACJL; 304(2) ACJA, ; 305(2) ACJLK.**

c. Where the defendant in his closing address introduces new matter not supported by evidence, **with the leave of court**, the prosecution may

reply to such new matter. See **Section 269(1) ACJL – S. 304(1) ACJA – S. 305(1) ACJL Kano.**

A law officer or a police officer who is a legal practitioner has a right of reply to the address of the defence at all times no matter the strategy adopted by the defence. See **Section 271 ACJL; 304(3) ACJA; 305(3) ACJLK**.

Note:

The Supreme Court noted recently that a party or his counsel cannot confer on himself the right to do so at his pleasure. A party or counsel may forfeit or be taken to waive his right of address if he fails to address when called upon to do so at the close of the evidence. Counsel's failure to address does not vitiate the proceedings although address will be of immense assistance to the judge if he exercises this right. See **Ndu v The State**

When does the Prosecution not have a right of reply May 2012 4A (iii)

The Prosecuting Counsel **where he is a Law Officer** is always entitled to a reply unless he waives such right. Where however the prosecutor is not a law officer, he is not entitled to a reply if the accused person does not testify or call evidence, except as to his character

CHAPTER THIRTEEN

JUDGMENT AND SENTENCING

ELEMENTS AND CONTENT OF A VALID JUDGMENT

1. A valid judgment must be in writing before delivery to open court; ***State v. Lopez, Unakalamba v COP***

NOTE: the South (except Lagos), a Magistrate is allowed to deliver an oral judgment after making a brief note/records of his finding. **S. 308(2) ACJA**

2. Every valid judgment must contain the point or points for determination and the decision of the court on each point for determination: **S. 294 CFRN**

3. A valid judgment must **be dated and signed or sealed** by the Judge or Magistrate immediately after delivery ; ***Ajayi v State; Obareki v. State***

4. It must show whether or not the prosecution has been able to prove the existence of the essential ingredients of the offence; ***Yesufu v I.G.P***

5. It must contain the reasons for the decision of the court. The court must derive its reasons from the evaluation of the evidence as they relate to law and facts and make findings; ***Willie John v State***

6. The Judge is to formally convict and sentence the accused on each Count of which the accused was found guilty. ***Aigbe v. State; Willie John v. State***

7. Judgment dictated in open Court is not written judgment. In Okoduwa v. The State

NOTE: any judgment that did not comply with the above features is a nullity and may be set aside on appeal; ***State v. Okoduwa***

The composition must be constant and if altered (i.e. by transfer, retirement or death of the officer presiding) the trial must commence de novo - afresh. **Ogbunyinya v. Okudo**

A Judge cannot deliver his judgment and file reasons thereof later: In **Unakalamba v. The Police**

Once the judgment is pronounced the judge or the magistrate is functus officio **Queen v Fadina**

Time Limit For Delivery of Judgment and effect of non-compliance (August 2018 Bar Final Q5)

A judgment must be delivered **within 90 days (3 months) after** the final addresses and authenticated copies of the judgment are to be given to the parties **within 7 days** of its delivery-**S. 294(1) CFRN**

However if a judgment is delivered **after the 90 days**, it will not vitiate the trial unless the delay has occasioned a miscarriage of justice; **S. 294(5) CFRN**

NOTE THAT: Where a court **BEFORE expiration of the 90 days** invites counsel to make a further address **time starts counting from date of the further address**.

PERSONS THAT CAN DELIVER JUDGMENT

Generally, the judge who heard a case from arraignment till delivery of final address should deliver the judgment of the court.

NOTE THE FOLOWING:

- ⇨ Where a Magistrate or a Judge has concluded the hearing of a case and **written, dated and signed** his judgment, if he is **unavoidably prevented** from delivering the judgment, it might be **delivered and pronounced** by another magistrate or judge in his stead in open court and in the presence of the accused-**AG FED v. ANPP, S. 313 ACJA**

- ⇨ Where[12] the Judge of a High Court was elevated to the Court of Appeal and the matter is **partly heard** (i.e. **the prosecution has closed its case**; section **494 ACJA**), the Judge can continue to try the case until conclusion but if the elevation came when the prosecution was yet to conclude its case, then the matter must be started ***de novo*** before another Judge**; section 396(7) ACJA; (August 2018 Q 6d, January 2020 Q 6e)**

AMENDMENT OF JUDGMENT

Generally, after **the delivery** of a judgment, the Judge or Magistrate **cannot amend** his judgment because the judge becomes *functus officio* after delivery of his judgment***; Bakare v. State.***

HOWEVER, a Judge may only amend his judgment where there is need to **correct a clerical errors**

COMPONENTS OF JUDGMENT IN CRIMINAL TRIAL

Every judgment in criminal trial involves three (3) main things to wit:

1. Conviction

[12] The general rule is that an elevated Judge from the High court to the Court of Appeal may be allowed to continue to preside over the case in order to conclude same. S. 396(7) ACJA.
FOR EXAM: request by the prosecution for the elevated judge to continue with the case was not proper or the application for the elevated judge.... since the matter cannot be said to be part-heard under section 494 ACJA

2. Allocutus
3. Sentencing.

A. CONVICTION

MEANING OF CONVICTION

A conviction is an act of a **court of competent jurisdiction** adjudging a person to be **guilty** of a punishable offence whether the penalty is imprisonment, fine or binding even to be of good behaviour**.**

NOTE THE FOLLOWING

- The judgment of a court **must convict** the accused **before he is sentenced** - ***R v. Ekpo***
- Failure to enter a **conviction before sentence** may invalidate the judgment- ***Adamu v. State***
- Where an accused person is charged and tried for more than one count of offences, or several accused persons are charged for one or more counts of offences, the court must deliver a verdict in respect of each count or each accused person as the case may be-*;* ***Bankole v. State***

Conviction for an Offence Not Expressly Charged With

Sections **160-171 ACJL, 271 (1) ACJA**

Generally, no person can be pronounced guilty for an offence with which he was not expressly charged**.-S. 36(6)(a) CFRN.**

However, an accused may be convicted for an offence not expressly charged in the following circumstances:

1. Where an accused person charged with a grave offence is convicted for a lesser offence where the evidence before the Court could not sustain the offence he is charged with and there is sufficient and overwhelming evidence in support of the lesser charge ***; Nwachukwu v. State***
2. When an accused person is convicted for conspiracy to commit the offence although he was not found guilty of the substantive offence- ***Balogun v AG Ogun State***
3. Every attempt to commit an offence is punishable by trial court even where the defendant is not expressly charge attempting to commit the said offence.- ***Hong v. State***

B. THE PLEA OF ALLOCUTUS OR MITIGATION

Allocutus is a plea of mercy which usually comes after conviction but before sentencing. It is aimed at urging the Court should temper justice with mercy adducing good reasons.

NOTE-For capital offences and offences for which the law has provided **minimum or mandatory penalties,** *allocutus* has **no effect** because they attract mandatory sentences of death; (**Bar Final August 2019 Q 5g)**

Omission to comply with the requirements of taking the plea of allocutus does not affect the validity of the proceedings

In the **North**, the defendant may at this stage call witness as to his character if he has not previously done so and the prosecution may thereafter produce evidence of any previous conviction of the defendant. **Section 310 ACJA and S. 311 ACJLK.**

C. SENTENCING

MEANING -Sentencing is the pronouncement by the court upon the accused person after his conviction in a criminal prosecution imposing the punishment to be inflicted.

The court **must pronounce** a sentence for **every count of offence** for which the accused is convicted-***Yesufu v. I.G.P***

CONSECUTIVE AND CONCURRENT SENTENCES

A **CONCURRENT** sentence is sentence imposed which is to be served at the same time as another sentence imposed in the proceedings. The sentences start running at the same time **(i.e. serving 2 sentences at the same time).**

For instance if an accused sentenced to 5 years for assault and another 2 years for stealing; if it runs concurrently, the meaning is that as he is serving the 5 years for assault, he is automatically serving the 2 years for stealing, so he will end up serving just 5 years **(MCQ Dec 2020 No 15 & 16)**

While a **CONSECUTIVE** sentence is sentence imposed which is to be served one after the other. Each sentence begins at the expiration of another; Serving a sentence at the end of another.

If more than one sentence of imprisonment is imposed on the different Counts of the Charge, it is **deemed to run consecutively** if not specifically mentioned to be

concurrent. The Court can also order that the term of imprisonment run concurrently or consecutively; ***Emone v. COP*.**

Consideration of Pending Charges Against An Accused In Sentencing; S. 279 ACJL.

The Court can ONLY consider other Charges against the accused not before it in sentencing where the accused admits or pleads guilty to the other Charge(s) before another Court and he wishes that it be considered, and the Prosecution of the other Charges in the other court must consent. The Attorney-Generals of States under the CPCL must also consent.

EFFECT-The effect of considering other Charges against the accused before another Court in his sentence before the Court are that the **accused will not be liable to be charged again on those offences** considered **UNLESS** his conviction **is set aside** on appeal.

NOTE- The sentence to be imposed on the offence convicted upon and the one considered must not be greater than the maximum prescribed for the offence convicted for.

DISCRETION OF THE COURT IN IMPOSITION OF SENTENCES

The **prescribed sentence** for any offence is the **maximum sentence,** which the law creating the offence prescribes.

Exception to Discretionary Sentence:

a. The court cannot exercise discretion when sentencing **in** capital offences which are punishable with the death penalty. **Kalu v State, Okoro v State (may 2012)**

Where a Statute has prescribed a mandatory punishment for an offence e.g. death sentence for the offence of murder, the Court has no discretion in the matter and must impose the mandatory sentence. Any sentence imposed by the Court which is less than the mandatory sentence would be improper. **Rabiu v State**.

b. Similarly, the mandatory penalty for attempted armed robbery is life imprisonment by virtue o**f S. 2(1) Robbery and Firearms (Special Provisions) Act**, ***Balogun v. AG Ogun State***

c. Where the law, which creates an offence, prescribes a minimum penalty for offenders upon conviction, the Court can **impose a higher penalty** but cannot **impose a penalty less** than the minimum.

d. Also, where the **minimum penalty is a term of imprisonment**, the court cannot impose **a fine in lieu** of imprisonment.**,** ***Dada v. Board of Customs &Exercise***

e. Where the law which creates an offence prescribes **a penalty without option of a fine,** upon conviction, the court does not have the discretion to **impose a fine in lieu of the penalty**-***Dada v. Board of Customs Exercise***

TYPES OF SENTENCE

1. DEATH SENTENCE

The death penalty is the prescribed punishment for persons convicted of capital offences and it is **mandatory** to impose same –***Kalu v. State; Okoro vs. State***

Mode of Execution of Death Sentence (Dec 2020 Q 5d)

- In **Lagos** The death sentence shall be by **Hanging- 301 ACJL**

- In **Abuja** under the ACJA, it can also be by **Hanging** or by **Lethal Injection**; **S. 402(2) ACJA (**lethal injection is invalid elsewhere except in abuja, however consider the fact that in kano a judge may direct that It may be done via injection, sha reason am)

- **In Kano** punishment of death shall be inflicted by a method pronounced by the court"
- However, in respect of Armed robbery convicts charged under Robbery & Firearms (Special Provisions) Act, the death sentence shall be **by Firing Squad: S. 1 (2) (a) (b) Robbery & Firearms (Special Provisions) Act**

Dressing of a Judge When Delivering a Death Sentence

When pronouncing a sentence of death, the Judge is robe in red gown and black cap (barrette).

Form/Mode of Pronouncement of Death Sentence (Dec 2020 Q 2f & 3e)

- It is passed using the following words: **Lagos S. 301(2) ACJL**

"The sentence of this Court on you is that you be hanged on the neck until you are dead and may God have mercy on your soul"

- Under **section 402 ACJA**

  "The sentence of this Court on you is that you be hanged by the neck until you are dead or by lethal injection" (August 2018 Q 6e)

- Under Section 396 ACJLK- **Kano**

  "The punishment of death shall be inflicted by a method pronounced by the court"

NOTE: the mere fact that the death sentence was not pronounced exactly as stated above will not vitiate the conviction. It can be corrected by the court-***Gano v. State***

EXCEPTIONS TO DEATH SENTENCE

A death sentenced cannot be passed in the following circumstance even when the person is convicted for a capital offence:

1) Pregnant women convicted of capital offences

   a) **LAGOS:** Sentenced of death will not be passed on her but substituted with sentence to life imprisonment; **S. 302(2) ACJL.**

   b) **In Abuja, u**nder the ACJA, death sentence will be pronounced on the pregnant woman but will be suspended until the baby is delivered and weaned**; S. 404 ACJA**

   c) In **KANO**, court will sentence her to death subject to her delivery and observing weaning **period of two years. S. 408(4) ACJLK**

2) An infant or child below the age of 18 years cannot be sentenced to death. Modupe v State. Section 405 ACJA provides that the Court shall sentence the child to life imprisonment or to such other term as the Court may deem appropriate.

Under **S. 435(1) ACJLK**, where a child is alleged to have committed an offence, the provisions of the Children and Young Persons Law may apply (The Court shall detain such young person at the pleasure of the President or Governor)

N.B

The relevant time is at the time of the commission of the offence. **Modupe v State**

(1) The sentence must be confirmed before execution.

(2) After a sentence of death is pronounced on the defendant, the Registrar of the court shall as soon as practicable hand two copies of the certificate issued by the Judge under section 407 of the Act, to the Commissioner of Police Section 408 ACJA. See also section 400 ACJL, Kano.

2. IMPRISONMENT

This may be with hard labour or not.

Where the court imposes imprisonment but is **silent on** whether it is with or without hard labour, it is deemed to be with hard labour.

Jurisdiction of the Magistrate Court to Impose Terms of Imprisonment

Magistrates' courts are limited to the punishment they can impose by the Magistrates Courts Law of the various states.

It may be ordered to commence at the expiration of a current sentence. Section 418 ACJA. This provision anticipates that a competent court must have previously sentenced the defendant different from the court imposing the new punishment

The court has the general power to impose a fine. In magistrates' courts the amount of fine to be imposed, though shall be in the discretion of the magistrate, it shall not exceed the maximum fine the magistrate is authorised to impose by law. See The Price Control Board v. Ezema

Where a written law prescribes a minimum period of imprisonment, a fine in lieu cannot be substituted.

NOTE:

A Magistrate Court in the South cannot exceed the limit of its jurisdiction to impose punishment when it passes consecutive sentences.

In the **NORTH**, a Magistrate Court can exceed its jurisdiction to impose punishment but not by more than twice the limit when it passes consecutive sentences.

Once there is power to impose a term of imprisonment, the Judge can impose fine in lieu of imprisonment; ***Dada v. Customs & Exercise Board***

3. FINES; Section 424 ACJA and S. 322 ACJL

This is a monetary payment as punishment**.** Where fine is ordered, it must be paid by the convict or his estate. Where the convict is unable to pay the fine, he may be ordered to be imprisoned**.**

NOTE: Before the Court will impose **FINE**, the financial means of the offender is considered; ***Goke v. IGP.***

4. CANING

The sentence shall be carried out in a place and time as the court may direct

The mode of application/execution shall be by an ordinary horse whip- **431(4) ACJLK,**

The sentence of caning shall not be done in installments

ACJL and ACJA did not make provision on mode of and/or caning

Execution of a Sentence of Caning (MCQ QUESTIONS)

- ⇨ The execution of a sentence of caning is subject to the health condition of the offender. **S. 432 ACJLK**
- ⇨ An appeal against a sentence of canning shall be filed **within 15 days** from the date of sentence.

Persons Who Shall Not Be Subject To Caning (2010) - 431(3) ACJLK -

i. The sentence shall not be passed on a woman;
ii. It shall not be passed on a man 45 years old
iii. It shall not be passed on a man under sentence of death;

5. HADDI LASHING

This punishment is available in the North only. Even then. the court can only mete it out on those who are subject to the Moslem faith for offences like adultery, defamation, injurious falsehood and drinking of alcohol. The aim of the punishment is to inflict disgrace/shame and not to cause physical pain or injury;

See sections 387, 388, 393 of the Penal Code; Section 430 ACLJK

NOTE: Women are not exempted

6. PAROLE:

It is the temporary or permanent release of a prisoner before the expiry of a sentence, on the promise of good behaviour. See **Section 468 ACJA, 468 ACJLK**.

7. Deportation:

When may it be recommended? what is the meaning of the term, deport?

Note: **section 41 CFRN Alhaji Shugaba Daraman v. The Federal Minister of Internal Affairs**

CHAPTER FOURTEEN

APPEALS

An appeal is simply a complaint against the decision of a lower court to a higher court. The right to appeal is a constitutional right and cannot be denied.

Under this topic, the important things to take note of are:

1. Courts to appeal to
2. Time, mode and place to file the appeal.
3. Who can appeal
4. Extension of time to appeal.
5. Contents of the notice of appeal and brief of arguments.

PARTIES TO AN APPEAL- Akinbiyi v Adelabu

The right of appeal is exercisable only by either the

a. **Prosecutor** or
b. The Defendant; (usually asked in MCQ)

NB (exam Question)-

A person who is neither the prosecutor nor the defendant cannot appeal either as of right, or with leave, See **Akinbiyi v. Adelabu**

a party interested or the victim does not have the right to appeal in criminal cases. See S. 243(a) of the CFRN

TIME TO FILE AN APPEAL – exam focus

1. Appeals from the decision of the Magistrate Court to the High Court shall be filed **within 30 days** after the Judgment.
2. Appeals from the decision of the High Court to the Court of Appeal shall be filed within **90 days (3 months)** after the Judgment

3. Appeals from the decision of the Court of Appeal to the Supreme Court shall be filed within **30 days** after the Judgment
4. All interlocutory decisions including appeal against canning/haddi-lashing are filled **within 14 days.**

PROCEDURE FOR FILING AN APPEAL (The Mode is by Notice of Appeal)

1. It is by filing a Notice of appeal at the Registry of the trial court.
2. The Notice of Appeal must be **signed** by the Appellant or by his Legal Representative and shall be given to **the Registrar** of the trial court; **O. 17 Rule 5 of COA Rules 2021**
3. If the appeal requires leave of court, apply for the leave of court before filing the appeal because failure to do so will vitiate the appeal.
4. An Appellant in custody can give his Notice of Appeal to the Officer in charge of the Prison and the day he did so is deemed the date of filing of the appeal; ***Ewelikwu v. State***
5. The Registrar of the High Court shall **compile** the record of appeal and forward same to the registrar of the Court of Appeal **within 90 days**
6. Upon receipt of the Records of Appeal by the Registrar of the appellate court, the appeal is deemed filed.

CONTENTS OF A NOTICE OF APPEAL

A Notice of Appeal shall state the following–

1. The Grounds of appeal
2. Whether it is the whole or part of the decision of the lower court that is complained of Lin the latter case, specify the part.

3. The exact nature of the relief sought
4. The names and addresses of all parties directly affected by the appeal.
5. Address for service
6. Signature of the appellant of his legal practitioner

GROUNDS OF APPEAL – May 2012

The grounds of appeal may be based on:

a. Misdirection
b. Error of Law
c. The omnibus ground of appeal.

NOTE THE FOLLOWING POINTS:

- ⇨ The omnibus ground of appeal is an attack on the findings of facts at the trial Court to the effect that the decision of the trial Court is against the weight of evidence.
- ⇨ If the ground is misdirection or error of law, the particulars and nature of the ground of misdirection or error must be stated if not the ground of appeal shall be struck out.
- ⇨ It is only the omnibus ground of appeal that can stand alone without particulars.
- ⇨ The grounds of appeal in a Notice of Appeal cannot be both on misdirection and error of Law at the same time.

NATURE OF THE GROUNDS OF APPEAL

- ⇨ A bare Notice of appeal that does not contain any ground or grounds of appeal is valueless and incompetent and an abuse court process;
- ⇨ The appellant is bound by the grounds of appeal in his Notice of Appeal.
- ⇨ The grounds of appeal should be set out concisely without any argument or narrative and shall be numbered consecutively.
- ⇨ A ground of appeal may allege a misdirection or error in law and the particulars and the nature of the misdirection or error shall be clearly stated.
- ⇨ Every ground of appeal must be supported with particulars EXCEPT the omnibus ground of appeal which can stand alone.

SAMPLE DRAFT of Omnibus Ground:

"The Judgment of the court is unreasonable, unwarranted and cannot be supported having regards to the evidence adduced by the parties" see August 2018 Q 3(6)

AMENDMENT OF GROUNDS OF APPEAL

Where the appellant observes a defect in the grounds of appeal, he may amend the defect. If th**e tim**e for filing an appeal **has not elapsed**, he may file **amende**d grounds of appeal **without the leave of court.**

If the time limit has elapsed, **he must apply for leave to amend** the grounds of appeal by **motion on notice**

Relationship Between Issues For Determination And Grounds Of Appeal

(Very important it has appeared in MCQ from April 2017 to 2019)

1. All issues for determination must be derived or tied to one or more ground/s of appeal of appeal

2. Only one issue for determination can be derived from a ground of appeal, that is to say; the issues for determination cannot be more than the grounds of appeal.
3. A single issue for determination can be derived from multiple grounds of appeal;
4. Any ground of appeal without an issues for determination is deemed abandoned;
5. Any issue for determination which cannot be traced to a ground of appeal cannot be entertained.

The appellate court may *suo motu* formulate a single issue for determination from the issues for determination formulated by both parties if it is of the opinion that such single issue will resolve the whole appeal.

When Will A Notice of Appeal Operate As A Stay of Execution?

Generally, an appeal does not operate as stay of execution of the judgment of the lower court. Therefore, after filing an appeal, the appellant may need to **apply for a stay of the execution** of the judgment of the court.

However, if the appeal is against a death sentence, the filing of a Notice of Appeal operates as **a stay of execution; *Bello v. A.G Oyo State* (Bar Final focus)**

ADMISSIBILITY OF ADDITIONAL EVIDENCE ON APPEAL

Generally, new evidence is not admissible on appeal. However, the EXCEPTIONS for the admission of additional evidence on appeal are as follows:

i. If it is in the interest of justice.

ii. If the evidence was not available at the trial or could not have been adduced at trial.

iii. The evidence sought to be adduced on appeal must be apparently credible though not incontrovertible-***Ariola & Ors v. C.O.P.***

iv. That new evidence will not lead to the rehearing of the case.

BRIEF OF ARGUMENT (Exam focus)

Appeals are heard in the Court by filling and adoption of Brief of Arguments. The order of filing the Brief of Arguments is as follows:

- ⇨ The appellant has **within 45 days** **(10 weeks at the Supreme Court)** after the transmission/receipt of the Record of Appeal from the court below to file his Brief of argument. **Ors 6 R 2**
- ⇨ The respondent shall **within 30 days** **(8 weeks at the Supreme Court)** of the service of the brief for the appellant on him file the Respondent's brief which shall be duly endorsed with an address for service. **Ors 19 R 4**
- ⇨ The appellant may also if necessary, **within 14 days** **(4 weeks at the Supreme Court)** of the service on him of the Respondent's brief file and serve the respondent a **reply brief** which shall deal with all the **new points** from the respondent's brief. **Nwali v State**
- ⇨ **The number of copies to be filed by a party is 20 copies each.**

<u>Consequences of Failure To File Brief of Argument Within Time</u>

1. Where an Appellant fails to file his brief within time, his appeal may be **STRUCK OUT**.

2. Where a respondent fails to file his respondent's brief of argument having been duly served with the appellant's brief of argument, he will **not be heard in oral argument. Or. 17 R. 10 CAR**.
3. Where an Appellant fails to file a reply brief within time he shall be deemed to have **conceded** all the new points or issues arising from the respondent's brief of argument. **Or. 17 R. 10 CAR**.

EXTENSION OF THE WITHIN WHICH TO APPEAL

Where an appellant is out of time to appeal, he must apply for extension of time within which to appeal to the Appellate court.

The procedure is by filing a **Notice of Motion** for extension of time to appeal supported with an **Affidavit** stating cogent reasons for the delay in filing the appeal; **O. 6 R. 1 COA Rules 2021**

NOTE the following points:

i. Written address is not needed for applications filed before the Court of Appeal.
ii. The Court of Appeal is empowered **under S. 24(9) Court Appeal Act** to extend the period for filing an appeal.
iii. An appeal filed outside the stipulated time without leave of court is not an appeal and ought to be struck out. ***Awhinawhi v. Oteri***
iv. The power to enlarge time is vested in the Court of Appeal only. A High Court has no power to grant extension of time within which to appeal– ***Akpan v. Ekpo.***

TRINITY PRAYER

This is applicable where an appeal requires leave and the appellant is out of time. It is application for leave in the Court of Appeal which must contain 3 prayers viz.

1. Extension of time within which to seek leave to appeal
2. Leave to appeal;
3. Extension of time within which to appeal.

It is also by **Motion on Notice** , supported with **affidavit** stating cogent reasons for the delay

ABANDONMENT OF APPEAL

An appeal may be abandoned either expressly or impliedly. An appeal is impliedly withdrawn if the Appellant fails to file his grounds of appeal or fulfil other conditions of appeal after filing his Notice. An appellant may abandon his appeal by giving a written notice of abandonment signed by himself or his counsel to the registrar of the Court below not less than 2 days before the date fixed for hearing. The latter shall immediately notify the High Court Registrar of the abandonment of the appeal and the Magistrate may award costs to the respondent. **Awojobi v. Ogbemudia**

ABATEMENT OF APPEAL

An appeal will abate where an appellant whose ground of appeal is based on a sentence of imprisonment dies before the appeal is heard; ***Bello v. AG Oyo State***

NOTE-However, appeal will not abate on the death of the appellant where the ground of appeal is founded on sentence of fine. This is because the fine may be levied on the deceased/appellant's estate notwithstanding his death. ***R. v. Rowe***

WHEN A RE-TRIAL MAY BE ORDERED

An Appeal **Court may order a re-trial** where **all** the following conditions are present:

i. That there has been an **error in Law** or an **irregularity in procedure** such that although the trial was not rendered a nullity, it cannot be said that a miscarriage of justice has been occasioned;

ii. That leaving the error or irregularity, the evidence taken as whole discloses a substantial case against the appellant;

iii. That there are no special circumstances as would render it oppressive to put the appellant on trial a second time;

iv. That to refuse an order for re-trial would occasion a greater miscarriage of justice; ***Okafor v. State; Aigbe v. State***

TRIAL DE NOVO: This is a fresh trial of a case that was previously part heard by another judge but was not determined by a judgment.

CHAPTER SIXTEEN

IMPORTANT SAMPLE DRAFTS IN CRIMINAL LITIGATION

1. Application For Bail At Police Station (usually asked in Exam)

NAME OF FIRM

ADDRESS

EMAIL

PHONE NUMBER

Our Ref Your Ref

DATE:

The Divisional Police Officer,

Police Divisional Headquarters,

Kaduna State

Sir,

APPLICATION FOR BAIL

We are solicitors to Mrs. Atutuwa (Our client) of No.5 Oduwole Street Kakuri Kaduna who is currently under arrest and detention at your station,

Our client was arrested on 31st of January, 2022 for alleged offence of theft and house breaking and has since remained in detention.

We apply for her bail pending your arraignment in court. Our Client pledges to appear at the station anytime requested by you.

We recommend Alhaji Atutuwa Bello of No. 14 Broad Street Kaduna, an in-law to our client, as a surety for our Client's bail.

Thanks for the anticipated cooperation.

Yours faithfully,

……

Name

(Principal Partners)

Firm

2. **CHARGES: (**The format of charge differs depending on the Court and the jurisdiction. So study the format for each court.)

ABUJA/NORTH:

IN THE MAGISTRATE COURT OF KANO STATE

IN THE KANO MAGISTERIAL DISTRICT

HOLDEN AT KANO

CASE NO:

BETWEEN

COMMISSIONER OF POLICE…… ……COMPLAINANT

AND

JOHN OGU……. DEFENDANT

I, King Aliliele, Chief Magistrate, Grade 1 hereby charge you John Ogu, with the following offences:

CHARGE 1

That you, John Ogu, on or about …..th of day of 2022[13] at …….., within the Kano Magisterial District, Kano committed the theft of a Tecno Mobile Phone, Property of Chief Tolu Agbatar and thereby committed an offence punishable under section --- of the Penal Code Law of Kano State, Cap --- Laws of Kano State and triable by this court.

I hereby direct that you be tried for the said offence by this court.

Dated this……..Day of……..2020

[13] Used this way when you are not sure of the date, but when certain just say 5th of xx

……..

King Aliliele

Chief Magistrate

Grade 1

FOR LAGOS AND SOUTH:

IN THE MAGISTRATE COURT OF LAGOS STATE

IN THE LAGOS MAGISTERIAL DISTRICT

HOLDEN AT LAGOS

CHARGE NO:…….

BETWEEN

COMMISSIONER OF POLICE……COMPLAINANT

AND

MR KUDA BANSI……. DEFENDANT

COUNT ONE

That you, Kuda Bansi on or about the 15th day of May, 2019 at No. 10 Law School Avenu, Lekki, in the Lagos Magisterial District, stole a Tecno Mobile Phone belonging to Madam Victoria Gbaraba and thereby committed an offence punishable under SECTION --- of the Criminal Law of ---- Cap --- Laws of Lagos State 2004.

Dated this……..day of……2022

_____

Mr. Azubuike

Investigating Police Officer

HIGH COURT

FOR NORTH : CHARGE

IN THE HIGH COURT OF KANO STATE

IN THE KANO JUDICIAL DIVISION

HOLDEN AT KANO

CHARGE NO:…….

BETWEEN

THE STATE……COMPLAINANT

AND

MUSA GARBA……. DEFENDANT

CHARGE ONE

That you, NAME on the ….th day of MONTH , 2022 (Use "on or about" when date is uncertain) at ADDRESS, in the Kano Judicial Division, Kano State, committed culpable homicide punishable with death by stabbing name of victim and thereby committed an offence punishable under section 221 of the Penal Code Laws of Kano State.

Scenarios examples

1. stole the sum of ……. , the property of name of victim and thereby
2. conspired to commit the offence of armed robbery
3. conspired to steal the sum of ……. , the property of name of victim and thereby…..
4. whilst committing robbery caused the death of name of victim and thereby ……
5. kidnapped name of victim and thereby ….
6. Whilst armed with firearm/gun robbed name of victim (of his name of car and reg number)…
7. Had sexual intercourse with name of victim without her consent and thereby ..
8. Procured … year old name of victim for prostitution
9. Without lawful authority purchased .. grams of white substance suspected to be coke
10. Without lawful authority exported .. grams of white substance suspected to be coke
11. Knowingly possessed …grams of white substance suspected to be coke

Dated this……day of……2022

_____

Name

State Counsel One

Director of Public Prosecution

OR

Name

Principal State counsel,

For the Attorney General Kano State

FOR LAGOS (only use "the state of lagos" when drafting an information in a scenario in logas other states use "the state"), ABUJA AND SOUTH:

INFORMATION

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT LAGOS

CHARGE NO:……

BETWEEN

THE STATE OF LAGOS……..COMPLAINANT

AND

AFOMA KEN……DEFENDANT

At the session of the High Court of Lagos holden at Lagos on the ….t day of MONTH 2022, the court is informed by the Attorney-General of the State on behalf of the State that Afoma Ken is charged with the following offence

OR

…on behalf of the state that the following persons:

1. NAME
2. NAME

Are charged with the following offences:

COUNT 1:

STATEMENT OF OFFENCE

Armed robbery contrary to section 1(2) (a) of the Robbery and firearms (Special Provisions) Act, Cap. R11LFN, 2004.

PARTICULARS OF OFFENCE

Afoma Ken on or about the …. day of MONTH, 2019 at ADDRESS, Ikeja in the Ikeja Judicial Division, whilst armed with gun attack the vaults of Diamond Bank plc and carted away with the sum of (50) Fifty Million Naira, belonging to Diamond Bank plc.

SCENARIOS EXAMPLES

1. S.O Rape, P.O had unlawful carnal knowledge of/ Raped name of victim
2. PO: stole …. Valued at …… property of name of victim
3. SO: Manslaughter PO: while …….. caused the death of name of victim
4. SO: Armed robbery, PO: whilst armed with offensive weapons stole the sum of …. The property of name of victim

5. SO: ARSON, PO: set on fire a …. Property of name of victim
6. SO: Murder, PO: Murdered name of victim , / PO:conspired to murder name of victim
7. SO: Unlawful possession of fiream (ak 47), PO: were in unlawful possession of firearms for the purpose of committing a felony
8. SO: Unlawful imprisonment PO: abducted and unlawfully imprisoned name of victim for a ransom of ….

Dated this……..day of……2022

_____

Name

Principal/Senior State counsel,

For: the Honorable Attorney General of Lagos State

FOR FHC & NIC

IN THE FEDERAL HIGH COURT OF NIGERIA

IN THE CALABAR JUDICIAL DIVISION

HOLDEN AT CALABAR

CHARGE NO:……

BETWEEN

THE STATE……COMPLAINANT

AND

MUSA GARBA……. DEFENDANT

CHARGE ONE:

That you, NAME on or about the …. day of MONTH, 2022 at _ADDRESS ,within calabar judicial division, without lawful authority engaged in selling of drugs otherwise known as "cocaine" to truck drivers and thereby committed an offence contrary to section 11 (b) of the National Drugs Law Enforcement Agency Act, 2004.

Dated this -------- day of ----------, 2022.

NAME

Senior law officer,

For the chairman, NDLEA.

1. Applications For Consent to File Information for states still using CPL:

Suleman Mukalia

Director of Public Prosecution

Ministry of Justice,

Oyo State

11th January, 2021

The Chief Judge of Lagos State,

Hon. Justice XYZ,

Oyo State Judiciary,

Ibada, Oyo State

My Lord,

APPLICATION FOR CONSENT TO FILE INFORMATION

I am the Director of Public Prosecution in the Oyo State Ministry of Justice and I hereby apply for consent to file an information on a charge of stealing against one Mr. Abel Gooday

Investigation into the case has been concluded and all the witnesses that the prosecution intends to call in proof of its case are available. Attached to this application are the following documents:

1. A copy of the proposed Information;
2. The unedited statement of the alleged offender;
3. The proof of evidence; and
4. List of Exhibits to be relied upon.

This application is made on behalf of the Attorney General of Oyo State.

No previous application for consent has been made and I have utmost belief in the case against the alleged offender.

Yours faithfully,

……..

SULEMAN MUKALIA

DIRECTOR OF PUBLIC PROSECUTION

OYO STATE MINISTRY OF JUSTICE

2. APPLICATION FOR LEAVE IN THE NORTH for states still using CPCL (CONSENT)

IN THE HIGH COURT OF BORNO STATE

IN THE BORNO JUDICIAL DIVISION

HOLDEN AT BORNO

CASE NO...……

BETWEEN:

THE STATE.....…….....COMPLAINANT/APPLICANT

AND

XYZ…….. .....ACCUSED PERSONS

MOTION EX-PARTE

BROUGHT PURSUANT TO SECTION 185(B) OF THE CRIMINAL PROCEDURE CODE AND RULE 3(1) & (2) OF THE CRIMINAL PROCEDURE (APPLICATION FOR LEAVE TO PREFER CHARGE) RULES 1970 AND UNDER THE INHERENT JURISDICTION OF THIS COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of …….. 2021 at the Hour of 9O'Clock in the forenoon or so soon thereafter on the application of the complainant on behalf of the State praying for the following:

1. **AN ORDER** granting leave to prefer a Charge of Stealing against the accused persons in the forms and terms of the proposed charge sheet hereby exhibited as "annexure A

2. **AND FOR SUCH ORDERS OR FURTHER ORDER** as this Honourable Court may deem fit to make in the circumstances

DATED THIS ……. DAY OF ……..2021

……..……

SULEMAN MUKALIA

DIRECTOR OF PUBLIC PROSECUTION

MINISTRY OF JUSTICE,

BORNOSTATE

FOR: ATTORNEY GENERAL, BORNO STATE

3. <u>SUMMONS FOR BAIL</u>

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY,

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

CHARGEE NO…….

BETWEEN:

THE FEDERAL REPUBLIC OF NIGERIA…..COMPLAINANT/RESPONDENT

AND

BURAGO…….....DEFENDANT/APPLICANT

SUMMONS FOR BAIL

BROUGHT PURSUANT TO SECTIONS 35(4), S. 36(5) OF THE CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999 (AS AMENDED), **), SECTION……..OF THE ADMINISTRATION OF CRIMINAL JUSTICE ACT AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT** AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

LET ALL PARTIES attend at this Honourable court on the …….day of ……. 2022 at the Hour of 9 O'clock in the forenoon or so soon thereafter on the hearing of an application for bail by counsel on behalf of the Accused person/ Applicant for:

1. AN ORDER **admitting** the Applicant to bail pending the determination of the trial at the Magistrate Court.

2. AND FOR SUCH ORDERS OR FURTHER ORDERS as this Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF…….2022

This Summons was taken out by Emokiniovo Dafe-Akpedeye (Applicant's counsel)

No. 15 Law School Close, Bwari, Abuja,

FOR SERVICE ON:

Attorney-General of the Federation

Federal Ministry of Justice Abuja

4. **Motion On Notice For Bail** (if you are asked to draft an application for bail pending trial in the exam, draft this one)

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

CHARGE NO…….

BETWEEN:

THE STATE OF LAGOS……..……..COMPLAINANT/RESPONDENT

AND

AYO ISA…….....DEFENDANT/APPLICANT

MOTION ON NOTICE

BROUGHT PURSUANT TO SECTION 35(4), 36(5) OF THE 1999 CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA (AS AMENDED), SECTION……..OF THE

ADMINISTRATION OF CRIMINAL JUSTICE LAW OF LAGOS STATE AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the …….day of ……. 2022 at the Hour of 9 O'clock in the forenoon or so soon thereafter as Counsel to the Accused persons/ Applicants will be heard praying this Court for:

1. AN ORDER admitting the Applicants to bail pending the determination of the trial.
2. AND FOR SUCH FURTHER ORDERS AND OTHER ORDERS as this Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF…….2020

……..

EMOKINIOVO DAFE-AKPEDEYE

COUNSEL TO THE DEFENDANT/APPLICANTS

Compos Mentis Chambers

No. 15 Binta Close Bwari, Abuja

FOR SERVICE ON

The Attorney-General of Lagos State

5. Affidavit In Support of Motion On Notice For Bail (Know the contents of what will be in your affidavit depending on the type of bail applied for) this is for health grounds

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

CHARGE NO…….

BETWEEN:

THE STATE OF LAGOS……..……..COMPLAINANT/RESPONDENT

AND

AYO ISA…….....DEFENDANT/APPLICANT

AFFIDAVIT IN SUPPORT OF MOTION FOR BAIL

I, NAME , GENDER, Adult, RELIGION, OCCUPATION and a Nigerian citizen of ADDRESS do hereby make oath and state as follows:

1. I am the capacity of the defendant/Applicant and by virtue of which I am conversant with the facts of this case.
2. I have the authority and consent of the defendant /Applicant to depose to this Affidavit.
3. The Applicant is standing trial for the Charge of name of offence which is a felony.
4. The Applicant is a person of good character having no previous criminal record.
5. The Applicant was diagnosed of renal failure and Kidney stones in 2019 and he is still undergoing medical check-up monthly at Yaba Specialist Hospital, a copy of the Medical Report is hereby attached and marked as Exhibit 'A'.
6. I swear to this affidavit in good faith believing its content to be true and correct in accordance with the Oaths Act.

……

Deponent

Sworn to at the High Court Registry, Lagos
This …..day of …… 2022.

BEFORE ME

……

COMMISSIONER OF OATHS

HOW TO MOVE AN APPLICATION FOR BAIL (See August 2018)

1. My Lord, I am John DOE appearing for the accused person. My Lord, before this honourable Court is an application for bail dated 2nd of February, 2021 on behalf of the accused person and filed on the same day
2. The motion is brought pursuant to section 35(4) and section 36(5) of the 1999 Constitution of the Federal Republic of Nigeria (as amended), **section……..of the administration of criminal justice law of lagos state** and under the inherent jurisdiction of this court
3. My lord, we seek the following reliefs:

   'An order of the court admitting the 2nd defendant /applicant to bail pending the determination of his trial'
4. A-my lord, our motion is supported by a 11 paragraph affidavit deposed to by Alhaji Mohammed and we rely on all the paragraphs of the affidavit particularly paragraphs 4-10.
5. We have also filed a written address in support of our application. We wish to adopt same as our argument in support of this application.

6. We humbly pray this honourable court to grant bail to the accused on liberal terms
7. May it please the court/ we are grateful, my lord.

8. NOTICE OF PRELIMINARY OBJECTION (August 2019)

IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

CHARGE NO……

BETWEEN:
THE STATE OF LAGOS……....COMPLAINANT/ RESPONDENT
AND
JAMES TUNDE…….DEFENDANT/APPLICANT

NOTICE OF PRELIMINARY OBJECTION
BROUGHT PURSUANT TO SECTION 251 & 174 OF THE 1999 CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA (AS AMENDED) AND WITHIN THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that at the trial of the above case, the Defendant/Applicant intends by way of preliminary objection to challenge the competence of this trial, and may be heard praying this Honourable Court for an Order striking out the charge and discharging the defendant.

AND TAKE FURTHER NOTICE that the grounds on which the Defendant/Applicant intends to rely on are as follows:

1. The Federal High Court lacks the substantive jurisdiction to try the alleged offences.
2. The Attorney General of the Federation is not the appropriate prosecutorial authority to prosecute the offences.

DATED THIS …….. DAY OF ……. 2022

……..

Samuel Ayodeji Esq

Counsel to the Defendant

Excellus Law Firm

10 Yaba Road, Lagos

FOR SERVICE ON:

Attorney General of the Federation

Federal Ministry of Justice

No 1 Ikoyi Hall, Lagos

9. NOTICE OF APPEAL

IN THE COURT OF APPEAL OF NIGERIA

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

CHARGE NO……..

APPEAL NO……....

BETWEEN:

RAMPAM ALECHENU…….....APPELLANT

AND

THE FEDERAL REPUBLIC OF NIGERIA……..... RESPONDENT

NOTICE OF APPEAL

To the Registrar

Court of Appeal

Abuja.

I, RAMPAM ALECHENU having been convicted of the offence of conspiracy to commit culpable homicide punishable with death and now being a Prisoner in Prison at the Federal Prisons Abuja, **DO HEREBY GIVE NOTICE** of Appeal against my conviction on the following grounds:

GROUND ONE:

The Learned trial Judge erred in Law when he convicted the accused on no admissible evidence proving his guilt beyond reasonable doubt.

PARTICULARS OF ERROR:

1. The evidence of PW1 is hearsay and it did not link the death of the victim to the 1st Accused/Appellant.

GROUND TWO **(This is omnibus ground of Appeal)**

The decision of the trial judge is unreasonable and cannot be supported having regard to the evidence before the court.

……..

APPELLANT

DATED THIS..... DAY OF..... 2022

Ade Adamu

Appellant's Counsel

(Address)

FOR SERVICE ON:

The Attorney-General of the Federation,

Federal Ministry of Justice, Abuja

10. **BAIL PENDING APPEAL**:

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY,

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

CHARGE NO…….

APPEAL NO……

MOTION NO……

BETWEEN:

RAMPAM ALECHENU……. APPLICANT/APPELLANT

AND

FEDERAL REPUBLIC OF NIGERIA….. COMPLAINANT/RESPONDENT

MOTION ON NOTICE FOR BAIL

BROUGHT PURSUANT TO SECTION 341(2)(B) AND (C) OF THE CRIMINAL PROCEDURE CODE ACT AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the …….day of …….2021 at the Hour of 9 O'clock in the forenoon or so soon thereafter as Counsel on behalf of the Appellant/Applicant may be heard praying this Honourable Court for the following:

1. AN ORDER releasing the Appellant/Applicant to bail pending the determination of the appeal against his conviction at the Court of Appeal.

2. AND FOR SUCH FURTHER ORDER AND ORDERS as this Honourable Court may deem fit to make in the circumstances.

DATED THIS ……DAY OF ……. 2021.

……

Abaji Ekon

Applicant's Counsel

Adamu & Co

No 15 Broad Street Abuja

<u>FOR SERVICE ON:</u>

The Attorney-General of the Federation,

Federal Ministry of Justice,

Maitama

Abuja, FCT

IN THE COURT OF APPEAL OF NIGERIA

SITTING AT ABUJA

CHARGE NO.....

APPEAL NO.....

BETWEEN

RAMPAM ALECHENU……APPELLANT

AND

THE FEDERAL REPUBLIC OF NIGERIA…….RESPONDENT

APPELLANT'S BRIEF OF ARGUMENT

INTRODUCTION/PRELIMINARY STATEMENT

This is an appeal against the decision of the High Court of the Federal Capital Territory delivered on 11th day of December, 2022 by Hon Justice Maza Maza.

ISSUES FOR DETERMINATION

1) Whether the learned trial judge erred in law by convicting the accused person of a charge unsupported by evidence in the case.

ARGUMENTS ON THE ISSUES FOR DETERMINATION

ISSUE ONE

It is trite law that for a charge of conspiracy to stand, there must be an agreement between two or more persons. Therefore, it is not possible to convict only one person of conspiracy since there must be an agreement with someone else to conspire.

CONCLUSION/SUMMARY

This Honourable Court is urged to quash the decision of the trial court and acquit the accused of the offence of conspiracy of culpable homicide punishable by death

LIST OF AUTHORITIES

JUDICIAL:

STATUTORY:

DATED THIS……DAY OF…….2020

Edafe James ESQ

E Dafe Dafe & Co

No 3 Ahmadu Road, Abuja

FOR SERVICE ON:

The Attorney General of the Federation

Ministry of Justice, Maitama Abuja